Dated _____

Quang Ninh LNG Power JSC

(as Owner)

and

[●]

(as Contractor)

ENGINEERING, PROCUREMENT AND CONSTRUCTION CONTRACT

for the design, procurement, construction, erection, installation, testing, commissioning, delivery and defect rectification of a 1,500 MW power plant and LNG receiving terminal to be located in Cam Pha City, Quang Ninh Province, Vietnam

[Note to Bidders –

<u>Background and Overview of Contractor's Responsibilities</u>

As a general principle, the Owner is relying on the Contractor to perform all obligations under the Power Purchase Agreement (PPA) and other key project documents to the extent that they relate to the construction of the LNG terminal, the power plant, and all associated facilities (other than the site clearance and levelling works which will be carried out by another contractor).

Accordingly, while the PPA, the land lease agreement, the LNG SPA, and other key project documents are still being finalised, all such requirements—once finalised—will need to be fully reflected in the EPC Contract on a back-to-back basis. This will necessitate amendments to the contract to ensure that all technical, operational, and performance obligations under the PPA, the land lease agreement, LNG SPA, and other project documents are appropriately passed through to the Contractor.

<u>Contracting structure</u>

This document is based on a single, turn-key, lump-sum EPC arrangement for the entire facility (other than, as mentioned, the site clearance and levelling works which will be carried out by another contractor).

The Bidder may propose to split the Works into onshore and offshore scopes of work for the purposes of tax saving and other benefits, in which case it shall submit to the Owner the proposal for the split structure and the benefits to the Owner arising from it. The Bidder's proposal shall be in compliance with applicable Laws. The Owner may consider and may accept or reject such proposed split structure in its sole discretion. If the split is acceptable subject to the Owner's decision, the Parties acknowledge that the Works shall be divided between and performed under two contracts, namely an:

(a) ***Offshore Supply and Service Contract entered into between the Owner and the Offshore Contractor ("Offshore Contract"), relating to the performance, outside Vietnam, of part of the work under the Contract (including, potentially, the design, manufacture, procurement and delivery of plant and equipment onshore); and***

(b) ***Onshore Supply and Construction Contract entered into between the Owner and the Onshore Contractor ("Onshore Contract"), of the balance of the work required for the power plant (including potentially, site work, site surveys, etc.)***

If there is a split between onshore and offshore works, to ensure the overall Works are carried out on a seamless turn-key basis and at a fixed and firm lump-sum price through the separate contracts, the Offshore Contractor, Onshore Contractor and Owner will enter into a coordination agreement ("Umbrella Agreement") providing for the joint co-ordination and responsibility of the Onshore Contractor and Offshore Contractor with the intention being that any such alternative contractual structure will not change the overall price or overall completion dates that are contemplated for the single EPC contract structure or change in any material way, the overall allocation of risk under, or any other aspects of, the EPC contract. The Umbrella Agreement will provide that the Offshore Contractor and Onshore Contractor are jointly and severally liable for the performance of all obligations under the Onshore Contract, Offshore Contract and the Umbrella Agreement (being, collectively, referred as the "Contract").

To achieve the required single point of responsibility for a customary turnkey EPC contract, the Umbrella Agreement must include (among other matters) provisions clarifying that: (i) if the Owner exercises its right to reject the Works under the Onshore Contract, it will be also deemed to have rejected the Works under the Offshore Contract, and the Owner shall be entitled to remedies under both contracts, (ii) the Owner shall be entitled to call any guarantees or bonds regardless of which Contractor provides it or which Contractor defaults, (iii) any defects under the Offshore Contract will be treated as defects for which the Onshore Contractor is responsible under the Onshore Contract, (vi) only for administrative purposes, there will be one 'Contractor's Representative' designated for the sake of coordinating giving and receiving all notices and communications, bank guarantees to the Owner, and (v) the Contractors shall jointly provide one set of bank guarantees for the agreed secured amounts denominated in USD (including the Advance Payment Bond, the Performance Bond and the Parent Company Guarantee).

For the avoidance of doubt, the Umbrella Agreement shall also include customary provisions to prevent double recovery by the Owner against the Offshore Contractor and/or the Onshore Contractor (and vice versa).

For efficiency, and assuming that the Owner accepts such proposal to split the Works into onshore and offshore components, such split will only be carried-out after all commercial and technical terms in this single document have been finalised between the Parties.

Note also that if the Contractor is a Vietnamese entity, since 01 July 2025, organisations participating in construction activities are no longer required to obtain the relevant Construction Operation Capacity Certificate (in Vietnamese: "chứng chỉ năng lực hoạt động xây dựng") (Article 58.2 of the new Railway Law which also amends several articles of the Construction Law).

If the Contractor is a foreign entity, it will need to obtain a foreign contractor license from Quang Ninh Department of Construction after contract award (Articles 113, 114, 115 of Decree 175/2024). The Employer and the foreign contractor can only sign the EPC Contract after the foreign contractor license is obtained (Article 120.1 of Decree 175/2024).]

THIS CONTRACT AGREEMENT (the "**Contract Agreement**") is made and entered into at , on _____by and between:

(1) **Quang Ninh LNG Power JSC**, a corporation organized and validly existing under the laws of Vietnam, with its registered office at 1st floor, Petroleum Institute Building, 167 Trung Kinh, Yen Hoa ward, Cau Giay district, Hanoi, Vietnam (the "**Owner**"); and

(2) **[●]**, a company incorporated under the laws of [●] and whose registered office is at [●] (the "**Contractor**").

WHEREAS:

(A) The Owner developing an LNG-to-power-plant comprising of a combined cycle gas turbine power plant with a nominal capacity of 1,500MW, an LNG receiving terminal to supply fuel generation, and a jetty and pipeline system to import LNG from LNG carriers, all to be located in Cua Ong Ward and Van Don Special Economic Zone, Quang Ninh Province, Vietnam.

(A) The Owner requires an experienced and competent contractor to develop, design, engineer, procure, manufacture, construct, erect, install, test, commission and rectify defects in the above works, other than the clearance and levelling of the Site, and other site preparation works.

(B) The Contractor is inter alia in the business of designing, engineering, procuring, manufacturing, constructing, erecting, installing, testing, commissioning and rectifying defects in LNG terminals and gas-fired-power plants.

NOW THEREFORE, in consideration of the promises, conditions and the mutual covenants set forth in this Contract, the Owner and the Contractor hereby agree as follows:

1. DEFINITIONS

In this Contract Agreement and all documents comprising the Contract, unless otherwise defined, words and expressions have the same meanings given to them in the conditions of contract appended to this Contract Agreement (the "**Conditions**").

2. DOCUMENTS COMPRISING THE CONTRACT

This Contract Agreement together with the following documents appended to it, being:

(a) the Conditions;

(b) Schedule 1 – Owner's Requirements;

(c) Schedule 2 – Contractor's Technical Proposal;

(d) Schedule 3 – Performance Guarantees:

(i) Schedule 3A - Performance Guarantees for LNG Terminal; and

(ii) Schedule 3B - Performance Guarantees for CCPP;

(e) Schedule 4 – Liquidated Damages;

(f) Schedule 5 – List of Permits, Licences and Approvals;

(g) Schedule 6 – Insurance Program Structure;

(h) Schedule 7 –Utilities;

(i) Schedule 8 – Site Access;

(j) Schedule 9– Inspection, Testing and Taking-over:

  (i) Schedule 9A (Inspection and Testing for LNG Terminal); and

  (ii) Schedule 9B (Inspection and Testing for CCPP);

(k) Schedule 10 – Preliminary Project Implementation Schedule;

(l) Schedule 11 – Project Milestone Payment Schedule;

(m) Schedule 12 – Approved Subcontractors and suppliers;

  (i) Schedule 12A (Approved Subcontractors and suppliers for LNG Terminal); and

  (ii) Schedule 12B (Approved Subcontractors and suppliers for CCPP);

(n) Schedule 13 – Contract Price and Division of Works;

(o) Schedule 14 - Technical Requirements of Major Project Agreements;

(p) Schedule 15 – Contract Management Principles;

(q) Schedule 16 - Form of Contractor's Security Bonds;

(r) Schedule 17 – Contractor's Pre-Effective Date Waiver;

(s) Schedule 18 – Form of Notice to Proceed;

(t) Schedule 19 – Form of Interim Payment Application;

(u) Schedule 20 – Form of Lien Waiver;

(v) Schedule 21 – Temporary Areas;

(w) Schedule 22 – Shared Facility Areas; [Note to Bidder: Schedule 22 to be developed if Shared Facility Areas would be required]

(x) Schedule 23 – Permanent Areas;

(y) Schedule 24 – Not Used;

(z) Schedule 25 – Proposed Document Register of LNGT;

(aa) Schedule 26 – Contractor's Discharge;

(bb) Schedule 27 – Extended Warranties; [Note to Bidder: Schedule 27 to be developed if Extended Warranties would be required**]**

(cc) Schedule 28 – Deed of Warranty;

(dd) Schedule 29 – Site Clearance Requirements; and

(ee) Schedule 30 – Parent Company Guarantee.

(together, the "**Contract**") constitute the entire agreement between the Parties in respect of the Works and the Contract supersedes all previous agreements, undertakings and communications, whether written or oral, relating to the subject matter of the Contract.

The Parties shall not be entitled to rely upon nor claim at law whether in the contract, tort or otherwise in law in relation to any statements, representations or warranties made or given by either Party during the course of negotiations which are not contained in or referred to in the Contract.

3. PERFORMANCE

(a) The Contractor shall carry out the Works in accordance with the Contract and shall perform, fulfil, comply with, submit to and observe all and singular the provisions, conditions, stipulations and requirements and all matters and things expressed or shown in or reasonably to be inferred from the Contract which are to be performed, fulfilled, complied with, submitted to or observed by or on the part of the Contractor.

(b) In consideration of the promises made by the Contractor in the Contract, the Owner shall make payment to the Contractor of the Contract Price at the times and in the manner provided for in the Contract and shall perform, fulfil, comply with, submit to and observe the provisions, conditions, stipulations and requirements expressed or shown in the Contract which are to be performed, fulfilled, complied with, submitted to or observed by or on the part of the Owner.

(c) The Parties agree that they shall do everything reasonably necessary to give effect to the Contract.

4. CONTRACT PRICE

As of the Contract Date the Contract Price is the fixed lump sum amount of USD [●], as further particularised in Schedule 13 [Contract Price and Division of Works], which shall be inclusive of all Taxes, and any other charges in relation to the Works, within and outside Vietnam. The Contract Price shall not be subject to any variation (including for cost escalation or exchange rate fluctuations) except as expressly provided for, in the Contract. ***[Note to Bidders – if the Contractor is a Vietnamese entity, all references to USD will be changed to VND, and all payments will be made in VND only]***

5. REPRESENTATIONS AND WARRANTIES

The Contractor represents and warrants to the Owner the matters set out in Articles 5.1 [Due Incorporation, Existence, and Good Standing] to 5.9 [No Undisclosed Agreements or Restrictions] below, as well as paragraph (b) of Clause 23 of the conditions [Sanctions], which shall be deemed to have been given on the Contract Date, on the Effective Date and on each date to which payment is made by the Owner to the Contractor under the Contract.

Where the Contractor comprises more than one legal entity (including a joint venture, consortium, or unincorporated grouping), each such entity makes the representations and warranties set out in Articles 5.1 [Due Incorporation, Existence, and Good Standing] to 5.9 [No Undisclosed Agreements or Restrictions] below as well as paragraph (b) of Clause 23 of the conditions [Sanctions], individually and severally, as well as collectively.

5.1 Due Incorporation, Existence, and Good Standing

(a) It is a company duly incorporated, validly existing, and in good standing under the laws of its jurisdiction of incorporation or establishment.

(b) It has the corporate power and authority to own its assets, conduct its business as presently conducted, and to enter into and perform its obligations under the Contract.

(c) It is not in breach of any material obligation under its constitutional documents.

5.2 Power, Authority, and Consents

(a) It has full power, authority, and legal right to enter into, execute, deliver, and perform the Contract and all obligations hereunder.

(b) All necessary corporate, board, shareholder, or other approvals, consents, and authorisations required to enable it to enter into and perform the Contract have been duly obtained and are in full force and effect.

(c) The person(s) executing the Contract on its behalf have been duly authorised to do so.

5.3 Due Execution and Enforceability

The Contract has been duly executed and delivered by it and constitutes its legal, valid, and binding obligation, enforceable against it in accordance with its terms, subject only to applicable bankruptcy, insolvency, or similar laws affecting creditors' rights generally and to general principles of equity.

5.4 No Conflict or Violation

The execution, delivery, and performance of the Contract by it does not and will not:

(a) conflict with or result in a breach of any provision of its constitutional documents;

(b) conflict with or result in a breach of any law, regulation, order, judgment, or decree applicable to it or its assets;

(c) conflict with, or result in a breach of, or constitute a default under, any agreement, contract, instrument, or other obligation to which it is a party or by which it or its assets are bound; or

(d) require any consent, approval, authorisation, or other action by, or filing with or notification to, any governmental or regulatory authority, except as has already been obtained or made.

5.5 No Litigation or Proceedings

(a) There are no actions, suits, proceedings, or investigations pending or, to its knowledge, threatened against it before any court, arbitral tribunal, or governmental Instrumentality which, if adversely determined, would have a material adverse effect on its ability to perform its obligations under the Contract.

(b) It is not subject to any judgment, order, or decree of any court or governmental Instrumentality which would materially and adversely affect its ability to perform its obligations under the Contract or affect the validity or enforceability of this Contract.

5.6 No Insolvency or Similar Proceedings

(a) It is not insolvent, bankrupt, or unable to pay its debts as they fall due.

(b) No receiver, administrator, liquidator, or similar officer has been appointed in respect of it or any of its assets.

(c) No voluntary or involuntary proceedings or petitions have been instituted or filed by or against it seeking bankruptcy, insolvency, reorganisation, winding up, or similar relief, and no such proceedings or petitions are pending or threatened.

5.7 Compliance with Laws

(a) It is in compliance with all Applicable Laws relevant to the execution, delivery, and performance of the Contract.

(b) It holds all necessary permits, licences, consents, and approvals required for the conduct of its business and the performance of its obligations under the Contract, and no consent of any other person (including, without limitation, any stockholder or creditor of the Contractor) is required in connection with the execution, delivery, performance, validity, or enforceability of this Contract, except as has already been obtained.

5.8 No Immunity

(a) It is not entitled to claim immunity from suit, execution, attachment, or other legal process in respect of itself or its assets in any jurisdiction in connection with any proceedings relating to the Contract.

5.9 No Undisclosed Agreements or Restrictions

It is not a party to any agreement or subject to any restriction which would prevent it from entering into or performing its obligations under the Contract.

6. COMMENCEMENT

6.1 Effectiveness of the Contract

The following provisions of the Contract, and any other provisions that are required to interpret or give effect to the following provisions, come into full force and effect on the Contract Date:

(a) Articles 1 [Definitions], 2 [Documents Comprising the Contract], 3(c) [Performance], 5 [Representations and Warranties] and 7 [Communications]; and

(b) Clauses 1 [General Provisions], 18 [Insurance], 20 [Claims, Disputes and Arbitration], 21 [Financing], 22 [Anti-Bribery and Corruption], 23 [Sanctions], and Sub-Clauses 4.2 [Performance Bond], 4.2A [Parent Company Guarantee] and 14.2 [Advance Payment] of the Conditions.

6.2 Commencement of obligations

Except as provided under Article 6.1 [Effectiveness of the Contract], the Contract shall not come into force until each of the Conditions Precedent has been satisfied or waived in accordance with Article 6.4 [Satisfaction or waiver of Conditions Precedent], and the Owner has issued a Notice to Proceed to the Contractor.

6.3 Conditions Precedent

Except as provided under Article 6.1 [Effectiveness of the Contract], the Contract will have no force or effect unless and until:

(a) the Contractor has delivered to the Owner the Performance Bond in accordance with the requirements of Sub-Clause 4.2 [Performance Bond] of the Conditions;

(b) the Contractor has delivered to the Owner a duly executed Parent Company Guarantee in accordance with Sub-Clause 4.2A [Parent Company Guarantee] of the Conditions;

(c) the Contractor has delivered to the Owner the Advance Payment Bond in accordance with the requirements of Sub-Clause 14.2 [Advance Payment] of the Conditions;

(d) the Contractor has delivered to the Owner the Direct Agreement duly executed by the Contractor, in accordance with Clause 21[Financing];

(e) the Contractor has provided evidence to the Owner that it has effected the insurances it is required to effect in accordance with Clause 18 [Insurance] of the Conditions;

(f) the Contractor has the requisite Consents in place as shown in Schedule 5 [Permits, Licences and Approvals], sufficient to allow the Works to commence under the Contract without delay and has provided evidence of such Consents to the Owner;

(g) the Contractor has provided to the Owner legal opinions as required under Sub-Clause 21(g) [Financing] of the Conditions;

(h) the Contractor has delivered to the Owner a duly executed waiver and release, in the form set out in 17 [Contractor's Pre-Effective Date Waiver] and satisfactory to the Owner, pursuant to which the Contractor irrevocably waives and releases the Owner from any and all Losses arising out of or in connection with any event, circumstance, or matter occurring or incurred prior to the Effective Date;

(i) the Contractor has received written notice from the Owner that all Governmental Project Documents and the LNG SPA have been executed and are fully effective (save for any requirement that the Contract be fully effective); and

(j) the Contractor has received written notice from the Owner that Financial Close has occurred,

("**Conditions Precedent**").

6.4 Satisfaction or waiver of Conditions Precedent

(a) Each Party shall:

(i) use all reasonable endeavours to satisfy, or procure the satisfaction of, each of the Conditions Precedent required to be satisfied by such Party by the Conditions Precedent Deadline (as extended under Article 6.5 [Conditions Precedent Deadline] of the Contract Agreement, if applicable);

(ii) keep the other Party regularly informed of the status of each of the Conditions Precedent for which it is responsible, including if it becomes aware that any of the Conditions Precedent are not capable of being satisfied in accordance with its terms or is unlikely to be satisfied on or before the Conditions Precedent Deadline; and

(iii) promptly notify the other Party in writing when a Condition Precedent for which it is responsible has been satisfied.

(b) Each Condition Precedent may only be waived in writing by the Owner in its absolute discretion.

6.5 Conditions Precedent Deadline

(a) If the Conditions Precedent have not been fulfilled or waived by [●] (the "**Conditions Precedent Deadline**") ***[Note to Bidder – longstop date for achieving CPs to be discussed.]*** or such later date as may be notified by the Owner to the Contractor in writing, then the Owner may issue a notice of non-fulfilment to the Contractor.

(b) If a notice of non-fulfilment is given, then:

(i) the Contract will terminate automatically on the date specified in the notice; and

(ii) neither Party shall have any liability to or claim against the other Party as a result of or in connection with such non-fulfilment or non-waiver other than:

(A) in connection with any breach of Article 6.4 [Satisfaction or waiver of Conditions Precedent] of this Contract Agreement; and

(B) for any payment due to the Contractor in accordance with Article 6.7 [Limited Notice to Proceed] of this Contract Agreement.

6.6 Notice to Proceed

(a) The Owner shall within fourteen (14) calendar days after all the Conditions Precedent have been satisfied or waived in accordance with Article 6.4(b) [Satisfaction or waiver of Conditions Precedent], issue the Notice to Proceed.

(b) The Notice to Proceed shall state the date on which the Contractor is required to commence performance of the Works ("**Effective Date**"). The Contractor shall commence Works on Site on, or as soon as is reasonably practicable, after the Effective Date, and shall then proceed with the Works with due expedition and diligence.

6.7 Limited Notice to Proceed

(a) Prior to the Owner's issuance of the Notice to Proceed in accordance with Article 6.6 [Notice to Proceed] of this Contract Agreement, the Contractor may request the Owner to issue one or more Limited Notice(s) to Proceed for the purpose of the Contractor commencing certain early works ("**Early Works**"), and the Owner may issue such LNTP(s) which shall:

(i) specify the precise scope of the Early Works;

(ii) specify the date on which the Contractor shall commence each of the Early Works;

(iii) specify the areas within or outside the Site on which the Contractor is permitted to carry out the Early Works; and

(iv) specify any other matters relevant to the Early Works,

(collectively, the "**LNTP Requirements**").

(b) The Owner may also in an LNTP specify any conditions precedent to the Contractor's right to commence the Early Works ("**LNTP CPs**"), in which case the satisfaction of such LNTP CPs shall be at the Owner's absolute discretion and evidenced by a written notice from the Owner.

(c) The Contractor shall, from the date of the Owner's issuance of an LNTP under Article 6.7(a) or, if the LNTP includes LNTP CPs, from the date on which the Owner gives written notice of the satisfaction of such LNTP CPs, until the issuance of the Notice to Proceed in accordance with Article 6.6 [Notice to Proceed]:

(i) perform the Early Works in accordance with the LNTP Requirements;

(ii) notwithstanding Article 6.1 [Effectiveness of the Contract] of this Contract Agreement, perform each of the Early Works in accordance with all the Contractor's obligations set out in the Conditions in respect of the Works such that the Early Works shall form part of the Works, and be compliant with the Contract, upon the issuance of the Notice to Proceed; and

(iii) upon the issuance of the Notice to Proceed, all Early Works shall be deemed to form part of the Works for all purposes under the Contract, including but not limited to the application of all defects liability, warranty, and performance obligations of the Contractor as set out in the Contract. The Defects Liability Period and any applicable warranty periods for the Early Works shall commence in accordance with the provisions of the Contract as if the Early Works had been performed as part of the Works.

(d) The Owner shall not be liable to make payment for Early Works (subject to Article 6.7(h) of this Contract Agreement) unless and until the Notice to Proceed is

issued, at which time payment for the Early Works shall be made subject to Clause 14 [Contract Price and Payment] of the Conditions.

(e) If the Owner issues any LNTP, the Owner shall, from the date of issue of such LNTP until the Effective Date, use reasonable endeavours to provide any reasonable assistance and cooperation to facilitate the Contractor's performance of the Early Works that may be requested by the Contractor in writing.

(f) The Contractor shall have No Claim for any circumstances or events arising out of or in connection with the Early Works, to the extent such circumstances or events occur prior to the Effective Date.

(g) The Contractor shall indemnify and hold the Owner harmless against and from any and all Losses howsoever arising (including any claims, fines penalties from any third parties or the relevant authorities) resulting from or in relation to the Early Works.

(h) If:

(i) the Contract terminates pursuant to Article 6.5(b)(i) [Conditions Precedent Deadline] of this Contract Agreement, then the Owner shall be liable to pay to the Contractor, within sixty (60) calendar days after the date on which such work has been fully and securely transferred to the Owner's possession and custody, an amount equivalent to the Contractor's Costs reasonably and properly incurred of actual work done in respect of the Early Works to the extent such works are demonstrably beneficial to the Project and provided that all related deliverables required by the LNTP Requirements have been submitted to the Owner; or

(ii) the Owner has not issued the Notice to Proceed on or before the Conditions Precedent Deadline, then the Owner shall be liable to pay to the Contractor, within sixty (60) calendar days after the date on which the Owner receives a valid invoice for such amounts, any amounts that the Parties agree in writing are Costs reasonably and properly incurred by the Contractor for actual work done in respect of the Early Works, to the extent such works are demonstrably beneficial to the Project and provided that all related deliverables required by the LNTP Requirements have been submitted to the Owner. Any amounts paid to the Contractor under this Article 6.7(h)(ii) shall be deemed to be pre-payments of the Contract Price and shall be deducted from the first interim payment(s) that are, or would but for such deductions otherwise have been, due to the Contractor in accordance with Sub-Clause 14.3 [Interim Payment] of the Conditions after the Effective Date.

The amounts payable under this sub-paragraph (h) shall be calculated on an actual cost basis, supported by detailed documentation and evidence of Costs incurred by the Contractor, or on such other basis (including an agreed lump sum or milestone-based payment) as may be agreed in writing by the Parties prior to the commencement of the relevant Early Works.

The Owner shall have the right to audit all records, supporting documents, and accounts related to the Early Works to verify the accuracy and reasonableness of any payment

claim made by the Contractor in respect of the Early Works. The Contractor shall provide the Owner and its representatives with full access to all such records and shall cooperate fully with any audit or review conducted by the Owner.

In no event shall the total payments for Early Works exceed USD [●] unless otherwise agreed in writing by the Owner.

7. COMMUNICATIONS

The address of each Party for the service of notices under the Contract is as follows:

(a) the Owner:

[●]

(b) the Contractor:

[●]

Executed by the Owner and the Contractor as a contract on the date first set out above.

Signed for and on behalf of **Quang Ninh LNG Power JSC**	Signed for and on behalf of **[●]**
by:	by:
[Position] [Name]	[Position] [Name]

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Where the Contractor comprises more than one legal entity (including a joint venture, consortium, or unincorporated grouping), each such entity makes the representations and warranties set out in Articles 5.1 [Due Incorporation, Existence, and Good Standing] to 5.9 [No Undisclosed Agreements or Restrictions] below as well as paragraph (b) of Clause 23 of the conditions [Sanctions], individually and severally, as well as collectively 6

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1 General Provisions

1.1 Definitions

In the Conditions of Contract (these "**Conditions**"), all Schedules and other documents comprising the Contract, unless otherwise provided, the following words and expressions shall have the meanings stated.

1.1.1.1 "**Absolute Guarantee**" or "**Absolute Performance Levels**" means each of the absolute performance guarantees or absolute performance levels identified in Schedule 3A [Performance Guarantees for LNG Terminal] and Schedule 3B [Performance Guarantees for CCPP], which each relevant part of the Works (including each Unit and the LNG Terminal) and the Facility as a whole must achieve during the Performance Tests, but does not include the Performance Guarantees or Minimum Performance Guarantees.

1.1.1.2 "**Acceptable Credit Rating**" means a credit rating for the relevant bank's long term debt obligations of not less than Standard & Poor or Fitch equivalent of [A-] or Moody's equivalent of [A3], or such other credit rating acceptable to the Owner.

1.1.1.3 ["**Access Road**" means all such vehicular access to be constructed and maintained by the Contractor, at the Contractor's cost, between public roads and specific areas of the Site for the use by the Contractor during the performance of the Works.] ***[Note to Bidders: As the access arrangements are finalised, this definition may be updated.]***

1.1.1.4 "**Advance Payment**" has the meaning given to it in Sub-Clause 14.2 [Advance Payment].

1.1.1.5 "**Advance Payment Bond**" has the meaning given to it in Sub-Clause 14.2 [Advance Payment].

1.1.1.6 "**Affiliate**" means, in relation to any person or entity, any other person or entity that directly or indirectly controls, is controlled by, or is under common control with, such person or entity. For the purposes of this definition, "control" means the power, whether directly or indirectly and whether by the ownership of share capital, possession of voting power, contract or otherwise, to direct or cause the direction of the management and policies of a person or entity, whether through the ownership of voting securities, by contract or otherwise, and "controlled" and "controlling" shall be construed accordingly.

1.1.1.7 "**Agreed Limit**" has the meaning given to it in Sub-Clause 4.19 [Utilities].

1.1.1.8 "**Applicable Law**" means, with reference to any Person: (a) all Vietnam Legal Requirements; (b) all other Laws applicable to it; (c) the Environmental and Social Requirements and Health and Safety Requirements; and (d) any applicable Anti-

corruption Laws and other Laws relating to anti-money laundering, anti-terrorism and Sanctions.

1.1.1.9 ["**Approved list**" has the meaning given to it in Sub-Clause 4.25 [Duties].] ***[Note to Bidders – subject to revision following finalisation of the tax regime for the project, including the availability of any custom duty and tariff exemptions.]***

1.1.1.10 "**Arbitral Panel**" has the meaning given to it in Sub-Clause 20.4(c)(i) [Arbitration].

1.1.1.11 "**Arbitrator**" has the meaning given to it in Sub-Clause 20.4(c)(i) [Arbitration].

1.1.1.12 "**As-Built Drawings**" has the meaning given to it in Sub-Clause 5.6 [As-Built Drawings].

1.1.1.13 "**Authorised Persons**" means (a) the Contractor's Personnel and Subcontractors; (b) the Owner's Personnel; (c) the representatives of the Financing Parties, Lessor, Power Purchaser, or any Governmental Instrumentality, including the Independent Engineer and any independent engineer required to by appointed by the Power Purchaser; and (d) any other personnel notified to the Contractor by (or on behalf of) the Owner from time to time.

1.1.1.14 "**Base Date**" means [●]. ***[Note to Bidders – to be discussed, but in principle this should be the date on which the Contract Price and all terms under this document are finalised.]***

1.1.1.15 "**Base Rate**" means the six (6) month Term SOFR as of the date of determination.

1.1.1.16 ["**Business Day**" means any day other than a Saturday, Sunday or any other day which is a legal holiday or a day on which banking institutions are permitted to be closed in Tokyo, Singapore or, solely for the purposes of payments from or within Vietnam and currency conversions involving Vietnamese Dong, Hanoi.] ***[Note to Bidders: to be updated pending confirmation of final lenders.]***

1.1.1.17 "**Change**" means any change to the Owner's Requirements or the Works, which is instructed or approved as a variation under Clause 1312 [Changes and Adjustments].

1.1.1.18 "**Change Direction**" means a direction by the Owner to the Contractor for a Change under Clause 13 [Changes and Adjustments].

1.1.1.19 ["**Change in Law**" means a change in any Law of Vietnam after the [Base Date] which prevents, impedes or delays performance or makes it impossible, unlawful, more costly or more time consuming to fulfil the obligations and/or to receive the rights and benefits under the Contract, and shall include:

(a) the enactment of any new Law of Vietnam;

(b) the modification or repeal of any Law of Vietnam;

(c) the application or the repeal of application to a Party and/or their respective facilities and equipment relevant to performance of their respective obligations under the Contract of any Law of Vietnam which had been enacted but that had not become effective prior to the Base Date;

(d) a change in the interpretation or application of any Law of Vietnam by any Governmental Instrumentality.] ***[Note to Bidders – subject to revision following finalisation of the change in law regime under the PPA. Ultimately, the Contractor's entitlement to change in law relief will need to be fully aligned with, and no broader than the Owner's corresponding entitlement under the PPA]***

1.1.1.20 "**Commercial Operation Date**" has the meaning set forth in the PPA.

1.1.1.21 "**Commissioning**" means all powering-up, energizing, checking, testing, verification, loop testing, and motor run testing of assemblies, loops, or systems to ensure that functional and operational actions comply with the requirements of the Contract, as further described in the Contract.

1.1.1.22 "**Conditions Precedent**" has the meaning given to it in Article 6.3 [Conditions Precedent] of the Contract Agreement.

1.1.1.23 "**Conditions Precedent Deadline**" has the meaning given to it in Article 6.5 [Conditions Precedent Deadline] of the Contract Agreement.

1.1.1.24 "**Confidential Information**" means all information of a confidential nature disclosed by whatever means by one Party (the "**Disclosing Party**") either directly or from any person associated with the Disclosing Party, to the other Party (the "**Receiving Party**") which concerns the business, operations or customers of the Disclosing Party or its Affiliates and includes the provisions or subject matter of the Contract, the Works or any agreements or documents executed by the Parties in connection with the Contract or the Works.

1.1.1.25 "**Consent**" means any authorisation, consent, approval, licence, lease, ruling, permit, exemption, filing, variance, order, judgment, decree, publication, notice to, declaration of or with or regulation by or with any Governmental Instrumentality relating to the Works (including the LNG Terminal, any Unit, the Power Plant or the Facility) or the Project, or to the performance by the Parties of any obligations under the Contract, including the approvals listed in Schedule 5 [Permits, Licenses and Approvals].

1.1.1.26 "**Consortium**" has the meaning given to it in Sub-Clause 1.14 [Joint and Several Liability].

1.1.1.27 "**Consortium Agreement**" has the meaning given to it in Sub-Clause 1.14(a)(i) [Joint and Several Liability].

1.1.1.28 "**Consortium Leader**" has the meaning given to it in Sub-Clause 1.14(c)(i) [Joint and Several Liability].

1.1.1.29 "**Consortium Member**" has the meaning given to it in Sub-Clause 1.14 [Joint and Several Liability].

1.1.1.30 "**Consumables**" means those materials normally replaced due to wear and tear associated with the day–to–day maintenance (routine, preventive and corrective) and inspection of the Facility that are required for the proper performance of the Facility which require regular attention, and those items which have to be changed, refilled, replenished or re-loaded on a periodic basis, to meet availability or efficiency targets, including, materials such as insulating tapes, emery papers, resins, gases (required for welding, HVAC, CO2 fire protection, insulation, etc.), lubricants, oils, greases, detergents, chemicals, air, paints, plastic covers, ribbons, ropes, and office and laboratory consumables such as ink cartridges, toners, CD's, paper, tags, glassware and so forth, all as required or advisable according to Prudent Utility Practice.

1.1.1.31 "**Contract**" or "**EPC Contract**" means the documents identified in Article 2 [Documents Comprising the Contract] of the Contract Agreement as forming part of the contract between the Parties.

1.1.1.32 "**Contract Agreement**" means the contract agreement referred to in Sub-Clause 1.6 [Contract Agreement].

1.1.1.33 "**Contract Date**" means the date on which the Contract Agreement has been executed by all Parties.

1.1.1.34 "**Contracted Date for Completion**" has the meaning given to it in Sub-Clause 8.2 [Contracted Date for Completion].

1.1.1.35 "**Contract Price**" or "**EPC Contract Price**" means the agreed amount stated in Article 4 [Contract Price] of the Contract Agreement, as may be adjusted from time to time pursuant to the Contract.

1.1.1.36 "**Contractor**" means the person(s) named as contractor in the Contract Agreement and the legal successors in title to this person(s).

1.1.1.37 "**Contractor Background IP**" has the meaning given in Sub-Clause 1.10 [Owner's Use of Contractor's Documents].

1.1.1.38 "**Contractor's Consents**" has the meaning given to it in Sub-Clause 2.2 [Permits, Licences and Approvals].

1.1.1.39 "**Contractor's Documents**" means the calculations, computer programs and other software, drawings, manuals, models and other documents of a technical nature supplied by the Contractor under the Contract; as described in Sub-Clause 5.2 [Contractor's Documents].

1.1.1.40 "**Construction Equipment**" means any and all equipment, materials, tools, implements, supplies, structures, apparatus, machinery, vehicles, items and other things (including, without limitation, motor vehicles) purchased, rented, required for or furnished for or in connection with the construction of the Facility or otherwise purchased, rented, required for or furnished in connection with the performance and completion of the Works and remedying any Defects, Latent Defects, and Serial Defects. However, Construction Equipment excludes Temporary Works, Plant, Materials and any other things intended to form or forming part of the Facility.

1.1.1.41 "**Contractor's Personnel**" means the Contractor's Representative, its Affiliates and all personnel whom the Contractor utilises on Site, who may include the staff, labour and other employees of the Contractor and of each Subcontractor; and any other personnel assisting the Contractor in the execution of the Works.

1.1.1.42 "**Contractor's Representative**" means the person named by the Contractor in the Contract or appointed from time to time by the Contractor under Sub-Clause 4.3 [Contractor's Representative], who acts on behalf of the Contractor.

1.1.1.43 "**Co-ordination Committee**" has the meaning given to it in Sub-Clause 4.6 [Co-operation].

1.1.1.44 "**Cost**" means all direct expenditure reasonably incurred (or to be incurred) by the Contractor, whether on or off the Site, including overhead and similar charges, but does not include profit. Where the Contractor is entitled under a Sub-Clause of these Conditions to payment of Cost, it shall be added to the Contract Price.

1.1.1.45 "**COVID-19**" means outbreak of the strain of the coronavirus in that name, first reported in Wuhan, China on 31 December 2019 (and any related strains which may develop from that strain) declared as a pandemic.

1.1.1.46 "**day**" means a twenty-four (24)-hour period beginning and ending at 00:00 midnightICT Indochina Time and **"year"** means three hundred and sixty five (365) calendar days.

1.1.1.47 "**Defect**" means:

(a) any defect, damage, fault, failure, malfunction or omission in the Works; or

(b) any other aspect of the Works which are not in accordance with the requirements of the Contract,

except to the extent caused by:

(c) fair wear and tear after the Facility Taking Over Date; or

(d) operation and maintenance activities by the Owner (or its nominees) after the Facility Taking Over Date not in material compliance with the operation and maintenance manuals provided by the Contractor to the Owner in respect of the Works,

and the term "**Defective**" shall be construed accordingly.

1.1.1.48 "**Delay Liquidated Damages**" or "**Delay LDs**" has the meaning given to it in Sub-Clause 8.7 [Delay Damages].

1.1.1.49 "**Defects Liability Period**" means the initial period of twenty four (24) months for notifying Defects in the whole of the Works under Sub-Clause 11.1 [Completion of Outstanding Work and Remedying Defects] (as may be extended pursuant to Sub-Clause 11.3 [Extension of Defects Liability Period]), calculated from the Facility Taking Over Date.

1.1.1.50 "**Direct Agreement**" has the meaning given to it in Clause 21[Financing].

1.1.1.51 "**Dispute**" has the meaning given to it in Sub-Clause 20.2(a) [Amicable Settlement].

1.1.1.52 "**Early Works**" has the meaning given to it in Article 6.7(a) [Limited Notice to Proceed] of the Contract Agreement.

1.1.1.53 "**Effective Date**" has the meaning given to it in Article 6.6 [Notice to Proceed] of the Contract Agreement.

1.1.1.54 "**Electrical Interconnection Facilities**" means the Power Plant's 500kV switchyard as further described in the Owner's Requirements and elsewhere in the Contract.

1.1.1.55 "**EVN**" means Vietnam Electricity.

1.1.1.56 "**Environmental and Social Requirements**" has the meaning given to it in Sub-Clause 4.18 [Environmental and Social Protection].

1.1.1.57 "**Environmental and Social Management Plan**" has the meaning given to it in Sub-Clause 4.18 [Environmental and Social Protection].

1.1.1.58 "**Equator Principles**" means the statement of principles dated [June 2013 developed by the Equator Principles Financial Institutions] and adopted by various banks and financial institutions worldwide in connection with determining, assessing and managing the social and environmental risks of projects, as may be updated, supplemented or replaced and applicable from time to time.

1.1.1.59 "**Equipment**" means the apparatus, machinery and vehicles intended to form or forming part of the Facility.

1.1.1.60 "**EVN Grid Code**" means, collectively, the code, regulations and standards by the Government Instrumentality for the regulation of the electric transmission and distribution systems and any power stations connected to the foregoing systems, through which the power capacity generated from the Facility will be distributed by EVN to end-users.

1.1.1.61 "**Expert**" has the meaning given to it in Sub-Clause 20.3 [Expert].

1.1.1.62 "**Expert Determination**" means the process by which a Dispute is referred to and decided by an Expert in accordance with Sub-Clause 20.3 [Expert].

1.1.1.63 "**Export Credit Agency**" or "**ECA**" means an export credit agency, multilateral institution or other institution providing export credit facilities (whether in the form of credit facilities, guarantees, insurances or otherwise) in respect of the Project.

1.1.1.64 "**External Terminal Point**" means the connection points between the Facility and external infrastructure or utilities, as defined in the Owner's Requirements - Appendix 9 – Attachment 1 – External Terminal Point.

1.1.1.65 "**Facility**" or "**Plant**" means the Power Plant and the LNG Terminal.

1.1.1.66 "**Facility Taking Over**" means Taking Over in respect of the whole of the Works and the Facility.

1.1.1.67 "**Facility Taking Over Certificate**" means the Taking Over Certificate issued by the Owner certifying the Facility Taking Over Date and including a statement of the date upon which the Commercial Operation Date of the Facility occurred.

1.1.1.68 "**FEED**" means front end engineering design.

1.1.1.69 "**Facility Taking Over Date**" means the Taking Over Date for the whole of the Works and the Facility.

1.1.1.70 "**Final Taking Over Certificate**" means the certificate issued under Sub-Clause 14.8 [Final Taking Over Certificate].

1.1.1.71 "**Financial Close**" means the date when all relevant Financing Agreements required to fund fully the development, construction, ownership, and initial working capital for the Project have been duly executed and either (a) an initial funding thereunder has occurred or (b) the Owner has received a certificate from the lead bank, agent, or trustee acting for the Financing Parties confirming that all conditions precedent to the initial drawdown of funds thereunder have been satisfied or waived by the Financing Parties.

1.1.1.72 "**Financing Agreement**" means any and all loan agreements, bonds, indentures, security agreements, note or bond purchase agreements, interest rate or currency hedging arrangements, ECA loans or ECA credit, insurance or guarantee support or funding of any kind, and any refinancing of any of the same, and other collateral, security and related documents entered into by or pursuant to agreements entered into by the Owner with respect to the financing of the Project or any refinancing thereof.

1.1.1.73 "**Financing Party**" means any person or persons providing commercial debt, letter of credit, bond, working capital, hedging, bond or capital market financing facilities, ECA loans or ECA credit, insurance or guarantee support or funding of any kind, and any refinancing of any of the same, under the Financing Agreements, and their permitted successors, transferees and assigns, including any agent or trustee for such person or persons.

1.1.1.74 "**Final Statement**" means the statement defined in Sub-Clause 14.9(b)14.9 [Application for Final Payment].

1.1.1.75 "**First Dispute**" has the meaning given to it in Clause 20.5(a) [Joinder of Disputes].

1.1.1.76 "**Force Majeure Event**" has the meaning given to it in Clause 19 [Force Majeure Event].

1.1.1.77 "**Gas Turbine**" means the following systems forming part of the gas turbine in each Unit, as more particularly described in the Owner's Requirements:

(a) the gas turbine block;

(b) the compressor, turbine and bearings;

(c) the compressor variable inlet guide vanes;

(d) the compressor blow-off system;

(e) the combustion system;

(f) the turning gear;

(g) the fuel gas system;

(h) the cooling fan system;

(i) the starting and cooldown systems;

(j) the cooling water system;

(k) the gas turbine acoustical enclosure;

(l) the water mist fire protection system;

(m) air intake system;

(n) the evaporative cooler;

(o) the inlet ducting and silencing;

(p) the exhaust system;

(q) the hydraulic control and protection systems;

(r) the lube and power oil system;

(s) turbine and compressor draining system; and

(t) the gas turbine control system.

1.1.1.78 "**Gas Delivery Point**" means the flange located at the downstream side of the Gas Metering Station at the point where the LNG Terminal supplies fuel gas to the Power Plant, as further described in the Owner's Requirements and elsewhere in the Contract.

1.1.1.79 "**Gas Facilities**" means all the required facilities and infrastructure in relation to the gas to be used for the testing, Commissioning and operation of the Power Plant, including the facilities and infrastructure connecting the Gas Delivery Point and the Power Plant, as more particularly described in the Owner's Requirements under the section titled fuel *gas system*.

1.1.1.80 "**Gas Metering Station**" means the facility consisting of the gas-flow metering system for measuring the quantity and the characteristics of fuel gas being transferred to the Power Plant as further described in the Owner's Requirements and elsewhere in the Contract.

1.1.1.81 "**Good EPC Contractors**" means highly competent, reputable, expert, experienced and equipped designers, consultants, commissioners, engineering and construction contractors and EPC contractors who regularly act in the capacity of which the Contractor is engaged and who are experienced in the design, engineering, procurement, construction, testing, Commissioning, operating and maintaining construction works, projects, plants, facilities, units and equipment of a similar type, nature, size, scope, conditions and complexity comparable to the Works in a lawful, safe, environmental and economical manner.

1.1.1.82 "**Prudent Utility Practice**" means those practices, methods, techniques, standards, codes, specifications, and acts conforming to all Applicable Laws, and which are generally accepted, recognised and followed by Good EPC Contractors in applicable works of a similar type, nature, size, scope, conditions and complexity comparable to the Works, and which are fit for the purposes required

under this Contract, and in accordance with the exercise of a high degree of skill, care, diligence, prudence and foresight to be expected from a Good EPC Contractor, and standards of prudence applicable to the gas-fired electric utility industry (taking into account conditions in Vietnam and any Vietnam Legal Requirements), in light of facts known or which should reasonably have been known at the time, which would have been expected to accomplish the desired result at the lowest reasonable cost consistent with reliability, environmental protection, safety and expedition.

1.1.1.83 "**Goods**" means Construction Equipment, Materials, Equipment and Temporary Works, Spare Parts, Special Tools and other items required for the Works, or any of them as appropriate.

1.1.1.84 "**Government**" means the government of the Socialist Republic of Vietnam.

1.1.1.85 "**Government Event**" means the following events, to the extent occurring in Vietnam, or in relation to Vietnam:

[●]

[Note to Bidders – this definition will be populated once the PPA has been finalised, on the condition that the PPA gives the Owner an entitlement to relief for political force majeure type events. Ultimately, the Contractor's entitlement to relief for such events will need to be fully aligned with, and no broader than the Owner's entitlement under the PPA (if any).]

1.1.1.86 "**Governmental Project Documents**" means the Land Lease Agreement, the PPA and [●]. ***[Note to Bidders – subject to revision following finalization of all governmental project documents.]***

1.1.1.87 "**Governmental Instrumentality**" means the Government or any ministries, national, provincial or city departments, bodies, boards, bureaus, instrumentalities, commissions, branches, agencies, courts, tribunals, judicial authorities, legislative bodies, administrative bodies, corporations, commissions or state owned companies of Vietnam, regulatory bodies, autonomous or quasi-autonomous entities or taxing authorities or political subdivision thereof, in each case within the Socialist Republic of Vietnam and any successor to or assignee of any of the foregoing, and shall include the Lessor and Power Purchaser.

1.1.1.88 "**Gross Negligence**" means acts or omissions seriously departing from the standard of care which would be expected of a reasonable person, or, in the case of the Contractor, a contractor exercising Prudent Utility Practice, taking into account the degree of lack of care, the seriousness of the Loss reasonably foreseeable as a result of the relevant act or omission, and the degree of likelihood of such Loss arising and shall include recklessness.

1.1.1.89 "**Guaranteed Emissions**" means each of the emissions conditions, standards, or levels described in Schedule 3A [Performance Guarantees for LNG Terminal] and Schedule 3B [Performance Guarantees for CCPP] which each relevant part of the Works must achieve during the Performance Tests, but does not include any such requirements identified as Minimum Performance Guarantees or Absolute Guarantees.

1.1.1.90 "**Guaranteed Noise Level**" means each of the noise levels described in Schedule 3A [Performance Guarantees for LNG Terminal] and Schedule 3B [Performance Guarantees for CCPP] which each relevant part of the Works must achieve during the Performance Tests, but does not include any such requirements identified as Minimum Performance Guarantees or Absolute Guarantees.

1.1.1.91 "**Guaranteed Net Electrical Output**" means the guaranteed Net Electrical Output of a Unit or the Power Plant as a whole (as the case may be) as set out in Part 1 of Schedule 3B [Performance Guarantees for CCPP].

1.1.1.92 "**Guaranteed Weighted Net Heat Rate**" means the guaranteed weighted Net Heat Rate of a Unit or the Power Plant as a whole (as the case may be) as set out in Part 1 of Schedule 3B [Performance Guarantees for CCPP].

1.1.1.93 "**Guarantor**" means [●], or any replacement guarantor approved by the Owner.

1.1.1.94 "**GW**" means gigawatt.

1.1.1.95 "**Hazardous Substance**" means any petroleum or petroleum products, any radioactive materials, asbestos in any form that is or could become friable, urea formaldehyde foam insulation, and transformers or other equipment that contain dielectric fluid containing polychlorinated biphenyls and any other chemicals, materials or substance, unexploded ordnance, contaminants, wastes, any toxic substances (whether solids, liquids, gases) which by its nature or concentration or quantity, either directly or indirectly, can or might reasonably expected to pollute and/or harm the environment, health, the perpetuation of livelihood of human and other living creatures, and are now or hereafter become subject to regulation, control or re-mediation under Applicable Laws and applicable policies and requirements of the Owner or the Financing Parties under this Contract, including those Applicable Laws and applicable policies and requirements relating to the discharge, emission, spill, release, or threatened release into the environment or relating to the disposal, distribution, manufacture, processing, storage, treatment, transport, or other use of such substances.

1.1.1.96 "**HS Management Plan**" has the meaning given to it in Sub-Clause 4.5(b) [Health and Safety and Management].

1.1.1.97 "**Health and Safety Requirements**" has the meaning given to it in Sub-Clause 4.5(a)(ii) [Health and Safety and Management].

1.1.1.98 "**Independent Engineer**" means such engineering firm or other independent technical person appointed by the Financing Parties for the Project.

1.1.1.99 "**Imported Equipment and Materials**" means:

(a) all Equipment, Materials and other items to be imported into Vietnam for incorporation into the Facility; and

(b) any items that are:

(i) required as a result of any replacement or repair or shortfall for which the Contractor is responsible; or

(ii) forms part of the Temporary Works, Construction Equipment or is otherwise not intended for incorporation into the Facility.

1.1.1.100 "**Initial Spare Parts**" means the initial spare parts more particularly set forth in the Owner's Requirements.

1.1.1.101 "**Interconnection Point(s)** " means the physical point(s) of on-going operational interconnection and jurisdictional boundary between the Facility and the EVN grid system, as further described in Schedule 14 [Technical Requirements of the Major Project Agreements].

1.1.1.102 "**Interim Milestone**" means, in relation to each milestone identified in Schedule 10 [Preliminary Project Implementation Schedule], the date set-out therein for achievement of that milestone. ***[Note to Bidders – key milestones will be the completion of the LNG Terminal, followed by the first unit of the power plant, and then the facility as a whole. The current intention is however for Taking Over to only occur when the entire facility (LNG terminal and power plant – all generating units) is completed.]***

1.1.1.103 "**Interim Milestone Date**" means, in relation to an Interim Milestone, the date identified in Schedule 10 [Preliminary Project Implementation Schedule] for achievement of that Interim Milestone, as may be adjusted from time to time pursuant to the Contract.

1.1.1.104 "**Internal Terminal Point**" means the interfaces between the LNG Terminal and the Power Plant, as defined in the Owner's Requirements - Appendix 9 – Attachment 2 – Internal Terminal Point.

1.1.1.105 "**Insurance Requirements**" has the meaning given to it in Sub-Clause 18.1(a) [Insurance Policies].

1.1.1.106 "**Intellectual Property Rights**" means any and all rights and interests in registered or unregistered trademarks, trade names, trade secret,

service marks, patents, registered designs, utility marks, applications for any of the foregoing, copyrights (including future copyrights), unregistered designs, inventions, confidential information, know-how or other intellectual property (whether in written form, or generated by or maintained on a computer or similar system or otherwise).

1.1.1.107 "**kWh**" means kilowatt-hours.

1.1.1.108 "**Latent Defect**" means Defects in any part of the Works which could not have been identified through reasonable examination by the Owner at the expiration of the Defects Liability Period, including, but not limited to, any latent engineering or design Defects.

1.1.1.109 "**Latent Defects Liability Period**" means:

(a) in respect of any [civil or building works], the [10] year period calculated from the day that Defects Liability Period of the Works or the relevant part of the Works have expired; and

(b) In respect of any [major rotating equipment], the [three] year period calculated from the day that Defects Liability Period of the Works or the relevant part of the Works has expired.

1.1.1.110 "**Laws**" means all national (or state or provincial) law, legislation, statutes, acts, decrees, rules, ordinances, codes, judgment, orders, treaties, regulation, directive, requirement, international law and other laws, and regulations, applicable international obligations, standards, guidelines, and by-laws, or any interpretation of the foregoing, as enacted, issued or promulgated by any governmental instrumentality or other legally constituted public authority in any applicable jurisdiction and including any exemptions granted by the relevant governmental instrumentality or other legally constituted public authority. In the case of Vietnam, Laws shall include (i) the EVN Grid Code; (ii) all applicable regulations on power plant dispatch and operation according to the regulations of the Ministry of Industry and Trade and EVN; and (iii) all Laws relating to Vietnamese content in the construction of the Facility and the performance of the Works.

1.1.1.111 "**Legal Requirements**" or "**Vietnam Legal Requirements**" means all Vietnamese Laws and Consents.

1.1.1.112 "**Land Lease Agreement**" means the [agreement for the lease of land required for the Facility to be entered into by the Owner and the Lessor]. ***[Note to Bidders – subject to revision following finalization of the LLA]***

1.1.1.113 ["**Lessor**" means The People's Committee of Quag Ninh Province, Vietnam, the counterparty to the Land Lease Agreement]. ***[Note to***

Bidders – may be subject to revision following finalization of the LLA]

1.1.1.114 "**Lien**" means any mortgage, charge, pledge, hypothecation, security interest, encumbrance, claim, right of set-off, trust arrangement, assignment by way of security, retention of title, right of distraint, right of retention, or any other agreement or arrangement having the effect of conferring security (including any right to take possession of, or to detain, the Works, Site, Equipment, Materials, or any part thereof), whether arising by law, contract, or otherwise, and whether registered or unregistered, fixed or floating, and includes any claim or right of any Subcontractor, supplier, worker, or other third party to secure payment of any debt, obligation, or liability in connection with the Works, the Site, the Equipment, or the Materials, but excludes any security interest expressly permitted by the Contract.

1.1.1.115 "**Liquidated Damages**" means Delay Liquidated Damages and Performance Liquidated Damages.

1.1.1.116 "**LNG**" means liquefied natural gas.

"**LNG Terminal**" or "**Terminal**" means the part of the Facility comprising of the infrastructure for LNG unloading, including the jetty and pipeline system to import LNG from LNG carriers, together with all infrastructure for the storage, regasification and send out of fuel gas to the Power Plant at the Gas Delivery Point, including all Major Equipment, as further described in the Owner's Requirements and elsewhere in the Contract.

1.1.1.117 "**LNG Supplier**" means the counterparty to each LNG SPA.

1.1.1.118 "**LNG SPA**" means any and all LNG sale and purchase agreements, including any amendments, supplements, or replacements thereto, which may be entered into by the Owner or its Affiliates from time to time for the supply of LNG to the Project.

1.1.1.119 "**LNTP**" or "**Limited Notice to Proceed**" means any limited notice to proceed issued by the Owner pursuant to Article 6.7 [Limited Notice to Proceed] of the Contract Agreement for the performance of Early Works.

1.1.1.120 "**LNTP CPs**" has the meaning given to it in Article 6.7(b) [Limited Notice to Proceed] of the Contract Agreement.

1.1.1.121 "**LNTP Requirements**" has the meaning given to it in Article 6.7(a) [Limited Notice to Proceed] of the Contract Agreement.

1.1.1.122 "**Long Term Services Agreement**" or "**LTSA**" or "**O&M Contract**" means the contract entered into between the Owner and the Operator for the operation and maintenance of the completed Facility (or parts thereof).

1.1.1.123 "**Loss**" means any loss, claim, damage, liability, judgment, payment or obligation, and all costs and expenses (including without limitation reasonable attorneys' fees) related thereto and amounts in settlement in lieu thereof.

1.1.1.124 "**Materials**" means things of all kinds (other than Equipment) intended to form or forming part of the Facility, including the supply-only materials (such as the Spare Parts) to be supplied by the Contractor under the Contract.

1.1.1.125 "**Major Equipment**" means each of the following:

(a) in respect of the LNG Terminal:

(i) the LNG unloading arms and vapor return arms;

(ii) the LNG LP pumps;

(iii) the LNG HP pumps;

(iv) the boil-off-gas compressors;

(v) the boil-off-gas booster compressors;

(vi) the boil-off-gas recondensers;

(vii) the open rack vaporizers;

(viii) the boil-off gas reliquefaction package;

(ix) the seawater pumps; and

(b) in respect of the Power Plant:

(i) each Gas Turbine with associated auxiliaries including air intakes, cooling systems, fuel systems, and other associated facilities

(ii) the heat recovery steam generators with associated auxiliaries such as duct burners, boiler feed water pumps and drives;

(iii) the steam turbines with associated auxiliaries including steam pipework, high pressure (intermediate pressure) and low pressure bypasses, condensing plant and condensate pumps;

(iv) the generators with associated auxiliaries including generator circuit breaker;

(v) the 500 kV Gas-insulated switchgear (GIS);

(vi) the generator start up transformer; and

(vii) the distributed control system (DCS),

each as more particularly set out in the Owner's Requirements and elsewhere in the Contract

1.1.1.126 "**Major Rotating Equipment**" has the meaning set out in the Owner's Requirements.

1.1.1.127 "**Mechanical Completion**" means the completion of requirements for all construction activities including inspection, construction testing and Pre-commissioning for the Terminal and the Power Plant, as further described in Schedule 9A [Inspection and Testing for LNG Terminal] and Schedule 9B [Inspection and Testing for CCPP].

1.1.1.128 "**Terminal Mechanical Completion**" means the mechanical completion of the LNG Terminal, as further described in Schedule 9A [Inspection and Testing for LNG Terminal] and Schedule 1 Owner’s Requirement.

1.1.1.129 "**Power Plant Mechanical Completion**” means the mechanical completion of the Power Plant, as further described in Schedule 9B [Inspection and Testing for CCPP].

1.1.1.130 "**Milestone**" means each of the payment milestones set out in Schedule 11 [Project Milestone Payment Schedule].

1.1.1.131 "**Minimum Performance Guarantee**" or "**Minimum Performance Levels**" means each of the minimum performance guarantees or minimum performance levels as specified in Schedule 3A [Performance Guarantees for LNG Terminal] and Schedule 3B [Performance Guarantees for CCPP], which each relevant part of the Works (including each Unit and the LNG Terminal) and the Facility as a whole must achieve during the Performance Tests, but does not include the Performance Guarantees or Absolute Guarantees.

1.1.1.132 "**MW**” means megawatt.

1.1.1.133 "**Net Electrical Output**" means net energy delivered by the Power Plant to EVN at the Interconnection Point.

1.1.1.134 "**Net Electrical Unit Output**" means the net electrical plant output achieved by a Unit or the Power Plant as a whole during the carrying out of the Performance Tests for that Unit or the Power Plant as a whole.

1.1.1.135 "**Net Heat Rate**" means the net heat rate of a Unit or the Power Plant as a whole in the operating modes when measured during the Performance Tests carried out pursuant to Schedule 9 [Inspection, testing and taking-over].

1.1.1.136 "**No Claim**" means no claim, action, demand, suit or proceeding (including by way of contribution or indemnity, or for relief from or suspension of obligations or for an extension of time):

(a) under, arising out of, or in connection with, the Contract, the Works, the Facility, or any Project Document;

(b) arising out of, or in connection with, the Project, the Works, the Facility or a Party's conduct prior to the Contract Date or Effective Date; or

(c) otherwise at law, including in contract, in tort, for specific performance or for restitution,

upon the Owner for any money, compensation or adjustment to the Contract Price or for any extension of time or for any Loss, to the extent to which it is possible to exclude any such claim or Loss at law.

1.1.1.137 "**No-objection**" means that the Owner has no objection to the Contractor's Documents, or other documents submitted by the Contractor under these Conditions, and such Contractor's Documents or other documents may be used for the Works.

1.1.1.138 "**Notice to Proceed**" or "**NTP**" means the notice to proceed issued by the Owner pursuant to Article 6.6 [Notice to Proceed] of the Contract Agreement, in the form set out in Schedule 18 [Form of Notice to Proceed].

1.1.1.139 "**One Month Schedule**" has the meaning given to it in Sub-Clause 4.6(f) [Co-operation].

1.1.1.140 "**O&M Manuals**" has the meaning given to it in Sub-Clause 5.7 [Operation and Maintenance Manuals].

1.1.1.141 "**Other Contractors**" means:

(a) the Site Clearance Contractor;

(b) the LNG Suppliers; and

(c) the other contractors (including each of their respective employees, subcontractors and other personnel) appointed by the Owner to execute works or perform services in relation to the Project as notified by the Owner to the Contractor from time to time.

1.1.1.142 "**Operator**" means the operator appointed from time to time by the Owner for the operation and maintenance of the Facility.

1.1.1.143 "**Owner**", "**Project Company**" or "**QNJSC**" means the person named as owner in the Contract Agreement and the legal successors in title to this person.

1.1.1.144 "**Owner's Consents**" has the meaning given to it in Sub-Clause 2.2 [Permits, Licences and Approvals].

1.1.1.145 "**Owner Background IP**" means Intellectual Property Rights owned by or licensed to the Owner (including know-how and technical information) but does not include Contractor Background IP or Project IP.

1.1.1.146 "**Owner-Supplied Information**" means any information, reports, date and other documents in relation to the Works and the Site Conditions supplied by the Owner to the Contractor on or prior to the Contract Date.

1.1.1.147 "**Owner Supplied Utilities**" has the meaning given to it in Sub-Clause 4.19 [Utilities].

1.1.1.148 **Not Used**

1.1.1.149 "**Owner's Personnel**" means the Owner's Representative, its Affiliates, the assistants referred to in Sub-Clause 3.2 [Other Owner's Personnel] and all other staff, labour and other employees of the Owner, the Sponsors and of the Owner's Representative; and any other personnel notified to the Contractor, by the Owner or the Owner's Representative, as Owner's Personnel.

1.1.1.150 "**Owner's Representative**" means the person named by the Owner in the Contract or appointed from time to time by the Owner under Sub-Clause 3.1 [The Owner's Representative], who acts on behalf of the Owner.

1.1.1.151 "**Owner's Requirements**" means the scope of works, specifications and all other technical requirements in respect of the Works as set out in Schedule 1 [Owner's Requirements] and Schedule 15 [Contract Management Principles].

1.1.1.152 "**Party**" means the Owner or the Contractor, as the context requires.

1.1.1.153 "**Parent Company Guarantee**" means a guarantee issued by the Guarantor substantially in the form set out in Schedule 30 [Parent Company Guarantee] and to be provided to the Owner pursuant to Sub-Clause 4.2A [Parent Company Guarantee].

1.1.1.154 "**Payment Certificate**" has the meaning given to it in Sub-Clause 14.3 [Interim Payment].

1.1.1.155 "**Performance Guarantee**" or "**Guaranteed Performance Level**" means each of the performance guarantees or guaranteed performance levels as specified in Schedule 3A [Performance Guarantees for LNG Terminal] and Schedule 3B [Performance Guarantees for CCPP], the Owner's Requirements and Schedule 14 [Technical Requirements of Major Project Agreements] which each relevant part of the Works (including each Unit and the LNG

Terminal) and the Facility as a whole must achieve during the Performance Tests, but does not include the Minimum Performance Guarantees or Absolute Guarantees. The Performance Guarantees shall include the Guaranteed Net Electrical Output, the Guaranteed Net Heat Rate, the Guaranteed Noise Level, the Guaranteed Emissions and the Reliability Guarantee.

1.1.1.156 "**Performance Bond**" or "**EPC Performance Bond**" means the security (or securities, if any) under Sub-Clause 4.2 [Performance Bond].

1.1.1.157 "**Performance Bond End Date**" has the meaning given to it in Sub-Clause 4.2 [Performance Bond].

1.1.1.158 "**Performance Bond Step-Down Date**" has the meaning given to it in Sub-Clause 4.2 [Performance Bond].

1.1.1.159 "**Performance Liquidated Damages**" or "**Performance LDs**" means any performance liquidated damages payable pursuant to Sub-Clause 9.6 [Performance Guarantees Not Achieved].

1.1.1.160 "**Performance Tests**" means those tests specified in Schedule 9A [Inspection and Testing for LNG Terminal] and Schedule 9B [Inspection and Testing for CCPP], to be satisfactorily performed and passed in accordance with the Contract and the Project Documents (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations) to demonstrate that each relevant part of the Works (including each Unit and the LNG Terminal) and the Facility as a whole can pass the Tests on Completion and achieve the Minimum Performance Guarantees, Performance Guarantees and Absolute Guarantees.

1.1.1.161 "**Person**" or "**person**" means any individual, corporation, partnership, joint venture, association, trust, unincorporated organisation or government authority or any other entity and includes the person's executives, administrators, successors, substitutes (including persons taking by novation) and assigns.

1.1.1.162 "**Power Plant**" or "**CCPP**" means the combined cycle gas turbine power plant with a nominal gross capacity of 1,500 MW forming part of the Facility, including Unit 1, Unit 2, the Electrical Interconnection Facilities, the Gas Facilities, all Major Equipment and all utility and power connections to the LNG Terminal, as further described in the Owner’s Requirements and elsewhere in the Contract.

1.1.1.163 "**PPA**" or "**Power Purchase Agreement**" means the power purchase agreement [dated [●] / to be entered into] between the Owner and the Power Purchaser, as amended, pursuant to which the capacity and electrical output of the Power Plant is to be sold to the Power Purchaser.

1.1.1.164 "**Power Purchaser**" means [Electricity Vietnam (EVN)], the counterparty under the PPA. ***[Note to Bidders – subject to revision following finalization of the PPA]***

1.1.1.165 "**Programme**" means the preliminary project implementation schedule set out in Schedule 10 [Preliminary Project Implementation Schedule] until such time that the Contractor has submitted a revised detailed programme to the Owner and the Owner has given (or is deemed to have given) a notice of No-objection under Sub-Clause 8.3 [Programme], at which time the most recent detailed programme prepared and submitted by the Contractor to which the Owner has given (or is deemed to have given) a notice of No-objection under Sub-Clause 8.3 [Programme] shall be the "Programme".

1.1.1.166 "**Punch-List**" means a list of outstanding items of an administrative or minor nature which have not been completed by the Contractor in accordance with the Contract, but which do not affect the reliability, dependability, operability, safety, compliance with Prudent Utility Practice, Applicable Laws, Technical Standards and mechanical integrity of the Works or any start-up, testing and commercial operation of any Equipment or the Facility or substantially affect the use of the Works for their intended purpose, in each case until or whilst this work is completed and the defects are remedied.

1.1.1.167 "**Pre-Approved Subcontractors**" means the Subcontractors for the performance of the works or supply of the items listed in Schedule 12 [Approved Subcontractors and suppliers];

1.1.1.168 **"Pre-Commissioning"** means such activities to be carried out prior to Mechanical Completion to prepare and enable the relevant part of the Works to be ready for Commissioning, including installation of filters, cleaning pipes and equipment, vendor and factory acceptance testing, punch listing and instrument, electrical and motor loop testing, as further described in Schedule 9 [Inspection, Testing and Taking Over] and Schedule 1 [Owner's Requirement].

1.1.1.169 "**Project**" means, collectively, the design, engineering, procurement, manufacture, permitting, financing, security, construction, installation, testing, Commissioning, start-up, completion, ownership, maintenance and operation of the Facility and all activities incidental thereto.

1.1.1.170 ["**Project Documents**" means:

(a) the Governmental Project Documents;

(b) the LNG SPA;

(c) the O&M Contract;

(d) the grid connection agreement to be entered into between [●] and the Owner;

(e) the metering system agreement to be entered into between [●] and the Owner;

(f) the SCADA and telecom system agreement to be entered into between [●] and the Owner;

(g) the relay protection agreement to be entered into between [●] and the Owner;

(h) investment Consents as specified in Schedule 5 [Permits, License and Approval], and

(i) any other project related agreements and approvals entered by or issued to the Owner in relation to the Project or the Facility, as communicated to the Contractor from time to time.]

[Note to Bidders – subject to revision following finalization of the project documents for the Project.]

1.1.1.171 "**Project IP**" means all Intellectual Property Rights arising out of or created by the Contractor or a Subcontractor in performing the Works and its obligations under the Contract, including Intellectual Property Rights subsisting in or in relation to the Facility and the Equipment, the Contract, all software, documents, drawings, designs and other materials created or arising in the performance of the Works, but does not include Contractor Background IP or Owner Background IP.

1.1.1.172 "**Qualifying Delay Event**" has the meaning given to it in Sub-Clause 8.4 [Extension of Contracted Date for Completion].

1.1.1.173 "**Ready for Start-up**" means the point at which hydrocarbons are introduced to the Facility to put systems into operation.

1.1.1.174 "**Related Project Dispute**" has the meaning given to it in Sub-Clause 20.5(a)(i) [Joinder of Disputes].

1.1.1.175 "**Reliability Guarantee**" means the reliability guarantee which each Unit, the LNG Terminal, and the Facility must achieve during the Reliability Run, as further described in the Owner's Requirements, Schedule 3A [Performance Guarantees for LNG Terminal], Schedule 3B [Performance Guarantees for CCPP] and Schedule 14 [Technical requirements of Major Project Agreements].

1.1.1.176 "**Reliability Run**" means the test run procedure specified in the Schedule 1 [Owner's requirement], Schedule 9A [Inspection and testing for LNG Terminal] and Schedule 9B [Inspection and testing for CCPP] as being the reliability run that is to be undertaken for each of the LNG Terminal, the Units and the Facility in accordance with the steps, operation conditions and any requirements set out in the Contract and the Project Documents to demonstrate that the LNG

Terminal, the Units and the Facility achieves the Reliability Guarantee as part of the Tests on Completion.

1.1.1.177 "**Scheduled Taking Over Date**" has the meaning set out in Sub-Clause 8.2 [Contracted Date for Completion].

1.1.1.178 "**Scope of Work**" means the scope of work more particularly set forth in the Owner's Requirements.

1.1.1.179 "**Section**" has the meaning given to it in Sub-Clause 10.2 [Taking Over of Parts of the Works].

1.1.1.180 "**Security Bonds**" means each of the Advance Payment Bond and Performance Bond.

1.1.1.181 "**Security**" means each of the Security Bonds and the Parent Company Guarantee.

1.1.1.182 "**Serial Defect**" means the occurrence of the same or substantially similar Defect in at least four similar items of Equipment, Materials, or other parts of the Facility, or in any process, system, or component forming part of the Works, whether discovered during the Defects Liability Period, the Latent Defects Liability Period, or otherwise within the period of the Contractor's liability for Defects under the Contract.

1.1.1.183 "**SI**" means the international system of units.

1.1.1.184 "**SIAC Rules**" has the meaning given to it in Sub-Clause 20.4(b)(i) [Arbitration].

1.1.1.185 "**Site**" means the place where the Facility is to be located and to which Equipment and Materials are to be delivered, as shown in the site plan set out in Schedule 23 [Permanent Areas], and any other areas on land and in the water as may be specified in the Contract as forming part of the Site.

1.1.1.186 "**Site Clearance Contract**" means the contract dated [●] and entered into between the Owner and the Site Clearance Contractor for the performance of the Site Clearance Works.

1.1.1.187 "**Site Clearance Contractor**" means [insert name of counterparty to the Site Clearance Contract once available].

1.1.1.188 "**Site Clearance Requirements**" means the requirements which the Site (or part thereof) must satisfy and achieve upon the completion of the Site Clearance Works and the handover of the Site (or part thereof) by the Owner to the Contractor pursuant to Sub-Clause 2.1 [Site Clearance Works and Right of Access to the Site], all such requirements as so set out in Schedule 29 [Site Clearance Requirements].

1.1.1.189 "**Site Clearance Works**" means such works as described in the Site Clearance Contract for the clearance, levelling and preparation of the Site in order for the Site to meet all Site Clearance Requirements, and which shall be carried out by the Site Clearance Contractor and completed prior to the Site being handed-over by the Owner to the Contractor part by part, pursuant to Sub-Clause 2.1 [Site Clearance Works and Right of Access to the Site].

1.1.1.190 "**Site Conditions**" means the site conditions in relation to the Site including:

(a) the general and local conditions for environment, meteorological, seismic activity, climatic conditions, ocean conditions and social and security conditions;

(b) availability and quality of all necessary utilities and availability and condition of roads;

(c) availability of labour resources;

(d) physical conditions where the Works are to be performed and the surrounding area as a whole; and

(e) topography, ground, surface and subsurface conditions.

1.1.1.191 "**Spare Parts**" has the meaning given to it in the Owner's Requirements, and shall include all Initial Spare Parts and Strategic Spare Parts.

1.1.1.192 "**Special Tools**" means the special tools more particularly set out in the Owner's Requirements.

1.1.1.193 "**Sponsors**" means PetroVietnam Power Corporation JSC, Colavi JSC, Tokyo Gas Co., Ltd and Marubeni Corporation.

1.1.1.194 "**Statement**" has the meaning given to it in Sub-Clause 14.3 [Interim Payment].

1.1.1.195 "**Statement at Facility Taking Over"** has the meaning given to it in Sub-Clause 14.8 [Statement at Facility Taking Over].

1.1.1.196 "**Start-up**" means the activities that introduce hydrocarbons into the LNG Terminal and bring the LNG Terminal to its designed operating conditions in a gradual and safe manner.

1.1.1.197 "**Strategic Spare Parts**" means those strategic spare parts ordered by the Owner more particularly set forth in the Owner's Requirements.

1.1.1.198 "**Subcontractor**" means any person named in the Contract as a subcontractor, or any person appointed as a subcontractor, for a part of the Works; and the legal successors in title to each of these persons.

1.1.1.199 "**1st Tier Subcontractor**" means any subcontractor that has entered into a direct contract with the Contractor for carrying out any portion of the Works

1.1.1.200 "**Taking Over**" means such time when the following has occurred in respect of the whole of the Works and the Facility (or as applicable, a Section):

(a) the Works have been completed in accordance with the Contract, except in relation to items which, in the opinion of the Owner, require completion but are of a minor nature and will not affect the safety, reliability, performance or operation of the Works as documented in a Punch-List;

(b) all Tests on Completion in respect of the Works have been passed and the Absolute Guarantees and Performance Guarantees have been achieved, or, if the Performance Guarantees have not been achieved, the Minimum Performance Guarantees have been achieved and the Contractor has paid to the Owner Performance Liquidated Damages in accordance with Sub-Clause 9.6 [Performance Guarantees Not Achieved];

(c) in respect of Facility Taking Over, all acceptance, conditions, tests, approvals and inspections and all other requirements under any Project Documents have been satisfied for the Commercial Operation Date of each respective the Unit and the Facility (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations);

(d) all control and instrumentation systems operate satisfactory in the automatic mode in accordance with the Owner's Requirements and other requirements of the Contract;

(e) the Works are capable of operating in accordance with the Contract, the Project Documents (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations) and all Applicable Laws, and safely under reasonable and normal operating conditions;

(f) all Consents to be obtained by the Contractor under the Contract and which are mandatory for the operation of the Works have been obtained and, if required by the Owner, transferred (to the extent necessary and/or permitted at Law) to the Owner, or such other person as the Owner may notify the Contractor;

(g) the Owner has given (or is deemed to have given) a notice of No-objection to the As-Built Drawings submitted under sub-paragraph (b)(i) of Sub-Clause 5.6 [As-Built Drawings];

(h) the Owner has given (or is deemed to have given) a notice of No-objection to the provisional O&M Manuals for the Works submitted under Sub-Clause 5.7 [Operation and Maintenance Manuals];

(i) the Contractor has provided the Owner with a lien waiver in the form set out in Schedule 20 [Form of Lien Waiver];

(j) the Contractor has provided to the Owner all other documents and information required under the Contract as a condition precedent to achieving Taking Over;

(k) the Contractor has, if applicable, paid all Delay Liquidated Damages payable under the Contract;

(l) the Contractor has cleared and cleaned the portion of the Site where the Works were being carried out, removed all rubbish, Temporary Works, Construction Equipment and surplus Materials, other than as required to complete or rectify the items included in the Punch-List or remedy Defects, Latent Defects or Serial Defects under Clause 11 [Defects Liability];

(m) all obligations of Contractor and all other requirements set forth in the Schedule 14 [Technical Requirements of Major Project Agreements] have been achieved to the satisfaction of the Owner;

(n) the Contractor has supplied the Spare Parts and Special Tools required to be delivered prior to Taking Over in accordance with the Owner's Requirements and replaced any Spare Parts used or consumed during the carrying out of Tests on Completion which are required to be replaced;

(o) the Contractor has supplied the stockpile of Consumables required prior to the relevant Taking Over pursuant to the Owner's Requirements or other documents comprising the Contract (if any);

(p) the Owner is in possession of a Performance Bond which has been delivered by the Contractor in accordance with Sub-Clause 4.2 [Performance Bond], in an amount that is equal to at least [fifteen percent (15%)] of the Contract Price (as may have been adjusted in accordance with the Contract);

(q) the Parties have agreed to a Punch-List setting out the outstanding Works which need to be completed as specified therein;

(r) all incomplete parts of the Works and all Defects (other than those in the Punch-List) have been completed and rectified;

(s) if applicable, the Contractor has provided the Owner the re-export certificate of the imported Construction Equipment;

(t) the Contractor has carried out the training as described under Sub-Clause 5.5 [Training];

(u) in respect of Facility Taking Over, the Contractor has fulfilled its obligations until the Commercial Operation Date pursuant to the LTSA, except to the extent waived by the Owner; and

(v) any other conditions precedent or other requirements which are required to be completed under the Contract before Taking Over can be achieved, have been satisfied or completed.

1.1.1.201 "**Taking Over Certificate**" means the certificate issued in accordance with Sub-Clause 10.1 [Taking Over of the Works and Sections] certifying the date on which Taking Over was achieved.

1.1.1.202 "**Taxes**" means any tax, charge, impost, tariff, levy, duty, fee, deduction or withholding of any kind charged, imposed, levied, collected or assessed, directly or indirectly, by any governmental instrumentality, including import and re-export duties, VAT, sales tax, stamp duty, withholding tax, excise tax, property tax, profit tax, and any other additions thereon on any of the above items.

1.1.1.203 "**Technical Standards**" means, in respect of the design of the Works, the Contractor's Documents, the execution of and the completed Works:

(a) all mandatory technical standards, requirements, regulations, and codes specified under any Vietnam Legal Requirements or any Project Document, to the extent applicable to the Works;

(b) all technical standards specified in the Owner's Requirements; and

(c) all applicable international standards, requirements, regulations and/or codes that are generally applied to similar works,

provided that, in case of any conflict or inconsistency between any such requirements, the most stringent requirement shall apply (to the extent not in breach of Vietnam Legal Requirements or any Governmental Project Document).

1.1.1.204 "**Test Procedures**" has the meaning set forth in Schedule 9 [Inspection, Testing and Taking Over].

1.1.1.205 "**Temporary Works**" means all temporary works of every kind (other than Construction Equipment) required on Site for the execution and completion of the Facility and the remedying of any Defects, Latent Defects or Serial Defects.

1.1.1.206 "**Terminal Point**" means the designated physical locations where the Contractor's scope of work ends and interfaces with other systems, facilities, or parties begin, as defined in the Owner's Requirements - Appendix 9 – Terminal Point.

1.1.1.207 "**Term SOFR**" means the term SOFR reference rate administered by CME Group Benchmark Administration Limited (or any other person which takes over the administration of that rate) for the relevant period published by CME Group Benchmark Administration Limited (or any other person which takes over the publication of that rate).

1.1.1.208 "**Tests on Completion**" means all tests in respect of the Works which are required by the Contract to be carried out and passed as a condition precedent to achieving Taking Over, and shall include all Commissioning and Performance Tests.

1.1.1.209 "**Three Month Schedule**" has the meaning given to it in Sub-Clause 4.6(f) [Co-operation].

1.1.1.210 "**Unit**" means either Unit 1 or Unit 2.

1.1.1.211 "**Unit 1**" means the first generating unit forming part of the Power Plant, comprising of a Gas Turbine and other components as more particularly set out in the Owner's Requirements and elsewhere in the Contract.

1.1.1.212 "**Unit 2**" means the second generating unit forming part of the Power Plant, comprising of a Gas Turbine and other components as more particularly set out in the Owner's Requirements and elsewhere in the Contract.

1.1.1.213 "**United States Dollars**" or "**USD**" means the lawful currency of United States of America. ***[Note to Bidders – if the Contractor is a Vietnamese entity, all references to USD will be changed to VND, and all payments will be made in VND only]***

1.1.1.214 "**VAT**" means any value added tax, including, the case of Vietnam, any value added tax payable in accordance with Vietnamese Legal Requirements.

1.1.1.215 "**Vietnamese Dong**" or "**VND**" means the lawful currency of Vietnam.

1.1.1.216 "**Vietnam**" means the Socialist Republic of Vietnam.

1.1.1.217 "**Vietnamese Laws**" means all Laws or any interpretation of Laws, as enacted, issued or promulgated by any Governmental

Instrumentality, including amendments, modifications, exclusions or re-enactments thereof of any Governmental Instrumentality.

1.1.1.218 "**Wilful Misconduct**" means any:

(a) reckless act or omission in breach or disregard of the provisions of the Contract; or

(b) intentional omission or failure to perform any provision of the Contract,

by either Party, its, directors, personnel, employees, agents, Subcontractors or other personnel in circumstances where those persons know or ought to have known that the other Party will suffer Loss.

1.1.1.219 "**Works**" means the Facility, the Temporary Works, and the Early Works, or either of them as appropriate, all to be executed by the Contractor pursuant to the Contract.

1.2 Interpretation

In the Contract, except where the context requires otherwise:

(a) words indicating one gender include all genders;

(b) words indicating the singular also include the plural and words indicating the plural also include the singular;

(c) provisions including the word "agree", "agreed" or "agreement" require the agreement to be recorded in writing;

(d) "written" or "in writing" means hand-written, type-written, printed or electronically made, and resulting in a permanent record;

(e) if the Contractor is required to obtain the Owner's consent under the Contract, then such consent shall be deemed to be the Owner's prior written consent except to the extent otherwise expressly stated;

(f) if a Party is required to give a notice to or notify the other Party under the Contract, then the requirement for such notice shall be deemed to be a written notice except to the extent otherwise expressly stated;

(g) words indicating persons or parties include corporations and other legal entities, except where the context requires otherwise;

(h) all periods of time are based on and to be determined according to the Gregorian calendar and references to a particular time in connection with the performance of an obligation will be to that time at the Site, even if that obligation is performed elsewhere;

(i) the words "include", "including", "for example" or similar words or expressions shall be deemed to be followed by the expression "without limitation" or "but not limited to" whether or not they are followed by such phrases or words of like import;

(j) references to any "Clause", "Sub-Clause" or "Schedule" are references to the clauses, sub-clauses and schedule of these Conditions and references to any "Article" are references to the articles of the Contract Agreement;

(k) where a word, term, phrase or abbreviation is defined, another part of speech or grammatical form in respect of that word or expression will have a corresponding meaning;

(l) unless inconsistent with any provision of the Contract, the meaning of any trade term shall be as prescribed by Incoterms; and

(m) the marginal words and other headings shall not be taken into consideration in the interpretation of the Contract.

1.3 Communications

Wherever these Conditions provide for the giving or issuing of approvals, certificates, consents, determinations, notices and requests, these communications shall be:

(a) in writing and delivered by hand (against receipt), sent by mail or courier, or transmitted using any of the agreed systems of electronic transmission as stated in the Contract Agreement; and

(b) delivered, sent or transmitted to the address for the recipient's communications as stated in the Contract. However:

(i) if the recipient gives notice of another address, communications shall thereafter be delivered accordingly; and

(ii) if the recipient has not stated otherwise when requesting an approval or consent, it may be sent to the address from which the request was issued.

Consents, certificates, consents and determinations shall not be unreasonably withheld or delayed.

1.4 Law and Language

The Contract and any dispute or claim (including any non-contractual obligation, disputes or claims) arising out of or in connection with it, its subject matter or its formation shall be governed by and construed in accordance with the laws of England and Wales. ***[Note to Bidders – governing law will be changed to Vietnam law if the Contractor is a Vietnamese entity]***

The language of the Contract and all correspondence, communications and submitted documents shall be English. If the Contract or any other related documents are translated into another language, the English version shall prevail.

1.5 Priority of Documents

The documents forming the Contract are to be taken as mutually explanatory of one another.

For the purposes of interpretation, the priority of the documents shall be in accordance with the following sequence:

(a) Contract Agreement and any supplementary and modified documents to the Contract (if any);

(b) these Conditions;

(c) Schedule 1 Owner's Requirements;

(d) all other Schedules forming part of the Contract (other than Schedule 2 [Contractor's Technical Proposal]); and

(e) Schedule 2 [Contractor's Technical Proposal].

In case of any ambiguity or conflict between the above contract documents, interpretation shall be made according to the priority of the documents listed above or as otherwise directed by the Owner.

1.6 Contract Agreement

The Contract shall come into full force and effect when both Parties have executed the Contract Agreement, provided that the Contractor shall only commence the performance of the Works from the Effective Date.

1.7 Assignment

Neither Party shall assign, novate or otherwise transfer the whole or any part of the Contract or any benefit or interest in or under the Contract.

However:

(a) either Party may assign the whole or any part of the Contract with the prior agreement of the other Party, at the sole discretion of such other Party;

(b) the Contractor may, without the Owner's prior written consent, as security in favour of a bank or financial institution, assign its right to any moneys due, or to become due, under the Contract; and

(c) the Owner may, without the Contractor's prior written consent:

(i) transfer, assign, charge or otherwise encumber its rights or benefit under the Contract in favour of the Financing Parties. Any such transfer, assignment, charge or encumbrance shall include the right to make second or subsequent assignments, charges or encumbrances and freely to enforce the same by way of sale or otherwise. Without prejudice to Clause 21[Financing], the Contractor shall provide the Owner with such

assistance as the Owner may from time to time reasonably request in relation to the Owner's financing arrangements with actual or potential Financing Parties and shall co-operate fully with the Owner to that end including by providing certifications, opinions of counsel and other documents or assistance in respect of the Financing Parties' requests; and.

(ii) [transfer all of its right, title and interest in the Works and allow a novation (or, if required, an assignment of benefit) of the Contract to any Governmental Instrumentality or the Power Purchaser or its designees in accordance with the PPA in the event the Power Purchaser is obligated or exercises its rights to acquire the Works in accordance with the terms of the PPA. The Parties acknowledge that they shall use all reasonable endeavours to co-operate and co-ordinate with and permit the Power Purchaser and/or its designees to exercise such rights.] ***[Note to Bidders – subject to revision following finalization of the PPA.]***

1.8 Care and Supply of Documents

Each of the Contractor's Documents shall be in the custody and care of the Contractor, unless and until taken over by the Owner. Unless otherwise stated in the Contract, the Contractor shall supply to the Owner six (6) copies of each of the Contractor's Documents.

The Contractor shall keep, on the Site, a copy of the Contract, publications named in the Owner's Requirements, the Contractor's Documents, and Changes and other communications given under the Contract. The Owner's Personnel shall have the right of access to all these documents at all reasonable times.

If a Party becomes aware of an error or defect of a technical nature in a document which was prepared for use in executing the Works, the Party shall promptly give notice to the other Party of such error or defect.

1.9 Confidentiality

(a) Each Party shall keep, and shall procure that each of its Affiliates keep, the Confidential Information confidential and not disclose it to any person, other than as permitted under this Sub-Clause 1.9.

(b) Sub-Clause 1.9(a) shall not apply to the disclosure of Confidential Information if and to the extent that such disclosure is:

(i) required by any Law;

(ii) required by any court of competent jurisdiction or any competent judicial, governmental, supervisory or regulatory body;

(iii) required by the listing rules of any stock exchange;

(iv) the Disclosing Party has given written consent to the disclosure; or

(v) such information is in the public domain other than through breach of this Sub-Clause 1.9,

provided that in the case of sub-paragraphs (i), (ii) and (iii) above, the Receiving Party shall to the extent reasonably practicable and permitted by any such Law or body promptly notify in writing the Disclosing Party and co-operate with the Disclosing Party regarding the timing and content of such disclosure and any action which the Disclosing Party may reasonably wish to take to challenge the validity of such requirement.

(c) The Receiving Party may only use the Confidential Information for the purposes of the Contract. Notwithstanding the above, either Party shall be entitled to disclose Confidential Information if such disclosure is made in good faith to:

(i) An appointed insurance broker or an insurer under a policy of insurance issued pursuant to the Contract or in relation to the Project or the Facility;

(ii) any of its Affiliates, directors, employees or officers involved in the Project;

(iii) outside consultants or advisers engaged by or on behalf of the Disclosing Party and acting in that capacity in connection with the Project;

(iv) the Financing Parties or any prospective Financing Parties and to any Affiliate, agent, trustee, representative, professional advisor or consultant (including the Financing Parties' engineer) of the Financing Parties or any prospective Financing Parties;

(v) any Subcontractor for the furtherance of the performance of the Contractor's obligations under the Contract;

(vi) Other Contractors engaged by the Owner in connection with the Project and any of their Affiliates;

(vii) the Power Purchaser, the Lessor, and any other counterparties to the Project Documents and to any of their Affiliates, agents, representative, professional advisors or consultants;

(viii) persons who are directly involved with claims, disputes and/or arbitration;

(ix) [the engineers of the Power Purchaser appointed pursuant to the PPA, as notified by the Owner to the Contractor]; or ***[Note to Bidders – subject to revision following finalization of the PPA.]***

(x) any operator of the Facility (once completed), and any of its Affiliates,

provided that the Disclosing Party shall have first obtained the relevant person's agreement in writing to be bound by obligations of confidence at least as stringent as those created by this Sub-Clause 1.9.

1.10 Owner's Use of Contractor's Documents

(a) As between the Parties, the Contractor shall retain the Intellectual Property Rights in the Contractor's Documents and other design documents made by (or

on behalf of) the Contractor prior to the Contract Date (the "**Contractor Background IP**").

(b) The Contractor shall be deemed (by signing the Contract) to give to the Owner a non-terminable, transferable non-exclusive royalty-free licence to copy, use and communicate the Contractor Background IP, including making and using modifications of them. This licence shall:

(i) apply throughout the actual or intended working life (whichever is longer) of the relevant parts of the Works;

(ii) entitle any person in proper possession of the relevant part of the Works to copy, use and communicate the Contractor Background IP for the purposes of completing, operating, maintaining, altering, adjusting, repairing and demolishing the Works; and

(iii) in the case of Contractor Background IP which are in the form of computer programs and other software, permit their use on any computer on the Site and other places as envisaged by the Contract, including replacements of any computers supplied by the Contractor.

(c) The Contractor Background IP and other design documents made by (or on behalf of) the Contractor shall not, without the Contractor's consent, be used, copied or communicated to a third party by (or on behalf of) the Owner for purposes other than those permitted under this Sub-Clause 1.10.

1.10A Intellectual Property

(a) All Project IP vests in and is the property of the Owner upon it coming into existence.

(b) The Owner grants to the Contractor a non-exclusive, royalty-free, non-transferable licence to use, reproduce, modify and adapt the Project IP and the Owner Background IP for the sole purpose of performing its obligations under the Contract. The licence will endure until the termination of the Contract or the expiry of the Defects Liability Period, whichever is the earlier.

(c) The Contractor warrants and represents that:

(i) it has all rights and licences necessary to grant the Owner the licences of the Contractor Background IP granted in Sub-Clause 1.10 [Owner's Use of Contractor's Documents]; and

(ii) the Project IP, the Contractor Background IP and any use of it by or on behalf of the Owner, whether in the operation or maintenance of the Facility or otherwise, will not infringe the Intellectual Property Rights of any third party.

1.11 Contractor's Use of Owner's Documents

As between the Parties, the Owner shall retain the Intellectual Property Rights in the Owner's Requirements, the drawings and other documents made by (or on behalf of) the

Owner. The Contractor may, at its cost, copy, use, and obtain communication of these documents for the purposes of the Contract. They shall not, without the Owner's consent, be copied, used or communicated to a third party by the Contractor, except as necessary for the purposes of the Contract.

1.12 Amendments

No variation shall be effective unless in writing and signed by or on behalf of the Parties. Except as required by statute, no terms shall be implied (whether by custom, usage or otherwise) into the Contract.

1.13 Compliance with Laws

(a) The Contractor must:

(i) in performing the Contract, comply with and satisfy all Applicable Laws (including those in respect of the Works) and ensure that the Works comply with all such Applicable Laws;

(ii) ensure that the Contractor's Personnel engaged in the Works and performance of the obligations under the Contract comply with and satisfy all Applicable Laws; and

(iii) ensure that neither it nor any of the Contractor's Personnel, in performing the Works and the obligations under the Contract, cause the Owner to breach any Applicable Laws.

(b) The Contractor must, in accordance with Sub-Clause 2.2 [Permits, Licences and Approvals], obtain and maintain all Consents identified therein as its responsibility.

(c) The Contractor acknowledges and agrees that:

(i) there are Governmental Instrumentalities with jurisdiction over aspects of the Project including, but not limited to, the Works, the Facility or the performance of the Contract;

(ii) such Governmental Instrumentalities may exercise their statutory functions and powers in such a way as to disrupt, interfere with or otherwise affect the Works or the performance of the Contract;

(iii) it will co-operate with and co-ordinate its Works and performance of the Contract with such Governmental Instrumentalities as is required by them;

(iv) unless otherwise provided in the Contract, the Contractor bears the full risk of all occurrences of the kind referred to in sub-paragraphs (i) and (ii) above; and

(v) the Contractor shall have No Claim arising out of or in any way connected with such occurrences.

(d) The Contractor shall indemnify, defend and hold harmless the Owner from and against all Losses suffered or incurred by or brought against the Owner arising out of or in any way connected with the Contractor's breach of any Applicable Laws arising in connection with the Contractor's performance of the Contract whether such Loss arises before or after the Facility Taking Over Date.

1.14 Joint and Several Liability

If the Contractor is constituted as a consortium, joint venture, or other unincorporated grouping of two or more persons (each a "**Consortium Member**" and together, the "**Consortium**"), then the following provisions shall apply:

(a) **Provision and Modification of Consortium Agreement**

(i) The Consortium Members shall, upon the Owner's request, provide the Owner with a certified copy of the executed consortium agreement or joint venture agreement (or other document or instrument constituting the Consortium and governing the relationship between the Consortium Members) (the "**Consortium Agreement**").

(ii) The Consortium Members shall not amend, supplement, modify, assign, novate, terminate, or otherwise alter the Consortium Agreement, or any rights or obligations thereunder, in any respect without the prior written consent of the Owner, such consent not to be unreasonably withheld or delayed.

(iii) Any purported amendment, supplement, modification, assignment, novation, termination, or alteration of the Consortium Agreement without the Owner's prior written consent shall be null and void and of no effect as between the Owner and the Consortium Members.

(b) **Joint and Several Liability**

(i) Each Consortium Member shall be jointly and severally liable to the Owner for the due and proper performance of all obligations, liabilities, and undertakings of the Contractor under the Contract.

(ii) No Consortium Member shall be entitled to avoid, limit, or deny its joint and several liability or any other responsibility or obligation under the Contract on the basis of any act, omission, default, or conduct of any other Consortium Member, the Consortium Leader, or any third party acting on behalf of the Consortium.

(iii) The Owner may enforce the Contract and recover any Losses arising under or in connection with the Contract against any one (1) or more Consortium Members, without the need to proceed against all Consortium Members.

(c) **Appointment of Leader**

(i) The Consortium Members shall, by written notice to the Owner, with the prior written consent of the Owner (such consent not to be unreasonably withheld), appoint one of the Consortium Members as the leader (the "**Consortium Leader**") who shall have full authority to act on behalf of, bind, and represent the Contractor and each Consortium Member in all matters relating to the Contract, including the receipt and giving of all notices, instructions, consents, approvals, and certificates.

(ii) The Consortium Members shall not revoke or replace the Consortium Leader without the prior written consent of the Owner, such consent not to be unreasonably withheld.

(d) **Notices and Communications**

(i) All notices, instructions, consents, approvals, certificates, and other communications under the Contract to be given to the Contractor shall be validly given if delivered to the Consortium Leader at the address notified to the Owner.

(ii) The Owner shall not be required to give separate notices to each Consortium Member, and any notice given to the Consortium Leader shall be deemed to have been given to all Consortium Members.

(iii) All notices, instructions, consents, approvals, certificates, and other communications to be given by the Contractor to the Owner shall be given by the Consortium Leader on behalf of all Consortium Members, and the Owner shall not be required to accept or respond to communications from any other Consortium Member.

(e) **Performance Bond**

(i) All Performance Bond required under the Contract shall be provided in the form of a single Performance Bond instrument, issued by a single entity on behalf of all Consortium Members.

(ii) The Owner shall not be required to accept multiple performance securities or instruments from individual Consortium Members.

(f) **Representations and Warranties**

(i) All representations, warranties, covenants, and undertakings given by the Contractor under or in connection with the Contract (including, without limitation, as to due incorporation or establishment, legal capacity, power, and authority to enter into and perform the Contract, and due execution and delivery of the Contract and all related documents) shall be deemed to be given by each Consortium Member individually and severally, as well as collectively.

(ii) Each Consortium Member represents and warrants to the Owner that it has full power, authority, and legal right to enter into and perform the Contract and that the Contract has been duly executed and delivered by it and constitutes its valid and binding obligation.

(iii) No Consortium Member shall be entitled to avoid, limit, or deny any such representation, warranty, covenant, or undertaking on the basis of any act, omission, default, or conduct of any other Consortium Member or the Consortium Leader.

(g) **No Prejudice to Owner's Rights**

The provisions of this Clause 1.14 are without prejudice to any other rights or remedies of the Owner under the Contract or at law.

1.15 Whole Agreement

The Contract contains the whole agreement between the Parties relating to the transactions contemplated by this agreement and supersedes all previous agreements between the Parties relating to these transactions.

The Contractor acknowledges that, in agreeing to enter into the Contract, it has not relied on any express or implied representation, warranty, collateral contract or other assurance made by or on behalf of the Owner at any time before the signature of the Contract. The Contractor waives all rights and remedies which, but for this Sub-Clause 1.15, might otherwise be available to it in respect of any such representation, warranty, collateral contract or other assurance.

1.16 Severability

The provisions contained in each clause of the Contract shall be enforceable independently of each of the others and their validity shall not be affected if any of the others are invalid.

1.17 Non-Waiver

Any rights and remedies provided for in the Contract whether in favour of the Contractor or the Owner are cumulative and in addition to any further rights or remedies which may otherwise be available to the Parties. Unless specifically stated in the Contract, any failure by either of the Parties to enforce such rights or remedies shall not be a waiver of such rights or remedies. Any approval given by the Owner shall not in any way either reduce, or relieve the Contractor of, its obligations under the Contract.

1.18 Counterparts

The Contract may be executed in any number of counterparts, all of which, taken together, shall constitute one and the same agreement, and any Party (including any duly authorised representative of a Party) may enter into the Contract by executing a counterpart.

1.19 Third Party Rights

(a) The Contract shall inure to the benefit of and be binding upon the successors and permitted assigns of the Parties. Except as otherwise provided herein, the provisions of the Contract are intended for the sole benefit of the Parties hereto, their successors and permitted assigns, and no other person not Party to the Contract shall have or acquire any right to enforce any term under the Contract.

(b) The Contract shall not create any right under the Contracts (Rights of Third Parties) Act 1999 which is enforceable by any person which is not a party hereto.

1.20 Notices

(a) All notices given by either Party to the other under the Contract shall be in writing and shall, unless specifically provided for in the Contract to the contrary, be sent to the address of the other Party as set out in the Contract Agreement.

(b) A notice may be sent by post, e-mail or delivered by hand.

(c) Any notice given shall be deemed to have been received by the other Party:

(i) if posted by DHL, UPS, FEDEX, TNT or similar, three (3) calendar days after the date of posting (if posted to an address in the same country) or ten (10) calendar days after the date of posting (if posted to an address in another country);

(ii) if sent by e-mail, at the time of transmission, provided that the sender does not receive any indication that the email has not been successfully delivered or that the recipient's email address is invalid or unavailable. If the email is transmitted outside the recipient's normal business hours, the notice or communication shall be deemed to have been served at the beginning of the next working day of the recipient; and

(iii) if delivered by hand, on the day of delivery, and in each case posting, transmission or delivery shall be proof of service.

1.21 Independent Contractor

The Contractor shall be an independent contractor performing the Contract. The Contract does not create any agency, partnership, joint venture or other joint relationship between the Parties. Subject to the provisions of the Contract, the Contractor shall be solely responsible for the manner in which the Contract is performed. All employees, representatives or sub-contractors engaged by the Contractor in connection with the performance of the Contract shall be under the complete control of the Contractor and shall not be deemed to be employees of the Owner, and nothing contained in the Contract or in any Contract awarded by the Contractor shall be construed to create any contractual relationship between any such employees, representatives or sub-contractors and the Owner.

1.22 Sole and Exclusive Remedies

(a) Unless otherwise provided, the remedies set out in the Contract are the sole and exclusive remedies of the Contractor for the obligations and the liabilities arising under or in connection with the Contract however arising (including for breach of contract, in tort (including negligence and strict liability), by reason of indemnification, breach of statutory duty, equity or any other legal theory, including Applicable Laws), provided that nothing in the Contract shall prevent or restrict the right of either Party to seek injunctive relief or a decree of specific performance against the other Party.

(b) Any rights and remedies provided for in the Contract in favor of the Owner, are, unless otherwise stated, cumulative and in addition to any further rights or remedies which may otherwise be available to the Owner, including under law, in equity, or otherwise.

1.23 Effect of Owner's Consent, No-Objection, Comment and Certificates

Any notice or comment on, or approval of, or No-objection of any document provided by the Contractor under or pursuant to the Contract by the Owner shall not, unless otherwise stated, relieve the Contractor of any of its obligations under the Contract.

The issue of any certificate (other than the Final Taking Over Certificate) will not:

(a) constitute a release of the Contractor from the warranties given, or performance of any of its obligations, under the Contract;

(b) be taken as an admission of the due performance of the Contract or any part of it; or

(c) negate or prejudice any of the rights, powers and remedies of the Owner,

provided that, for the avoidance of doubt, the issue of the Final Taking Over Certificate shall not relieve the Contractor from its obligations to rectify any Latent Defects or Serial Defects arising during the Latent Defects Liability Period.

1.24 Waiver of Sovereign Immunity

Each Party irrevocably and unconditionally:

(a) agrees that, to the extent that it may in any jurisdiction claim for itself or its assets immunity from suit, execution, attachment (whether in aid of execution, before judgment or otherwise) or other legal process and to the extent that in any such jurisdiction there may be attributed to itself or its assets such immunity (whether or not claimed), it has, to the fullest extent permitted by the Laws of such jurisdiction, waived such immunity and agrees that it will not claim any such immunity or make any such claim in any proceedings arising out of or in connection with the Contract;

(b) consents generally in respect of any proceedings arising out of or in connection with the Contract to the giving of any relief or the issue of any process in connection with such proceedings, including, without limitation, the making, enforcement or execution against any property whatsoever (irrespective of its use or intended use) of any order or judgment which may be made or given in such proceedings; and

(c) acknowledges that the foregoing waiver is intended to be effective to the fullest extent permitted by Law and that it constitutes a commercial act rather than a sovereign act.

1.25 [No relief and horizontal defences

(a) The Contractor waives any and all rights, under contract, tort or otherwise at law, to assert any and all defences which the Contractor may have to a claim by the Owner for the non-performance, inadequate performance or delay in performance under or in connection with the Contract due to any non-performance or inadequate performance or delay in performance by the Operator under or in connection with the O&M contract or LTSA.

(b) For the avoidance of doubt, the Owner shall not be entitled to recover the same damages or otherwise obtain the same reimbursement or restitution more than once in respect of the same claim or liability against the Contractor and Operator, as the case may be, arising under any provision of the Contract or O&M contract (as applicable).] ***[Note to Bidders – inclusion of the above provisions will depend on whether the Contractor (or its Affiliates) are also the Operator under the O&M Contract or LTSA]***

2 The Owner

2.1 Site Clearance Works and Right of Access to the Site

(a) Subject to Article 6.7 [Limited Notice to Proceed] of the Contract Agreement, from the Effective Date, the Owner shall give the Contractor right of access to those parts of the Site necessary for the Works, on a part-by-part basis, in accordance with the times and sequence set out in the Owner's Requirements and the Programme.

(b) The Owner shall notify the Contractor in writing when any part of the Site, meets the Site Clearance Requirements and is ready for handover to the Contractor, and deliver to the Contractor all geotechnical reports and other test results demonstrating this. The Owner shall have no obligation to deliver the Site or any part thereof in any condition other than as required to meet the Site Clearance Requirements.

(c) Upon receipt of such notice and test results, the Contractor shall, within fourteen (14) calendar days, have the right to inspect and, if it deems necessary, carry out geotechnical or other investigations to verify whether the relevant part of the Site complies with the Site Clearance Requirements. The Contractor shall promptly notify the Owner in writing of any non-compliance with the Site Clearance Requirements, providing reasonable details and supporting evidence.

(d) If the Contractor notifies the Owner of any such non-compliance, the Owner shall cause the Site Clearance Contractor to rectify such non-compliance such that the Site (or relevant part thereof) complies with the Site Clearance Requirements. Upon completion of such rectification and the Site (or relevant part thereof) complying with the Site Clearance Requirements, the process in sub-paragraphs (b) and (c) shall be repeated.

(e) Once the relevant part of the Site complies with the Site Clearance Requirements, the Contractor shall:

(i) provide written confirmation to the Owner; and

(ii) countersign the "Site Handover Memorandum" issued under the Site Clearance Contract for the relevant part of the Site, confirming its satisfaction that the Site or part thereof meets the Site Clearance Requirements.

(f) The countersigning of the "Site Handover Memorandum" and/or the handover of, and the Contractor's occupation of the relevant part of the Site shall be deemed to constitute the Contractor's acceptance of the Site or part thereof for all purposes under the Contract, including satisfaction as to all site and ground conditions (including subsurface, hydrological, environmental, and other physical conditions at and around the Site) for the execution of the Works, and confirmation that the Site Clearance Requirements have been met. Upon such acceptance (or deemed acceptance), the Contractor shall have No Claim against the Owner in respect of any site or ground conditions or any other matter relating to the condition of the Site (or part thereof).

(g) The Contractor's right to access to the Site under this Sub-Clause 2.1 is not a right of possession (either on an exclusive or non-exclusive basis) and the Contractor may be required to share access to the Site with others (including Other Contractors). The Contractor acknowledges and agrees that the Site and the access rights to the Site constitute all of the premises, easements, facilities and other property interests that are required in order to carry out the Works in accordance with the Contract.

(h) If the Contractor suffers delay as a result of a failure by the Owner to give any such right within such time (but if and only to the extent that such failure was not caused by an error or delay by the Contractor), the Contractor shall give notice to the Owner's Representative and shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] to an extension of time for any such delay, if Taking Over is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion].

After receiving this notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

(i) However, if and to the extent that the Owner's failure was caused by any error or delay by the Contractor, including an error in, or delay in the submission of, any of the Contractor's Documents, the Contractor shall not be entitled to such extension of time.

(j) For the avoidance of doubt, to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with the Owner's failure to comply with sub-paragraph (a) of this Sub-Clause 2.1 other than as may be provided under sub-paragraph (h) of this Sub-Clause 2.1.

2.2 Permits, Licences and Approvals

(a) The Contractor shall acquire and maintain all Consents which are necessary for the performance of the Works (including any Consents for the delivery and clearance through customs of all Equipment and Materials, visas for the

Contractor's Personnel, and for the export of Construction Equipment when it is removed from the Site) which are not Owner's Consents (the "**Contractor's Consents**") and deliver certified copies of such Consents as soon as practicable after obtaining such Consents. Schedule 5 [Permits, Licences and Approvals] provides a non-exhaustive list of the Consents likely to be required to be obtained by the Contractor in connection with the Works.

(b) The Contractor shall, when requested by the Owner, provide reasonable assistance to the Owner in obtaining any Owner's Consents, and shall provide documentation and all other assistance reasonably requested by the Owner.

(c) The Owner shall obtain the Consents which are listed as the Owner's responsibility in Schedule 5 [Permits, Licences and Approvals], together with all other Consents required to be in its name (if any) (the "**Owner's Consents**").

(d) The Owner shall provide reasonable assistance to the Contractor at the Contractor's request in the performance of its obligations under Sub-Clauses 1.13 [Compliance with Laws] and this Sub-Clause 2.2(a). However, any assistance provided by the Owner shall not relieve the Contractor from the Contractor's sole responsibility for complying with Sub-Clause 1.13 [Compliance with Laws] and this Sub-Clause 2.2(a).

(e) In respect of any Contractor's Consents which will be issued in the name of the Owner, the Contractor shall, as soon as such documents are available, provide to the Owner the originals of:

(i) the Consents;

(ii) the application dossiers submitted for such Consents; and

(iii) any related correspondences with the relevant Governmental Instrumentalities.

(f) In respect of any Contractor’s Consents which will be issued in the name of the Contractor, the Contractor shall, as soon as such documents are available, provide the Owner with certified copies of:

(i) the Consents;

(ii) the application dossiers submitted for such Consents; and

(iii) any related correspondences with the relevant Governmental Instrumentalities.

If required by the Owner, any Financing Parties, the Lessor, the Power Purchaser or the relevant Governmental Instrumentalities, the Contractor shall, upon the Owner’s request, present the originals of such documents.

2.3 Owner's Personnel

The Owner shall be responsible for ensuring that the Owner's Personnel and the Owner's other contractors on the Site:

(a) co-operate with the Contractor's efforts under Sub-Clause 4.6 [Co-operation], and

(b) take actions similar to those which the Contractor is required to take under sub-paragraphs (a), (g)(i), (g)(v) and (g)(vi) of Sub-Clause 4.5 [Health and Safety Management] and under Sub-Clause 4.18 [Environmental and Social Protection].

2.4 Owner's Claims

(a) If the Owner considers itself to be entitled to any payment under any Clause of these Conditions or otherwise in connection with the Contract, and/or to any extension of the Defects Liability Period, it shall give notice and particulars to the Contractor. However, notice is not required for payments due under Sub-Clause 4.19 [Utilities], or for other services requested by the Contractor.

(b) The notice shall be given as soon as practicable after the Owner became aware of the event or circumstances giving rise to the claim. A notice relating to any extension of the Defects Liability Period shall be given before the expiry of such period.

(c) The particulars shall specify the Clause or other basis of the claim, and shall include substantiation of the amount and/or extension to which the Owner considers itself to be entitled in connection with the Contract. The Owner shall then proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine (a) the amount (if any) which the Owner is entitled to be paid by the Contractor, and/or (b) the extension (if any) of the Defects Liability Period in accordance with Sub-Clause 11.3 [Extension of Defects Liability Period].

(d) The Owner may deduct such amounts from any moneys due, or to become due, to the Contractor.

3 The Owner's Administration

3.1 The Owner's Representative

(a) The Owner may appoint an Owner's Representative to act on its behalf under the Contract, in which case the Owner shall give notice to the Contractor of the name, address, duties and authority of the Owner's Representative.

(b) The Owner's Representative shall carry out the duties assigned to it, and shall exercise the authority delegated to it, by the Owner. Unless and until the Owner notifies the Contractor otherwise, the Owner's Representative shall be deemed to have the full authority of the Owner under the Contract, except in respect of Clause 15 [Termination by Owner].

(c) If the Owner wishes to replace any person appointed as Owner's Representative, the Owner shall give the Contractor not less than fourteen (14) calendar days' notice of the replacement's name, address, duties and authority, and of the date of appointment.

(d) The Contractor must cooperate fully with the Owner's Representative so as to permit it to properly discharge its duties, including by assisting and providing all relevant information to the Owner's Representative.

(e) No act or omission (including any review or failure to review any documentation) by the Owner's Representative or any assistant in the performance of any of their respective duties under the Contract shall in any way operate to relieve the Contractor of any of its duties, responsibilities, obligations or liabilities under the Contract or otherwise.

(f) The Owner's Representative has no authority to vary or waive any term of the Contract or terminate the Contract.

3.2 Other Owner's Personnel

(a) The Owner or the Owner's Representative may from time to time assign duties and delegate authority to assistants, and may also revoke such assignment or delegation. These assistants may include a resident engineer, and/or independent inspectors appointed to inspect and/or test items of Equipment and/or Materials. The assignment, delegation or revocation shall not take effect until a copy of it has been received by the Contractor.

(b) Assistants shall be suitably qualified persons, who are competent to carry out these duties and exercise this authority, and who are fluent in the language for communications defined in Sub-Clause 1.4 [Law and Language]

3.3 Delegated Persons

All these persons, including the Owner's Representative and assistants, to whom duties have been assigned or authority has been delegated, shall only be authorised to issue instructions to the Contractor to the extent defined by the delegation. Any approval, check, certificate, consent, examination, inspection, instruction, notice, proposal, request, test, or similar act by a delegated person, in accordance with the delegation, shall have the same effect as though the act had been an act of the Owner. However:

(a) save as otherwise provided under the Contract, no approval, expression of satisfaction, comment, review, test, inspection, payment or certificate made or given (of any failure to make or give the same) by Owner's Representative or delegates under the Contract, shall relieve the Contractor of any of its obligations, risks or liabilities; and

(b) if the Contractor questions any determination or instruction of a delegated person, the Contractor may refer the matter to the Owner, who shall promptly confirm, reverse or vary the determination or instruction.

3.4 Instructions

(a) The Owner may issue to the Contractor instructions which may be necessary for the Contractor to perform its obligations under the Contract. Each instruction shall be given in writing and shall state the obligations to which it relates and the Sub-Clause (or other term of the Contract) in which the obligations are specified.

(b) If the Contractor is of the view that such instruction constitutes a Change, the Contractor shall give written notice to the Owner and the provisions of Clause 13 [Changes and Adjustments] shall apply provided that the instruction shall only constitute a Change if the Owner subsequently confirms in writing that such instruction is a Change.

(c) The Contractor shall take instructions from the Owner, or from the Owner's Representative or an assistant to whom the appropriate authority has been delegated under this Sub-Clause 3.4.

3.5 Determinations

(a) Whenever these Conditions provide that the Owner shall proceed in accordance with this Sub-Clause 3.5 to agree or determine any matter, the Owner shall consult with the Contractor in an endeavour to reach agreement. If agreement is not achieved within fourteen (14) calendar days of the Owner's request to the Contractor for a consultation, the Owner shall make a fair determination in accordance with the Contract, taking due regard of all relevant circumstances.

(b) Without prejudice to the generality of sub-paragraph (a) above, if the Owner is required to make a fair determination of any adjustment of the Contract Price under this Sub-Clause 3.5, the increase or decrease to the Contract Price shall be valued at the rates and prices set out in the Contract if, in the opinion of the Owner, such rates and prices are applicable. If the Contract does not contain any rates or prices applicable to the adjustment of the Contract Price, the Owner shall fix such value as, in its opinion, is appropriate and shall notify the Contractor accordingly.

(c) The Owner shall give notice to the Contractor of each agreement or determination, with supporting particulars. Each Party shall give effect to each agreement or determination, unless the Contractor gives notice, to the Owner, the dissatisfaction with a determination within fourteen (14) calendar days of receiving it.

(d) The agreement or determination given under sub-paragraph (c) of this Sub-Clause 3.5 will be final and binding on the Parties unless notice of dissatisfaction with the decision is given by the Contractor to the Owner within fourteen (14) calendar days of the Contractor's receipt of the Owner's notice of agreement or determination under sub-paragraph (c) of this Sub-Clause 3.5, in which event the Dispute will be referred to Expert Determination pursuant to Sub-Clause 20.3 [Expert] (if it concerns a technical, valuation or pricing matter) or arbitration pursuant to Sub- Clause 20.4 [Arbitration] (if it concerns any other matter).

(e) Notwithstanding the issue of any notice of dissatisfaction or the commencement of any Expert Determination pursuant to Sub-Clause 20.3 [Expert] or arbitration pursuant to Sub- Clause 20.4 [Arbitration], and without limitation or prejudice to any final and binding agreement or determination of the Owner under sub-paragraph (c) of this Sub-Clause 3.5, the Parties will recognise and abide by and observe and comply with any agreement or determination of the Owner unless and until the decision is overturned or changed through Expert Determination or arbitration.

3.6 Progress Meetings

(a) The Owner or the Owner's Representative may hold progress meetings, comprising the Owner's Personnel, the Contractor's Representative, the Contractor's Personnel and any other person required by the Owner (including, but not limited to, the Financing Parties, the Power Purchaser, the Lessor and any relevant Governmental Instrumentalities).

(b) The function of the progress meeting may include reviewing the progress of the Works, the Facility, the Project and the monthly progress reports submitted by the Contractor.

(c) The progress meetings shall be held on a monthly basis or at any other times required by the Owner's Representative at the Site, or as otherwise notified by the Owner's Representative.

(d) The Owner's Representative will:

(i) convene and chair all progress meeting; and

(ii) prepare and promptly provide minutes of the meetings of the relevant attendees.

(e) The Contractor must attend each progress meeting and report on:

(i) the progress of the Works; and

(ii) any material issues that have arisen in respect of the performance of the Works.

(f) If directed by the Owner's Representative, the Contractor must arrange for the Subcontractors nominated by the Owner's Representative to also attend any progress meeting.

4 The Contractor

4.1 Contractor's General Obligations

(a) The Contractor shall design, execute and complete the Works in accordance with the Contract, and shall remedy any Defects in the Works. When completed, the Works shall be fit for the purposes for which the Works are intended as defined in the Contract.

(b) The Contractor shall provide Contractor's Documents specified in the Contract, and all Contractor's Personnel, Goods, consumables and other things and services, whether of a temporary or permanent nature, required in and for this design, execution, completion and remedying of Defects, Latent Defects and Serial Defects.

(c) The Works shall include any work which is necessary to satisfy the Owner's Requirements, or is implied by the Contract, and all works which (although not

mentioned in the Contract) are necessary for stability or for the completion, or safe and proper operation, of the Works.

(d) The Contractor shall be responsible for the adequacy, stability and safety of all Site operations, of all methods of construction and of all the Works.

(e) The Contractor shall, whenever required by the Owner, submit details of the arrangements and methods which the Contractor proposes to adopt for the execution of the Works. No significant alteration to these arrangements and methods shall be made without this having previously been notified to the Owner.

(f) The Contractor shall perform all such work and supply all such services, labour, personnel, Construction Equipment and Materials not specifically mentioned in the Contract but which can be reasonably inferred in accordance with Prudent Utility Practice as being required for the proper performance of the Works as if such services, labour, personnel, Construction Equipment and Materials were expressly mentioned in the Contract.

(g) The Contractor shall carry out the Works so as to achieve each Interim Milestone no later than the applicable Interim Milestone Date, Taking Over by the Contracted Date for Completion and achieve the Performance Guarantee.

4.1A Warranties

Without prejudice to any other warranties expressed elsewhere in the Contract, the Contractor warrants to the Owner that:

(a) Works will be performed:

(i) in accordance with the Contract, the Project Documents (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations);

(ii) in a thorough and professional manner in accordance with Prudent Utility Practice;

(iii) in accordance with all Applicable Laws and all applicable Technical Standards including, for the avoidance of doubt, all Vietnam Legal Requirements and applicable Technical Standards which are introduced or modified after the [Base Date];

(iv) for the Contract Price;

(v) with due expedition, without delay and so as to achieve each Interim Milestone by the applicable Interim Milestone Date and Facility Taking Over by the Scheduled Taking Over Date; and

(vi) in a manner which maintains in full force and effect all guarantees and warranties provided by suppliers and subcontractors in respect of the Equipment and Materials supplied for the Works.

(b) All Equipment and Materials for incorporation into the Facility shall be new and unused (unless otherwise stated in the Contract), fit for the purpose and of a quality reasonably expected in the international construction and design industries, free from material Defects, Latent Defects and Serial Defects, and all other deficiencies of any kind, and free from any Lien and shall conform to the requirements set out in the Contract;

(c) the Works and the Facility will utilise proven technology, being a technology that has operated commercially at other facilities and which as of the Contract Date is capable of being insured on the insurance market on a reasonable basis; and

(d) when Taking Over is achieved, the Works will:

(i) pass all Tests on Completion and attain the Performance Guarantees and Absolute Guarantees;

(ii) conform precisely in quality and specification with the requirements of the Contract, the Governmental Project Documents and the LNG SPA (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations);

(iii) be free from Defects, Latent Defects and Serial Defects in composition, materials or workmanship and be of the highest quality;

(iv) be fit for purpose as stated in the Contract and any purpose that may be reasonably inferred; and

(v) comply with all Applicable Laws and all applicable Technical Standards; and

(vi) have an economic operating life of at least 25 years from the Commercial Operation Date, and the design life of all Equipment, all protective coatings, and all civil and structural infrastructure shall be not less than the period set out in the Owner's Requirements.

4.2 Performance Bond

(a) Within [fourteen (14)] calendar days of the date of the Contract, the Contractor shall deliver the Performance Bond to the Owner. The Contractor shall be solely responsible for all costs and expenses incurred in obtaining, issuing, and maintaining the Performance Bond. The Performance Bond shall:

(i) be an irrevocable, unconditional and on demand bond in the form set out in Schedule 16 [Form of Contractor's Security Bonds];

(ii) be issued by an international financial institution or other institution acceptable to the Owner, in each such case, with a branch in Vietnam and with an Acceptable Credit Rating;

(iii) be for [thirty percent (30%)] of the Contract Price, but shall be reduced to [fifteen percent (15%)] of the Contract Price upon the Facility Taking Over Date and the Contractor's provision of a discharge in accordance

with Sub-Clause 14.10(a) [Discharge] (the "**Performance Bond Step-Down Date**") (provided that, in lieu of maintaining a Performance Bond which automatically reduces to [fifteen percent (15%)] of the Contract Price on the occurrence of the Performance Bond Step-Down Date, the Contractor may, at its discretion, immediately prior to the Facility Taking Over Date, provide the Owner with a replacement Performance Bond for [fifteen percent (15%)] of the Contract Price, in which case the Owner shall, within twenty one (21) calendar days after the Performance Bond Step-Down Date, return to the Contractor all other Performance Bond previously provided by the Contractor); and

(iv) other than as provided in sub-paragraph (iii) above, be valid and enforceable until the expiry of the Defects Liability Period for all of the Works (which, for the avoidance of doubt, shall not include the Latent Defects Liability Period) and the rectification of all Defects identified prior to the expiry of the Defects Liability Period (the "**Performance Bond End Date**").

(b) If the issuer of a Performance Bond suffers a credit downgrade such that it no longer holds an Acceptable Credit Rating, the Contractor shall, within twenty eight (28) calendar days of becoming aware of such downgrade, provide the Owner with a replacement Performance Bond for the same amount, issued by an international financial institution or other institution acceptable to the Owner with an Acceptable Credit Rating, and in the same form as the Performance Bond being replaced (or such other form as approved by the Owner).

(c) If the terms of the Performance Bond specify an expiry date, and the Performance Bond End Date has not occurred or will not occur by the date falling twenty eight (28) calendar days before expiry date, the Contractor shall extend the validity of the Performance Bond or provide a replacement Performance Bond until the Performance Bond End Date.

(d) If the Contractor fails to extend the validity of the Performance Bond or provide a replacement Performance Bond by the date twenty eight (28) calendar days prior to the expiry date, then the Owner may call on the full amount of the Performance Bond and hold the proceeds as cash security. If the Contractor subsequently extends the validity of the Performance Bond provides a replacement Performance Bond that complies with all the requirements stipulated in this Sub-Clause 4.2, the Owner shall return to the Contractor the proceeds of drawing down on the Performance Bond less any reasonable costs necessarily incurred as a result of the Contractor's delay in extending the validity of the Performance Bond or providing a replacement Performance Bond.

(e) The Owner may call upon any Security Bonds, in whole or in part, and may use the proceeds in any manner it sees fit, if:

(i) the Owner considers, acting reasonably, that it has incurred or might in the future incur any Loss as a consequence of any act, default, breach or omission of the Contractor;

(ii) the Contractor has failed to extend the validity of the Security Bond or provide a replacement Security Bond as described in the sub-paragraph (d) above or Sub-Clause 14.2 [Advance Payment] below;

(iii) the Contractor has failed to provide a replacement Security Bond within twenty eight (28) calendar days of the issuer of the relevant Security Bond suffering a credit downgrade such that it no longer holds an Acceptable Credit Rating;

(iv) the Contractor has failed to pay the Owner an amount due, as either agreed by the Contractor or determined under Sub-Clause 2.4 [Owner's Claims] or Clause 20 [Claims, Disputes and Arbitration], within thirty (30) calendar days after this agreement or determination;

(v) the Contractor has failed to remedy a default within fourteen (14) calendar days after receiving the Owner's notice requiring the default to be remedied; or

(vi) any event as described in Sub-Clause 15.2 [Termination by Owner] has arisen and the Owner has given the Contractor notice of such event, irrespective of whether notice of termination has been given.

(f) The Contractor must not take any steps to injunct or otherwise restrain:

(i) the issuer of any Security Bond from paying the Owner pursuant to the Security Bond; or

(ii) the Owner from demanding payment under any Security Bond or using the proceeds received under any Security Bond.

(g) The Parties agree that the Owner does not hold the Security Bonds or the proceeds of the Security Bonds on trust for the Contractor and is not obliged in any circumstances to pay the Contractor interest associated with the Security Bonds.

(h) If at any time any one or more Changes increases the Contract Price as at the Effective Date by [five percent (5%)] or more in the aggregate, the Contractor shall increase the value of the Performance Bond to reflect the increased Contract Price.

(i) Other than as provided under sub-paragraph (a)(iii) above, the Owner shall return the Performance Bond to the Contractor within twenty one (21) calendar days after the Performance Bond End Date.

4.2A Parent Company Guarantee

(a) The Contractor shall procure at its own expense a Parent Company Guarantee by the Guarantor providing that such guarantor is liable for the due and prompt performance of the Contract by the Contractor. Such Parent Company Guarantee shall be provided as a condition precedent to the issue of the Notice to Proceed and the Owner making any payment under the Contract.

(b) If any Parent Company Guarantee provided by a Contractor pursuant to the Contract is or becomes invalid or unenforceable for any reason whatsoever, or the Guarantor suffers a credit downgrade such that it no longer holds an Acceptable Credit Rating, then the Contractor shall immediately notify the Owner and obtain within fourteen (14) calendar days of becoming aware of such event a replacement Parent Company Guarantee from a replacement guarantor approved by the Owner.

4.3 Contractor's Representative

(a) The Contractor shall appoint the Contractor's Representative and shall give it all authority necessary to act on the Contractor's behalf under the Contract.

(b) Unless the Contractor's Representative is named in the Contract, the Contractor shall, prior to the Effective Date, submit to the Owner for consent the name and particulars of the person the Contractor proposes to appoint as Contractor's Representative. If consent is withheld or subsequently revoked, or if the appointed person fails to act as Contractor's Representative, the Contractor shall similarly submit the name and particulars of another suitable person for such appointment.

(c) The Contractor shall not, without the prior consent of the Owner, revoke the appointment of the Contractor's Representative or appoint a replacement.

(d) The Contractor's Representative shall, on behalf of the Contractor, receive instructions under Sub-Clause 3.4 [Instructions].

(e) The Contractor's Representative may delegate any powers, functions and authority to any competent person, and may at any time revoke the delegation. Any delegation or revocation shall not take effect until the Owner has received prior notice signed by the Contractor's Representative, naming the person and specifying the powers, functions and authority being delegated or revoked.

(f) The Contractor's Representative and all these persons shall be fluent in the language for communications defined in Sub-Clause 1.4 [Law and Language].

4.4 Subcontractors

(a) The Contractor shall not subcontract the whole of the Works, and the Contractor shall procure that each Subcontractor does not further subcontract more than fifty percent (50%) of the relevant works already subcontracted to it.

(b) The Contractor shall not subcontract any part of the Works to any Subcontractor without the Owner's approval, unless such subcontract is to one of the Pre-Approved Subcontractors and for the items or works listed in Schedule 12 [Approved Subcontractors and suppliers], provided that if, in respect of any such items or works, the Contractor wishes to engage a Subcontractor not that is not a Pre-Approved Subcontractor (including where a Pre-Approved Subcontractor is unable or unwilling to supply or perform the relevant items or works), the Contractor must obtain the Owner's prior written approval before engaging such alternative Subcontractor.

(c) In obtaining the Owner's consent pursuant to sub-paragraph (b) above, the Contractor must provide to the Owner full particulars in writing of the part of the Works to be subcontracted, the name of the proposed Subcontractor, information establishing the financial, technical and personnel capacity (including details of previous experience and safety and environmental records of the proposed Subcontractor) to successfully perform the subcontracted work and any other information requested by the Owner.

(d) The Contractor shall give the Owner not less than twenty eight (28) calendar days' notice of:

(i) the intended appointment of any Subcontractor, with detailed particulars which shall include its relevant experience;

(ii) the intended commencement of the Subcontractor's work; and

(iii) the intended commencement of the Subcontractor's work on the Site.

(e) Upon execution of each subcontract, the Contractor shall provide to the Owner an unpriced copy.

(f) The Contractor shall be responsible for the acts or defaults of any Subcontractor, its agents or employees, as if they were the acts or defaults of the Contractor, and no approval by the Owner of any Subcontractor shall relieve the Contractor from such obligations.

(g) The Contractor shall require all Subcontractors (including all Pre-Approved Subcontractors) to perform their work in conformity with all applicable requirements of the Contract.

(h) Unless the Owner approves in writing, the Contractor shall ensure and shall inform and procure that its Subcontractors also ensure that no part of the Works is performed by Subcontractors and vendors/suppliers of goods which is more than three levels of subcontracting or supply below the Contractor itself. If at any time during the performance of the Works the Owner has reasonable grounds to believe that any subcontracting requirements under this Sub-Clause 4.4 have not been complied with, the Contractor shall demonstrate to the Owner with particulars, evidence, and documentation that all subcontracting requirements under this Sub-Clause 4.4 are being fully complied with.

(i) The Contractor shall procure that each Subcontractor:

(i) does not further subcontract the entire scope of any subcontracted work awarded to it; only subcontracts up to 50% of the subcontract value awarded to it; and

(ii) does not subcontract the scope of work in which it has expertise.

(j) Whilst the Contractor may subcontract some portion of the Works to Subcontractors in accordance with this Sub-Clause 4.4, if at any time during the performance of the Works a Subcontractor becomes unacceptable to the Owner in the Owner’s opinion, the Contractor shall remove such Subcontractor upon

notice from the Owner and replace such Subcontractor with another qualified Subcontractor subject to the written approval of the Owner. All costs and risks associated with the removal and replacement of the Subcontractor shall be borne by the Contractor.

(k) The Contractor shall only engage Subcontractors who are suitably qualified and experienced in their respective work and activities so that the Works are performed and completed in a proper and professional manner and in accordance with the Contract.

(l) The Contractor shall promptly pay, in accordance with the terms and conditions set forth in the respective Subcontract, each Subcontractor the undisputed amount to which said Subcontractor is entitled.

4.4A Transfer of Subcontractors' Warranties

(a) In the event that a Subcontractor has any continuing liability, obligation, or warranty in relation to any part of the Works (including, without limitation, any critical equipment or other items identified in Schedule 27 [Extended Warranties]) which extends beyond the expiry of the last Defects Liability Period, the Contractor shall, on or before the expiry of the Defects Liability Period, transfer to the Owner the benefit of any such continuing obligations or warranties by procuring that such Subcontractor executes a deed of warranty in the form set out in Schedule 28 [Deed of Warranty] (or such other form as may be approved by the Owner), for the full duration of the relevant extended warranty period as specified in Schedule 27 [Extended Warranties].

(b) The Contractor shall ensure that all subcontracts for the supply of critical equipment or other items identified in Schedule 27 [Extended Warranties] include provisions requiring the Subcontractor to provide warranties for the periods specified in that Schedule, and to execute a deed of warranty in favour of the Owner in accordance with sub-paragraph (a) above.

(c) The Contractor shall deliver to the Owner, promptly upon the expiry of the Defects Liability Period (or such earlier time as may be required by the Owner), all deeds of warranty and other documentation evidencing the transfer of the benefit of such extended warranties from the relevant Subcontractors to the Owner.

(d) The Contractor's obligation to transfer the benefit of such extended warranties to the Owner shall survive the expiry of the Defects Liability Period and Final Taking Over Certificate.

4.5 Health and Safety and Management

(a) The Contractor shall comply with:

(i) Vietnam Legal Requirements and all other Laws of any jurisdiction where the Works are carried out, in each case, concerning health and safety; and

(ii) the health and safety policies and standards of the Owner and any Financing Parties as set out in the Contract or otherwise provided to the Contractor from time to time,

(the "**Health and Safety Requirements**").

(b) The Contractor must, within thirty (30) calendar days after the Effective Date, submit for review by the Owner a health and safety management plan setting out how it will ensure compliance with the Health and Safety Requirements ("**HS Management Plan**").

(c) The Owner shall review the proposed HS Management Plan and provide the Contractor with any request for amendments.

(d) The Contractor and its personnel may not commence work at the Site unless and until the HS Management Plan and any requested amendments to it have been approved by the Owner.

(e) The Owner may at any time direct the Contractor to amend the approved HS Management Plan to adequately reflect any amendments to the Health and Safety Requirements.

(f) The Contractor must keep a copy of the approved HS Management Plan at its site office or work area at all times.

(g) Without limitation to the foregoing, the Contractor shall:

(i) at all times take all reasonable precautions to maintain the health and safety of the Contractor's Personnel and all other persons entitled to be on the Site;

(ii) keep the Site and Works clear of unnecessary obstruction so as to avoid danger to these persons;

(iii) provide fencing, lighting, guarding and watching of the Works until Taking Over;

(iv) provide any Temporary Works (including roadways, footways, guards and fences) which may be necessary, because of the execution of the Works, for the use and protection of the public and of owners and occupiers of adjacent land;

(v) in collaboration with local health authorities, ensure that medical staff, first aid facilities, sick bay and ambulance service are available at all times at the Site and at any accommodation for Contractor's Personnel, and that suitable arrangements are made for all necessary welfare and hygiene requirements and for the prevention of epidemics;

(vi) appoint an accident prevention officer at the Site, responsible for maintaining safety and protection against accidents. This person shall be qualified for this responsibility, and shall have the authority to issue instructions and take protective measures to prevent accidents.

Throughout the execution of the Works, the Contractor shall provide whatever is required by this person to exercise this responsibility and authority;

(vii) send, to the Owner, details of any accident as soon as practicable after its occurrence; and

(viii) maintain records and make reports concerning health, safety and welfare of persons, and damage to property, as the Owner may reasonably require.

4.6 Co-operation

(a) The Contractor shall not impede, and shall afford all reasonable opportunities for the Other Contractors to carry out their work on the Site.

(b) The Contractor shall co-ordinate and integrate the Works and the execution and other performance and provision thereof with the work (and the performance and provision thereof) to be undertaken by the Other Contractors. As part of this responsibility the Contractor shall:

(i) liaise and co-operate with the Other Contractors concerning the interface between the Works and their work; and

(ii) as and when requested by the Owner, attend and constructively contribute to, meetings with the Owner and other persons concerning co-ordination and integration.

(c) The Contractor shall properly manage, plan and organise the performance and provision of the Works and shall employ all such techniques, systems and resources as may be necessary for such purpose and shall ensure, subject to the compliance by Other Contractors with their respective obligations to co-operate and co-ordinate, that the progress of the Works adheres to the Programme, that all Interim Milestones are achieved by the applicable Interim Milestone Dates and that Facility Taking Over is achieved by the Scheduled Taking Over Date. The Contractor acknowledges and agrees that:

(i) the Owner is specifically relying on the Contractor's professional skill and judgment and its exercise of Prudent Utility Practice in relation to carrying out the Works in a co-ordinated manner and delivering the Works on time;

(ii) it is to be expected that the work of Other Contractors may affect the Contractor's performance of the Works and that the Contractor is obliged by this Sub-Clause 4.6 to minimise interference with the work of the Other Contractors, manage the areas of interface with Other Contractors and the effect Other Contractors have upon the Works, and to factor the same in, and to allow for the same, in its planning of the execution of the Works; and

(iii) no obligation of any Other Contractor which is owed to the Owner (whether or not performed) shall in itself relieve the Contractor of its

obligations or liability in connection with its obligation to co-ordinate under the Contract, including this Sub-Clause 4.6.

(d) The Owner shall establish and administer a committee comprising of the Owner's Representative and one (1) representative from each of the Contractor (which the Contractor shall nominate as required by the Owner) and the Other Contractors, as determined by the Owner (the "**Co-ordination Committee**") in accordance with the following provisions and requirements:

(i) the purpose of the Co-ordination Committee shall be to manage in good faith the co-ordination between the Owner, the Contractor and the Other Contractors, the Works and their respective works and the activities of the Owner and the Other Contractors, with each relevant person having a common objective to deliver the overall Project in accordance with the requirements of the Contract, the Financing Agreement and the Project Documents;

(ii) the Contractor shall provide or raise with the Co-ordination Committee all the issues related to the Works to be co-ordinated between the Owner and the Other Contractors. Such issues shall be provided to or raised with the Owner and the Other Contractors by the Contractor in a timely manner that is sufficient for the Owner and the Other Contractors to review and consider such issues;

(iii) the Contractor's representative in the Co-ordination Committee must be properly authorised by the Contractor to make decisions in respect of any matter to be considered by the Co-ordination Committee. Except when required by the Owner to attend in person, the Contractor may participate in meetings of the Co-ordination Committee via a video or telephone conference system. The Contractor or its representatives are not entitled to claim any additional cost or other remuneration from the Owner;

(iv) the Owner's Representative shall be responsible for chairing each meeting of the Co-ordination Committee;

(v) meetings may be called by the Owner, provided that reasonable advance notice of the time and place for the meeting is given to the members of the Co-ordination Committee. The required quorum for each meeting of the Co-ordination Committee shall be determined by the Owner, but shall include at a minimum:

(A) the Owner's Representative;

(B) the representative of the Contractor; and

(C) a representative from each of the Other Contractors;

(vi) a representative of each of the Financing Parties, the Power Purchaser, the Lessor and all other relevant Governmental Instrumentalities shall be entitled to attend and contribute to any meeting of the Co-ordination Committee;

(vii) the Owner's Representative shall establish the agenda of each meeting and draft and issue minutes of each meeting to the Contractor and Other Contractors as appropriate;

(viii) all actions and decisions of the Co-ordination Committee shall be reached by unanimous agreement of the representatives in quorum. However, if an action or decision cannot be reached unanimously, then the relevant matter shall be referred to the Owner's Representative and the Owner's Representative shall use reasonable endeavours to arrive at a fair and equitable outcome in the relevant circumstances (having regard for the need to deliver the Project as a whole safely, on time and on budget) and issue a determination to the relevant parties accordingly and the parties must comply with that determination. For the avoidance of doubt, a determination issued by the Owner's Representative under this Sub-Clause 4.6 shall be regarded as an instruction issued by the Owner's Representative under the Contract;

(ix) subject to Clause 13 [Changes and Adjustments], no determination issued under this Sub-Clause 4.6 shall itself be a sufficient ground for the Contractor to claim an extension of time or additional costs; and

(x) upon reasonable prior notice, the Owner, the Financing Parties, the Power Purchaser, the Contractor and each Other Contractor will be permitted to invite its own technicians and specialists to give advice and recommendations at meetings of the Co-ordination Committee.

(e) The Owner shall liaise with the Contractor (and Other Contractors to the extent required) in connection with each Interim Milestone and the Contractor shall ensure that it carries out and completes each Interim Milestone for which it is responsible by the applicable Interim Milestone Date.

(f) The Contractor shall, in each Co-ordination Committee meeting, provide reports on its expected work schedule for the next one (1) and three (3) months (each a "**One Month Schedule**" and "**Three Month Schedule**", respectively) and discuss with the Co-ordination Committee any issues and proposals on its construction schedule. In each One Month Schedule and Three Month Schedule, the Contractor shall raise potential issues which will affect the Interim Milestones.

(g) Notwithstanding any provision to the contrary in this Sub-Clause 4.6, if any part of the Works depends upon the work of any Other Contractor, the Contractor shall, prior to proceeding with the relevant part of the Works, inspect the work of that Other Contractor and promptly report to the Owner any apparent Defects in such work that renders it unsuitable for such proper execution of the Works. Failure of the Contractor to report such Defects shall constitute acceptance of the Other Contractor's work as fit and proper to receive the Works.

(h) If the Contractor damages the work of any Other Contractor, the Contractor shall rectify such damage at its risk and cost, and shall indemnify the Owner against any liabilities arising therefrom.

(i) To the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with complying with this Sub-Clause 4.6 or any

instructions given by the Owner under this Sub-Clause 4.6; provided that this sub-paragraph (i) shall not prevent the Contractor from claiming its entitlement to an extension of time under sub-paragraph (a)(iii) of Sub-Clause 8.4 [Extension of Contracted Date for Completion].

4.7 Setting Out

The Contractor shall set out the Works in relation to original points, lines and levels of reference specified in the Contract. The Contractor shall be responsible for the correct positioning of all parts of the Works, and shall rectify any error in the positions, levels, dimensions or alignment of the Works.

4.8 Archaeological and Geological Findings

(a) All fossils, coins, articles of value or antiquity, and structures and other remains or items of geological or archaeological interest found on the Site shall be placed under the care and authority of the Owner. The Contractor shall take reasonable precautions to prevent Contractor's Personnel or other persons from removing or damaging any of these findings.

(b) The Contractor shall, upon discovery of any such finding, promptly give notice to the Owner, who shall issue instructions for dealing with it. If the Contractor suffers delay and/or incurs Cost from complying with the instructions, the Contractor shall give a further notice to the Owner and shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] and the requirements of this Sub-Clause 4.8, to:

(i) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(ii) payment of any such Cost, which shall be added to the Contract Price.

(c) After receiving this further notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

(d) Notwithstanding any other provision of this Sub-Clause 4.8 or the Contract, the Contractor shall only be entitled to an extension of time, additional payment, or other relief under this Sub-Clause 4.8 to the extent, and only to the extent, that the Owner is granted corresponding relief (whether as to time, money, or otherwise) under the Governmental Project Documents in respect of the same event or circumstance.

(e) The Owner shall use reasonable endeavours to diligently pursue such relief under the Governmental Project Documents if the Contractor requests relief under this Sub-Clause 4.8 and the Owner is entitled to make a corresponding claim.

4.9 Quality Assurance

(a) The Contractor shall institute a quality assurance system to demonstrate compliance with the requirements of the Contract. The system shall be in accordance with the details stated in the Contract, including, but not limited to

the standards set out in the Owner's Requirements. The Owner shall be entitled to audit any aspect of the system.

(b) Details of all plans, procedures and compliance documents shall be submitted to the Owner before each design and execution stage is commenced. When any document of a technical nature is issued to the Owner, evidence of the prior approval by the Contractor itself shall be apparent on the document itself.

(c) Compliance with the quality assurance system shall not relieve the Contractor of any of its duties, obligations or responsibilities under the Contract.

(d) The Contractor must do all things necessary to comply with any quality assurance system notified by the Owner or must, if requested by the Owner, implement the quality assurance system approved by the Owner.

(e) The Contractor acknowledges and agrees that any quality assurance system approved by the Owner may require performance of the following:

(i) inspection and check-listing of work on completion;

(ii) identification and rectification of Defects;

(iii) provision of records on request;

(iv) reporting of non-conformance;

(v) provision of samples and prototypes; and

(vi) provision of access to the Contractor's systems and records by the Owner and any persons authorised by the Owner for the purpose of inspection and audit.

4.10 Site Data

(a) The Owner shall have made available to the Contractor for its information, prior to the Base Date, all relevant data in the Owner's possession on subsurface and hydrological conditions at the Site, including environmental aspects. The Owner shall similarly make available to the Contractor all such data which come into the Owner's possession after the Base Date.

(b) The Contractor shall be responsible for verifying and interpreting all such data. The Owner shall have no responsibility for the accuracy, sufficiency or completeness of such data, except as stated in Sub-Clause 5.1 [General Design Obligations].

4.11 Sufficiency of the Contract Price

(a) The Contractor shall be deemed to have satisfied itself as to the correctness and sufficiency of the Contract Price.

(b) Unless otherwise stated in the Contract, the Contract Price covers all the Contractor's obligations under the Contract and all things necessary for the proper

design, execution and completion of the Works and the remedying of any Defects during Defects Liability Period.

4.12 Unforeseeable Difficulties

(a) Except as otherwise stated in the Contract (including under Sub-Clause 2.1 [Site Clearance Works and Right of Access to the Site]):

(i) the Contractor shall be deemed to have obtained all necessary information as to risks, contingencies and other circumstances which may influence or affect the Works;

(ii) by signing the Contract, the Contractor accepts total responsibility for having foreseen all difficulties and costs of successfully completing the Works; and

(iii) the Contract Price shall not be adjusted to take account of any unforeseen difficulties or costs.

(b) Subject to Sub-Clause 2.1 [Site Clearance Works and Right of Access to the Site], the Contractor represents and warrants that:

(i) it has investigated the Site to the full extent necessary to perform its obligations under the Contract and is familiar with and has satisfied itself as to the Site Conditions;

(ii) it will have No Claim based upon any discrepancy between the actual Site Conditions encountered by the Contractor during the performance of the Works and those Site Conditions which the Contractor anticipated, or could have anticipated, at the Base Date.

4.13 Rights of Way and Facilities

The Contractor shall bear all costs and charges for special and/or temporary rights-of-way which he may require, including those for access to the Site.

Schedule 21 [Temporary Areas] sets out the temporary lay-down areas and Schedule 22 [Shared Facility Areas] sets out the shared facility areas which will be made available by the Owner for the Contractor to facilitate its performance of the Works. The Contractor shall obtain, at its risk and cost, any other additional facilities or laydown areas which it may require for the purposes of the Works.

4.14 Avoidance of Interference

(a) The Contractor must in carrying out the Works:

(i) avoid or minimise unreasonable interference with the passage and free movement of people and vehicles and the operations or activities carried out on the Site, near the Site, and in or around the adjacent or surrounding properties. Where temporary traffic diversions are required, the Contractor will consult with authorities and affected communities and

ensure appropriate alternative provisions are put in place to enable local people's passage and free movement;

(ii) prevent nuisance and noise, dust, air pollution, water pollution, soil pollution, odour, steam, and vibration, the release of Hazardous Substances and any disturbance to any adjacent or surrounding property, at levels which exceed those stipulated under the Contract (if any) or in excess of such lower levels as may be stipulated by the Owner (acting reasonably) from time to time;

(iii) promptly make good any damage, including any damage on or to any adjacent property caused by the Contractor's Personnel and pay any compensation, or do all such things necessary to ensure payment is made of any compensation, required by Applicable Laws to be paid by the Contractor or the Owner; and

(iv) ensure an appropriate grievance resolution mechanism is established to manage complaints and ensure effective follow-up and redress.

(b) To the extent that the Contractor fails to comply with any obligation under sub-paragraph (a) of this Sub-Clause 4.14, the Owner may, in addition to any other remedies under the Contract or at law, on reasonable prior notice to the Contractor, do all things necessary to rectify the failure, the costs of which shall be due and payable by the Contractor to the Owner.

(c) The Contractor must not, and must ensure that the Contractor's Personnel do not, operate, maintain or tamper with the Owner's, the Other Contractors', the Power Purchaser's, the Financing Parties', or any other Governmental Instrumentality's equipment without the prior written consent of the Owner. The Contractor must provide the Owner with advance notice of the need for such actions.

(d) To the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with, complying with this Sub-Clause 4.14, including where such compliance requires the Contractor to carry out more work, use more Construction Equipment or incur more cost.

(e) The Contractor shall indemnify, defend and hold harmless the Owner from and against all Losses resulting from any such unnecessary or improper interference.

4.15 Access Route

(a) Schedule 8 [Site Access] sets out the existing and future intended access roads to the Site. The Contractor shall be deemed to have been satisfied as to the suitability and availability of access routes to the Site. The Contractor shall use reasonable efforts to prevent any road or bridge from being damaged by the Contractor's traffic or by the Contractor's Personnel. These efforts shall include the proper use of appropriate vehicles and routes.

(b) Except as otherwise stated in these Conditions:

(i) the Contractor shall (as between the Parties) be responsible for the construction and maintenance of all Access Roads;

(ii) the Contractor shall provide all necessary signs or directions along access routes, and shall obtain any permission which may be required from the relevant authorities for its use of routes, signs and directions;

(iii) the Owner shall not be responsible for any claims which may arise from the use or otherwise of any access route, and the Contractor shall indemnify the Owner against all Losses arising in any way of out the Contractor's failure to comply with its obligations under this Sub-Clause 4.15;

(iv) the Owner does not guarantee the suitability or availability of particular access routes; and

(v) costs due to non-suitability or non-availability, for the use required by the Contractor, of access routes shall be borne by the Contractor.

4.16 Transport of Goods

(a) The Contractor shall give the Owner not less than twenty one (21) calendar days' notice of the date on which any Goods will be delivered to the Site.

(b) The Contractor shall be responsible for packing, loading, transporting, receiving, unloading, storing and protecting all Goods and other things required for the Works.

(c) The Contractor shall indemnify and hold the Owner harmless against and from all Losses resulting from the transport of Goods, and shall negotiate and pay all claims arising from their transport.

4.17 Construction Equipment

The Contractor shall be responsible for all Construction Equipment. When brought on to the Site, Construction Equipment shall be deemed to be exclusively intended for the execution of the Works.

The Contractor shall not remove from the Site any Construction Equipment without the prior approval of the Owner.

4.18 Environmental and Social Protection

The Contractor shall comply with the requirements of:

(i) the environmental and social impact assessment report for the Project and the Facility (if any);

(ii) all environmental and social Consents;

(iii) any Vietnam Legal Requirements, and all other Laws of any jurisdiction where the Works are carried out, in each case, relating to environmental and social protection; and

(iv) the Employer's and the Financing Parties' environmental and social requirements, policies and standards as set out in the Contract or otherwise provided to the Contractor from time to time,

(together, the "**Environmental and Social Requirements**").

(b) The Contractor must, within thirty (30) calendar days after the Effective Date, submit for review by the Owner an environmental management plan setting out how it will ensure compliance with the Environmental and Social Requirements ("**Environmental and Social Management Plan**").

(c) The Owner shall review the proposed Environmental and Social Management Plan and provide the Contractor with any request for amendments.

(d) The Contractor and its personnel may not commence work at the Site unless and until the Environmental and Social Management Plan and any requested amendments to it have been approved by the Owner.

(e) The Owner may at any time direct the Contractor to amend the approved Environmental and Social Management Plan to adequately reflect any amendments to the Environmental and Social Requirements.

(f) The Contractor must keep a copy of the approved Environmental and Social Management Plan at its site office or work area at all times.

(g) Without limitation to the foregoing, the Contractor shall:

(i) take all reasonable steps in accordance with Prudent Utility Practice to protect the environment (both on and off the Site) and to limit damage and nuisance to people and property resulting from pollution, noise and other results of its operations;

(ii) ensure that air emissions, noise pollution, soil, surface water, and ground water pollution, or the release of all Hazardous Substances from the Site works during the performance of its obligations under the Contract will not exceed prescribed limits under the Vietnam Legal Requirements and the Owner's Requirements. The Contractor shall comply in all respects with the provisions of the Owner's Requirements regarding the Contractor's obligations concerning environmental and social issues; and

(iii) [ensure that it does not do any act or omit to do any act that causes the Owner to be in breach of the Owner's obligations in respect of the protection of the environment and limitation of damage and nuisance to people and property under the PPA and Land Lease Agreement]. ***[Note to Bidders – subject to revision following finalization of the PPA and LLA]***

(h) The Contractor shall indemnify the Owner against all Losses arising in any way out of the Contractor's failure to comply with its obligations under this Sub-Clause 4.18.

4.19 Utilities

(a) The Owner shall arrange at its cost for the provision of utilities for the Commissioning of the Works to the extent set out in Schedule 7 [Utilities] (the "**Owner Supplied Utilities**"), but only up to the limits set out therein (the "**Agreed limit**").

(b) Except for the Commissioning of the Works and in accordance with the agreed limits as set out in Schedule 7 [Utilities], the Contractor shall at its own risk and cost arrange for, or, if supplied by the Owner, pay the Owner, for all other utilities required for the performance of the Works, including during construction, Commissioning, start-up and testing.

(c) The Contractor shall at its risk and cost, provide any apparatus necessary for its use of these services and for accurately measuring the quantities of services consumed.

(d) For the avoidance of doubt, if the Contractor exceeds the Agreed limit of any of the Owner Supplied Utilities, the Owner may at its option procure such excess Owner Supplied Utilities on behalf of the Contractor at Contractor's own cost and risks.

(e) The Contractor shall pay the Owner at cost for all utilities supplied by the Owner (other than Owner Supplied Utilities within the Agreed Limits), based on the rates under the PPA and LNG SPAs or other supply agreements, and in sufficient time for the Owner to meet its payment obligations in respect of such utilities under the PPA, LNG SPAs or other supply agreements.

4.20 Not Used

4.21 Progress Reports

Monthly progress reports, in the format stated in the Owner's Requirements (if not stated, in a format acceptable to the Owner and in sufficient detail to satisfy the reasonable requirements of the Financing Parties, the LNG Supplier, the Power Purchaser and each other counterparty to the Governmental Project Documents) shall be prepared by the Contractor and submitted to the Owner.

Each progress report shall be submitted in five (5) paper-original copies and one (1) electronic copy. The first report shall cover the period up to the end of the first month following the Effective Date. Reports shall be submitted monthly thereafter, each within seven (7) calendar days after the last day of the month to which it relates.

Reporting shall continue until the Facility Taking Over Date, or, if outstanding work is listed in the Punch-List, the date on which such outstanding work is completed. Unless otherwise stated in the Owner's Requirements, each progress report shall include:

(a) charts and detailed descriptions of progress, including each stage of design, Contractor's Documents, procurement, manufacture, delivery to Site, construction, erection, testing, Commissioning and trial operation;

(b) photographs showing the status of manufacture and of progress on the Site;

(c) for the manufacture of each main item of Equipment and Materials, the name of the manufacturer, manufacture location, percentage progress, and the actual or expected dates of:

(i) commencement of manufacture;

(ii) Contractor's inspections;

(iii) tests, and

(iv) shipment and arrival at the Site;

(d) the details described in Sub-Clause 6.9 [Records of Contractor's Personnel and Equipment];

(e) copies of quality assurance documents, test results and certificates of Materials;

(f) list of Changes, notices given under Sub-Clause 2.4 [Owner's Claims] and notices given under Sub-Clause 20.1 [Contractor's Claims];

(g) safety statistics, including details of any hazardous incidents and activities relating to environmental aspects and public relations;

(h) comparisons of actual and planned progress with details of any events or circumstances which may adversely affect the completion of the Works in accordance with the Programme and the Contracted Date for Completion, and the measures being (or to be) adopted to overcome delays;

(i) activities planned for the next month period including a recovery plan for any delayed progress, or issues of concern; and

(j) such additional information as may be requested by the Owner, including to enable the Owner to comply with its obligations under the Project Documents and the Financing Agreements.

and all other information required by Schedule 15 [Contract Management Principles].

If the Owner disagrees with or cannot verify any part of the progress report, the Contractor shall submit such further information as the Owner may reasonably require and shall make such changes in the progress report as may be agreed between them. The Contractor shall then prepare and submit to the Owner the revised progress report as agreed.

Nothing stated in any progress report shall constitute a notice under a Sub-Clause of these Conditions.

4.22 Security of the Site

Unless otherwise stated in the Contract, the Contractor shall be responsible for ensuring the security of the Site, keeping unauthorised persons off the Site, but shall allow all Authorised Persons access to the Site.

4.23 Contractor's Operations on Site

The Contractor shall confine its operations to the Site, and to any additional areas which may be obtained by the Contractor and agreed by the Owner as working areas. The Contractor shall take all necessary precautions to keep Construction Equipment and Contractor's Personnel within the Site and these additional areas, and to keep them off adjacent land.

During the execution of the Works, the Contractor shall keep the Site free from all unnecessary obstruction, and shall store or dispose of any Construction Equipment or surplus materials. The Contractor shall clear away and remove from the Site any wreckage, rubbish and Temporary Works which are no longer required.

Upon the Facility Taking Over Date, the Contractor shall clear away and remove all Construction Equipment, surplus material, wreckage, rubbish and Temporary Works. The Contractor shall leave the Site and the Works in a clean and safe condition. However, the Contractor may retain on Site, during the Defects Liability Period, such Goods as are required for the Contractor to fulfil obligations under the Contract.

4.24 Taxes

(a) The Contractor shall be responsible for the payment of, and the Contract Price shall be deemed to include, all Taxes assessed, levied or imposed on the Contractor, its Subcontractors or Contractor's Personnel or the Works or the activities of the Contractor, its Subcontractors or Contractor's Personnel by any governmental authorities arising out of or in connection with the Works.

(b) The Contractor shall pay, and shall indemnify the Owner from any and all claims or liability for Taxes, and related fines, penalties and interest assessed or levied against:

(i) the Contractor, Subcontractors or Contractor's Personnel; and

(ii) the Owner or the Owner's Personnel,

to the extent payment of such Taxes is the responsibility of the Contractor pursuant to sub-paragraph (a) above.

(c) The Contractor shall promptly upon the request of the Owner, provide the Owner with the evidence of payment of Taxes made in accordance with this Sub-Clause 4.24.

(d) If the Owner at any time becomes aware that:

(i) the Contractor, its Subcontractors or the Contractor's Personnel have not paid any Taxes in relation to the performance of the Works, the Facility or the Project as is required to be paid under Vietnam Legal Requirements;

(ii) the Owner is required by Vietnam Legal Requirements to pay any Taxes and charges on behalf of the Contractor, its Subcontractors or the Contractor's Personnel; or

(iii) the Owner is otherwise required by Vietnam Legal Requirements to withhold any Taxes on behalf of Contractor, its Subcontractors or the Contractor's Personnel,

the Owner shall be entitled to withhold and remit to the relevant governmental authorities such amount of Taxes from any payment otherwise due to the Contractor under the Contract. Any amount so withheld shall be deemed a payment on account of the Contract Price.

(e) As a prerequisite for the Owner returning the Performance Bond to the Contractor upon the Performance Bond End Date, the Contractor shall supply to the Owner tax certificates issued by all applicable Governmental Authorities, including VAT, business tax, corporate income tax, duty, withholding tax and all additional taxes imposed by any governmental authorities evidencing that the Contractor has fully fulfilled its tax obligations and paid all taxes due in Vietnam.

4.25 [Duties

[Note to Bidders – subject to revision following finalisation of the tax regime for the project, including the availability of any custom duty and tariff exemptions.]

(a) The Contractor shall within one (1) month of the Contract Date provide the Owner with a preliminary list setting out all Equipment and Materials (and the quantity and value of each of these items) to be imported into Vietnam for incorporation into the Facility. Such list shall not include any items which form part of the Temporary Works, Construction Equipment or is otherwise not intended for incorporation into the Facility.

(b) After the submission of the preliminary list, the Contractor shall continue to update such list to include any additional items of Equipment and Materials (and the quantity of each of these items) which are required to be imported into Vietnam for incorporation into the Facility, until such time all items to be imported into Vietnam for incorporation into the Facility have been so imported. Each updated list shall be promptly provided to the Owner without delay.

(c) After receiving the preliminary list and each subsequent updated list from the Contractor in accordance with sub-paragraphs (a) and (b), the Owner shall apply to the relevant Governmental Instrumentalities for exemptions from the payment of customs duties and tariffs in respect of the importation into Vietnam of the items set out in such lists.

(d) The Owner shall provide the Contractor with a copy of each list setting out the Equipment and Materials to be imported into Vietnam and which are exempt from the payment of customs duties and tariffs as approved by the relevant Governmental Instrumentalities (each an "**Approved List**").

(e) The Contractor shall be responsible for the payment of, and the Contract Price shall be deemed to include all customs and import duties payable to the relevant Governmental Instrumentalities in respect of the importation into Vietnam of all Imported Equipment and Materials.

(f) The Contractor acknowledges that certain exemptions and concessions from the payment of customs and import duties in relation to the Imported Equipment and Materials may be available to the Project, including, any which may be set out in any Approved List. The Contractor and its appointed customs clearing agent shall undertake all necessary actions required to ensure that such exemptions and concessions are obtained by Owner, including ensuring that all Imported Equipment and Materials are imported into Vietnam in the name of, and identified in all bills of lading and other documents relating to the shipping, import and customs clearance, as being the property of the Owner.

(g) If any such exemption or concession in relation to any Imported Equipment and Materials cannot be obtained due to the Contractor's act or omission, or the act or omission of its appointed customs clearing agent, the Contractor shall:

(i) assume the cost of such custom or import duty which would have been subject to such exemption or concession;

(ii) have No Claim against the Owner, including to any Change or any adjustment of the Contract Price or Contracted Date for Completion; and

(iii) indemnify the Owner against all liabilities incurred by it as a consequence of any delay by the Contractor in performing the Works.

(h) The Contractor shall be responsible for, and shall pay all penalties as may be imposed due to the Contractor's non-compliance with Vietnam Legal Requirements, provision of incorrect/incomplete shipping documents, delay in submission of shipping documents and/or non-compliance of the Imported Equipment and Materials with Vietnam Legal Requirements.]

(i) Except where expressly provided otherwise in the Contract, the Contractor shall be responsible for:

(i) complying with any and all statutory requirements and procedures with regard to the movement of all Imported Equipment and Materials within Vietnam;

(ii) transporting all Imported Equipment and Materials to Vietnam and promptly taking receipt of all Imported Equipment and Materials at the port or airport of entry into Vietnam and the proper unloading, handling and transportation of all Imported Equipment and Materials to the Site;

(iii) obtaining all export and import licences for all Imported Equipment and Materials and complying with all exportation and importation procedures designated by the relevant Governmental Instrumentality for the import and export of all Imported Equipment and Materials;

(iv) any other actions in relation to the handling and managing the clearance through customs of all Imported Equipment and Materials; and

(v) providing the Owner, at the Contractor’s cost, all documents issued or received by the Contractor in connection with the import and export of all Imported Equipment and Materials.

5 Design

5.1 General Design Obligations

The Contractor represents and warrants to the Owner that it has scrutinised and familiarised itself with all design specifications, requirements, limits, criteria, and calculations in relation to the Works as required under the Project Documents (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations), the Owner's Requirements and elsewhere in the Contract.

The Contractor shall be responsible for the design of the Works and for the accuracy of such Owner's Requirements (including design criteria and calculations).

The Contractor warrants to the Owner that the design of the Works will be performed in accordance with sub-paragraphs (a) and (c) of Sub-Clause 4.1A [Warranties], such that the design, and the Works, when completed, will comply with the requirements set out in sub-paragraph (d) of Sub-Clause 4.1A [Warranties].

The design of the Works shall be prepared by designers who:

(a) are engineers or other professionals, qualified, experienced and competent in the disciplines of the design for which they are responsible;

(b) comply with the criteria (if any) stated in the Owner's Requirements; and

(c) are qualified and entitled under Applicable Laws to design the Works.

The Owner shall not be responsible for any error, inaccuracy or omission of any kind in the Owner's Requirements as originally included in the Contract and shall not be deemed to have given any representation of accuracy or completeness of any data or information, except as stated below. Any data or information received by the Contractor, from the Owner or otherwise, shall not relieve the Contractor from its responsibility for the design and execution of the Works.

5.1A Owner-Supplied Information

(a) The Contractor acknowledges and agrees that all Owner-Supplied Information is provided for the convenience of the Contractor only and that the Contractor enters into the Contract based on its own investigations and determinations as to the accuracy and adequacy of that information.

(b) The Contractor shall have No Claim against the Owner, including for any delay or additional costs arising out of or in connection with any Owner-Supplied Information. Any errors or omissions in the Owner-Supplied Information do not affect the warranties provided by, or the obligations of, the Contractor under the Contract.

5.2 Contractor's Documents

(a) The Contractor's Documents shall comprise the technical documents specified in the Owner's Requirements, documents required to satisfy all regulatory approvals, and the documents described in Sub-Clause 5.6 [As-Built Drawings] and Sub-

Clause 5.7 [Operation and Maintenance Manuals]. Unless otherwise stated in the Owner's Requirements, the Contractor's Documents shall be written in the language for communications defined in Sub-Clause 1.4 [Law and Language].

(b) The Contractor shall prepare all Contractor's Documents, and shall also prepare any other documents necessary to instruct the Contractor's Personnel.

(c) If the Owner's Requirements describe the Contractor's Documents which are to be submitted to the Owner for review, they shall be submitted accordingly, together with a notice as described below. In the following provisions of this Sub-Clause 5.2:

(i) "review period" means the period required by the Owner for review, and

(ii) "Contractor's Documents" exclude any documents which are not specified as being required to be submitted for review.

(d) Unless otherwise stated in the Owner's Requirements, each review period shall not exceed twenty one (21) calendar days, calculated from the date on which the Owner receives a Contractor's Document and the Contractor's notice. This notice shall state that the Contractor's Document is considered ready, both for review in accordance with this Sub-Clause 5.2 and for use. The notice shall also state that the Contractor's Document complies with the Contract, or the extent to which it does not comply.

(e) The Owner may, within the review period, give notice to the Contractor:

(i) of No-objection;

(ii) of No-objection with comments (which may include comments concerning minor matters which will not substantially affect the Works); or

(iii) that the Contractor's Document fails (to the extent stated) to comply with the Contract.

(f) The Owner is not bound to comment on any Contractor's Documents submitted for review and the Contractor agrees that no review or comment or failure to review or comment will relieve or affect the Contractor from its responsibilities, obligations and liabilities under the Contract. If no times for submission are stipulated, the Contractor's Documents shall be provided at a reasonable rate of submission and sufficiently far in advance of being used for procurement or construction for the Contractor to have the ability to respond to comments from the Owner.

(g) If the Owner gives no notice within the review period, the Owner shall be deemed to have given a notice of No-objection under sub-paragraph (e)(i) above to the Contractor's Document (provided that all other Contractor's Documents on which the Contractor's Document relies (if any) have been given, or are deemed to have been given, a notice of No-objection).

(h) If the Owner instructs that further Contractor's Documents are reasonably required to demonstrate that the Contractor's design complies with the Contract, the Contractor shall prepare and submit them promptly to the Owner at the Contractor's cost.

(i) If the Owner gives a Notice under sub-paragraph (e)(ii) above, the Contractor shall revise the Contractor's Document to take into account the Owner's comments and proceed with the Works in accordance with such revised Contractor's Document, but is not required to resubmit the revised Contractor's Document to the Owner for review.

(j) If the Owner gives a Notice under sub-paragraph (e)(iii) above, the Contractor shall:

(i) revise the Contractor's Document;

(ii) resubmit it to the Owner for review in accordance with this Sub-Clause 5.2, and the review period shall be calculated from the date that the Owner receives it; and

(iii) have No Claim against the Owner, including for any delay caused by any such revision and resubmission and/or by subsequent review by the Owner.

If the Owner incurs additional costs as a result of such resubmission and subsequent review, the Owner shall be entitled to payment by the Contractor of the costs reasonably incurred as a debt due and payable by the Contractor to the Owner on demand.

(k) For each part of the Works requiring Contractor's Documents to be submitted for review:

(i) construction of such part shall not commence until a notice-of No-objection is given or the relevant review period expires (whichever occurs first) for all the Contractor's Documents which are relevant to this design and execution;

(ii) construction of such part shall be in accordance with Contractor's Documents; and

(iii) the Contractor may modify any design or Contractor's Documents which have previously been submitted for review, by giving a notice to the Owner with reasons. If the Contractor has commenced construction of the part of the Works to which such design or Contractor's Documents are relevant:

(A) work on this part shall be suspended;

(B) the provisions of this Sub-Clause 5.2 shall apply as if the Owner had given a notice in respect of the Contractor's Documents under sub-paragraph (e)(ii) above; and

(C) work on this part shall not resume until a notice of No-objection is given or the relevant review period expires (whichever occurs first) for the revised documents.

(l) Any such notice of no objection or any review (under this Sub-Clause 5.2 or otherwise) shall not relieve the Contractor from any obligation or responsibility.

5.3 Contractor's Undertaking

The Contractor undertakes that the design, the Contractor's Documents, the execution and the completed Works will be in accordance with:

(a) Applicable Laws;

(b) all applicable Technical Standards;

(c) the documents forming the Contract, as altered or modified by Changes; and

(d) all other requirements set out in Sub-Clause 4.1A [Warranties].

5.4 Technical Standards and Regulations

(a) The design of the Works, the Contractor's Documents, the execution of and the completed Works shall comply with all Technical Standards. ***[Note to Bidders – application of foreign construction standard needs to (i) be in line with the applicable Vietnamese construction technical regulations and standards, and (ii) be included in the feasibility study report of the Project.]***

(b) All Technical Standards shall, in respect of the Works and each Section, be those prevailing when the Works or Section are taken over by the Owner under Sub-Clause 10.1 [Taking Over of the Works and Sections].

(c) References in the Contract to published Technical Standards shall be understood to be references to the edition applicable on the Base Date, unless stated otherwise.

(d) If changed or new Technical Standards come into force after the Base Date, the Contractor shall give notice to the Owner and (if appropriate) submit proposals for compliance.

(e) In the event that:

(a) the Owner determines that compliance is required and such compliance requires change(s) to the execution of the Works; and

(b) the proposals for compliance constitute a Change,

then the Owner shall initiate a Change in accordance with Clause 13 [Changes and Adjustments].

5.5 Training

The Contractor shall carry out the training of Owner's Personnel in the operation and maintenance of the Works to the extent specified in the Owner's Requirements. If the Contract specifies training which is to be carried out before Taking Over, the Works shall not be considered to be completed for the purposes of Taking Over under Sub-Clause 10.1 [Taking Over of the Works and Sections] until this training has been completed.

5.6 As-Built Drawings

(a) The Contractor shall prepare, and keep up-to-date, a complete set of "as-built" records of the execution of the Works, showing the exact as-built locations, sizes and details of the work as executed by the Contractor (the "**As-Built Drawings**"), including for submission at the times needed apply for the Contractor's Consents (or, as applicable, to enable the Owner to apply for the Owner's Consents). The format, referencing system, system of electronic storage and other relevant details of the As-Built Drawings shall be as stated in the Owner's Requirements (if not stated, as acceptable to the Owner). These records shall be kept on the Site and shall be used exclusively for the purposes of this Sub-Clause 5.6.

(b) The Contractor shall submit to the Owner for review under Sub-Clause 5.2 [Contractor's Documents]:

(i) the As-Built Drawings for the Works for the Owner's review before the commencement of the Tests on Completion; and

(ii) updated As-Built Drawings to the extent that any work is executed by the Contractor:

(A) during and/or after the Tests on Completion, before the issue of any Taking Over Certificate under Sub-Clause 10.1 [Owner's Taking Over]; and

(B) after taking over under Sub-Clause 10.1 [Owner's Taking Over], before the issue of the Final Taking Over Certificate.

(c) The number of copies of As-Built Drawings to be submitted by the Contractor under this Sub-Clause 5.6 shall be two (2) soft copies (in native file format) and five (5) hard copies.

5.7 Operation and Maintenance Manuals

(a) The Contractor shall prepare, and keep up-to-date, a complete set of operation and maintenance manuals for the Facility (the "**O&M Manuals**").

(b) The format and other relevant details of the O&M Manuals shall be as stated in the Owner's Requirements and, in any case, these manuals shall:

(i) be in sufficient detail for the Owner (or its nominee) to:

(A) operate, maintain and adjust the Facility to ensure that the performance of the Facility continues to comply with the

performance criteria specified in the Owner's Requirements and the Performance Guarantees; and

(B) operate, maintain, dismantle, reassemble, adjust and repair the Facility; and

(ii) include an inventory of spare parts required for the future operation and maintenance of the Facility.

(c) No later than the 12 months before commencement of the Commissioning of Works, the Contractor shall submit provisional O&M Manuals for the Works to the Owner for review under Sub-Clause 5.2 [Contractor's Documents].

(d) If during the Tests on Completion any error or defect is found in the provisional O&M Manuals, the Contractor shall promptly rectify the error or defect at the Contractor's risk and cost.

(e) Before and as a condition precedent to the issue of any Taking Over Certificate under Sub-Clause 10.1 [Owner's Taking Over], the final O&M Manuals shall be submitted to the Owner for review under Sub-Clause 5.2 [Contractor's Documents].

(f) The number of copies of As-Built Drawings to be submitted by the Contractor under this Sub-Clause 5.7 shall be:

(i) in respect of the provisional O&M Manual - two soft copies (in native file format) and two hard copies.; and

(ii) in respect of the provisional O&M Manual - six soft copies (in native file format) and six hard copies.; and

5.8 Design Error

If errors, omissions, ambiguities, inconsistencies, inadequacies or other defects are found in the Contractor's design and/or the Contractor's Documents, they and the Works shall be corrected in accordance with Sub-Clause 7.5 [Rejection].

If such Contractor's Documents were previously the subject of a notice of No-objection, or for which no notice was given during the review period, was given by the Owner under Sub-Clause 5.2 [Contractor's Documents], the provisions of Sub-Clause 5.2 [Contractor's Documents] shall apply as if the Owner had given a notice in respect of the Contractor's Documents under Sub-Clause 5.2(e)(ii) [Contractor's Documents].

All corrections and resubmissions under this Sub-Clause (f) shall be at the Contractor's risk and cost.

6 Staff and Labour

6.1 Engagement of Staff and Labour

Except as otherwise stated in the Owner's Requirements, the Contractor shall make arrangements for the engagement of all staff and labour, local or otherwise, and for their payment, housing, feeding and transport.

6.2 Rates of Wages and Conditions of Labour

The Contractor shall pay rates of wages, and observe conditions of labour, which are not lower than those established for the trade or industry where the work is carried out. If no established rates or conditions are applicable, the Contractor shall pay rates of wages and observe conditions which are not lower than the general level of wages and conditions observed locally by employers whose trade or industry is similar to that of the Contractor.

6.3 Persons in the Service of Others

The Contractor shall not recruit, or attempt to recruit, staff and labour from amongst the Owner's Personnel.

6.4 Labour Laws

The Contractor shall comply with all Applicable Laws concerning labour and the Contractor's Personnel, including Applicable Laws relating to their employment, health, safety, welfare, immigration and emigration, and shall allow them all their legal rights.

The Contractor shall require its employees to obey all such Applicable Laws, including those concerning safety at work.

6.5 Working Hours

No work shall be carried out on the Site on locally recognised days of rest, or outside normal working hours, unless:

(a) otherwise stated in the Contract;

(b) the Owner gives consent; or

(c) the work is unavoidable, or necessary for the protection of life or property or for the safety of the Works, in which case the Contractor shall immediately advise the Owner.

6.6 Facilities for Staff and Labour

Except as otherwise stated in the Owner's Requirements, the Contractor shall provide and maintain all necessary accommodation and welfare facilities for the Contractor's Personnel. The Contractor shall also provide facilities for the Owner's Personnel as stated in the Owner's Requirements.

The Contractor shall not permit any of the Contractor's Personnel to maintain any temporary or permanent living quarters within the structures forming part of the Facility.

6.7 Contractor's Superintendence

Throughout the design and execution of the Works, and as long thereafter as is necessary to fulfil the Contractor's obligations, the Contractor shall provide all necessary superintendence to plan, arrange, direct, manage, inspect and test the work.

Superintendence shall be given by a sufficient number of persons having adequate knowledge of the language for communications (defined in Sub-Clause 1.4 [Law and Language]) and of the operations to be carried out (including the methods and techniques required, the hazards likely to be encountered and methods of preventing accidents), for the satisfactory and safe execution of the Works.

6.8 Contractor's Personnel

The Contractor's Personnel shall be appropriately qualified, skilled and experienced in their respective trades or occupations. The Owner may require the Contractor to remove (or cause to be removed) any person employed on the Site or Works, including the Contractor's Representative if applicable, who:

(a) persists in any misconduct or lack of care;

(b) carries out duties incompetently or negligently;

(c) fails to conform with any provisions of the Contract; or

(d) persists in any conduct which is prejudicial to safety, health, or the protection of the environment.

If appropriate, the Contractor shall then appoint (or cause to be appointed) a suitable replacement person.

6.9 Records of Contractor's Personnel and Equipment

Unless otherwise proposed by the Contractor and agreed by the Owner, in each progress report under Sub-Clause 4.21 [Progress Reports], the Contractor shall include records of:

(a) occupations and actual working hours of each class of Contractor's Personnel;

(b) the type and actual working hours of each of the Construction Equipment delivered to or used on the Site;

(c) the types of Temporary Works used;

(d) the types of Equipment installed in the Facility; and

(e) the quantities and types of major Materials delivered to the Site and other records requested by Owner,

for each work activity shown in the Programme, at each work location and for each day of work.

6.10 Disorderly Conduct

The Contractor shall at all times take all reasonable precautions to prevent any unlawful, riotous or disorderly conduct by or amongst the Contractor's Personnel, and to preserve peace and protection of persons and property on and near the Site.

7 Equipment, Materials and Workmanship

7.1 Manner of Execution

The Contractor shall carry out the manufacture of Equipment, the production and manufacture of Materials, and all other execution of the Works, and rectify any Defects, Latent Defects and Serial Defects:

(a) in the manner (if any) specified in the Contract;

(b) with properly equipped facilities and non-hazardous Materials, except as otherwise specified in the Contract;

(c) in accordance with Applicable Laws;

(d) in accordance with Prudent Utility Practice;

(e) in accordance with all applicable Technical Standards;

(f) so as to achieve each Interim Milestone by the corresponding Interim Milestone Date and Taking Over by the Contracted Date for Completion; and

(g) so as to achieve the Performance Guarantee.

7.2 Samples

The Contractor shall submit samples to the Owner, for review in accordance with the procedures for Contractor's Documents described in Sub-Clause 5.2 [Contractor's Documents], as specified in the Contract and at the Contractor's cost. Each sample shall be labelled as to origin and intended use in the Works.

7.3 Inspection

(a) All Authorised Persons shall at all reasonable times:

(i) have full access to all parts of the Site and to all places from which natural Materials are being obtained; and

(ii) during production, manufacture and construction (at the Site and, to the extent specified in the Contract, elsewhere), be entitled to:

(A) examine, inspect, measure and test (to the extent stated in the Owner's Requirements) the Materials, Equipment and workmanship,

(B) check the progress of manufacture of Equipment and production and manufacture of Materials;

(C) make records (including photographs and/or video recordings); and

(D) carry out other duties and inspections, as specified in the Contract (including the Owner's Requirements).

(b) The Contractor shall give all Authorised Persons full opportunity to carry out these activities, including providing access, facilities, permissions and safety equipment. No such activity shall relieve the Contractor from any obligation or responsibility.

(c) In respect of the work which the Authorised Persons are entitled to examine, inspect, measure and/or test, the Contractor shall give at least:

(i) in respect of any Works not located at the Site, twenty-eight (28) calendar days' notice to the Owner; and

(ii) in respect of any Works located at the Site, fourteen (14) calendar days' notice to the Owner,

in each case, whenever any such work is ready and before it is covered up, put out of sight, or packaged for storage or transport. The Owner and other Authorised Persons shall then either carry out the examination, inspection, measurement or testing without unreasonable delay, or promptly give notice to the Contractor that the Owner or other Authorised Persons do not require to do so.

(d) If the Contractor fails to give the notice, he shall, if and when required by the Owner or any other Authorised Persons (as notified by the Owner), uncover the work and thereafter reinstate and make good, all at the Contractor's cost.

7.4 Testing

(a) Unless otherwise provided, this Sub-Clause 7.4 shall apply to all tests specified in the Contract.

(b) The Contractor shall provide all apparatus, assistance, documents and other information, electricity, equipment, fuel, consumables, instruments, labour, materials, and suitably qualified and experienced staff, as are necessary to carry out the specified tests efficiently and property, provided that any LNG required for carrying out the Tests on Completion shall be supplied by the Owner and payable by the Contractor pursuant to Sub-Clause 4.19 [Utilities] where usage is in excess of the Agreed Limits.

(c) All apparatus, equipment and instruments shall be calibrated in accordance with applicable Technical Standards and, if requested by the Owner, the Contractor shall submit calibration certificates before carrying out testing.

(d) The Contractor shall agree, with the Owner, the time and place for the specified testing of any Equipment, Materials and other parts of the Works.

(e) The Contractor shall give a notice to the Owner, stating the time and place for the specified testing of any Equipment, Materials and other parts of the Works. This notice shall be given in reasonable time, having regard to the location of testing, for the Owner's Personnel to attend, and in any event no later than:

(i) in respect of any Works not located at the Site, twenty-eight (28) calendar days prior to the date on which the testing is intended; and

(ii) in respect of any Works located at the Site, fourteen (14) calendar days prior to the date on which the testing is intended.

(f) The Owner may, under Clause 13 [Changes and Adjustments], vary the location or details of specified tests, or instruct the Contractor to carry out additional tests. If these varied or additional tests show that the tested Equipment, Materials or workmanship is not in accordance with the Contract, the cost of carrying out this Change shall be borne by the Contractor, notwithstanding other provisions of the Contract and, to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with such Change.

(g) The Owner shall give the Contractor not less than twenty four (24) hours' notice of the Owner's intention to attend the tests. If the Owner does not attend at the time and place agreed, the Contractor may proceed with the tests, unless otherwise instructed by the Owner, and the tests shall then be deemed to have been made in the Owner's presence. All Authorised Persons shall be entitled to attend such tests.

(h) If the Contractor suffers delay and/or incurs Cost from complying with these instructions or as a result of a delay for which the Owner is responsible, the Contractor shall give notice to the Owner and shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] to:

(i) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(ii) payment of any such Cost, which shall be added to the Contract Price.

After receiving this notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

(i) The Contractor shall promptly forward to the Owner duly certified reports of the tests. When the specified tests have been passed, the Owner shall endorse the Contractor's test certificate, or issue a certificate to it, to that effect. If the Owner has not attended the tests, he shall be deemed to have accepted the readings as accurate.

(j) Sub-Clause 7.5 [Rejection] shall apply in the event that any Equipment, Materials and other parts of the Works fails to pass a specified test.

7.5 Rejection

(a) If, as a result of an examination, inspection, measurement or testing, any Equipment, Materials, design or workmanship is found to be Defective or otherwise not in accordance with the Contract, the Owner shall give a notice to the Contractor describing the item of Equipment, Materials, design or workmanship that has been found to be Defective. The Contractor shall then promptly prepare and submit a proposal for necessary remedial work.

(b) The Owner may review this proposal, and may give a notice to the Contractor stating the extent to which the proposed work, if carried out, would not result in the Equipment, Materials, design or workmanship complying with the Contract. After receiving such a Notice, the Contractor shall promptly submit a revised proposal to the Owner. If the Owner gives no such notice within twenty-one (21) calendar days after receiving the Contractor's proposal (or revised proposal), the Owner shall be deemed to have given a notice of No-objection.

(c) If the Contractor fails to promptly submit a proposal (or revised proposal) for remedial work, or fails to carry out the proposed remedial work to which the Owner has given (or is deemed to have given) a notice of No-objection, the Owner may:

(i) instruct the Contractor under sub-paragraph (a) and/or (b) of Sub-Clause 7.6 [Remedial Work]; or

(ii) reject the design, Equipment, Materials or workmanship by giving a notice to the Contractor, with reasons, in which case sub-paragraph (a) of Sub-Clause 11.4 [Failure to Remedy Defects] shall apply.

(d) After remedying Defects in any Equipment, Materials, design or workmanship, if the Owner requires any such items to be retested, the tests shall be repeated in accordance with Sub-Clause 7.4 [Testing] at the Contractor's risk and cost. If the rejection and retesting cause the Owner to incur additional costs, the Contractor shall subject to Sub-Clause 2.4 [Owner's Claims] pay these costs to the Owner.

7.6 Remedial Work

In addition to any previous examination, inspection, measurement or testing, or test certificate or notice of No-objection by the Owner, at any time before the issue of the Taking Over Certificate for the Works the Owner may instruct the Contractor to:

(a) repair or remedy (if necessary, off the Site), or remove from the Site and replace any Equipment or Materials which are not in accordance with the Contract;

(b) repair or remedy, or remove and re-execute, any other work which is not in accordance with the Contract; and

(c) carry out any remedial work which is urgently required for the safety of the Works, whether because of an accident, unforeseeable event or otherwise.

The Contractor shall comply with the instruction as soon as practicable and not later than the time (if any) specified in the instruction, or immediately if urgency is specified under sub-paragraph (c) above.

If the Contractor fails to comply with any such instruction, the Owner may (at the Owner's sole discretion) employ and pay other persons to carry out the work. Except to the extent that the Contractor would have been entitled to payment for the work, the Contractor shall subject to Sub-Clause 2.4 [Owner's Claims] pay to the Owner all costs arising from this failure.

7.7 Ownership of Equipment and Materials

(a) Each item of Equipment and Material for incorporation into the Facility shall, to the extent consistent with Vietnam Legal Requirements, become the property of the Owner at whichever is the earlier of the following times, free from all Liens:

(i) when it is delivered to the Site; and

(ii) when the Contractor is paid the value of the Equipment and Materials under Sub-Clause 8.10 [Payment for Equipment and Materials in Event of Suspension] or Clause 14 [Contract Price and Payment] (as applicable).

(b) Despite the transfer of ownership of the Equipment and Materials, the responsibility for care and custody together with the risk of loss or damage remains with the Contractor until Taking Over is achieved and a Taking Over Certificate is issued for the Works.

(c) Where prior to delivery to Site, the title to Equipment or Materials passes to the Owner, the Contractor shall set the Equipment or Materials aside and mark it as the Owner's property in a manner reasonably required by the Owner. Until that Equipment or Material has been so set aside and marked, the Owner will be entitled to withhold any interim payment to which the Contractor might otherwise be entitled.

(d) The Contractor shall not, and shall ensure that its Subcontractors and suppliers shall not, create, permit, or suffer to exist any Lien over or affecting the Works, the Site, any Equipment, Materials, or any part thereof, except as expressly permitted by the Contract or as may arise by operation of law and are promptly discharged in accordance with this Sub-Clause.

(e) If any Lien is filed, recorded, or otherwise asserted by any Subcontractor, supplier, worker, or other third party in connection with the Works, the Site, any Equipment, Materials, or any part thereof, the Owner may, but shall not be obliged to, after giving the Contractor reasonable notice and an opportunity to remove or discharge such Lien, pay or discharge such Lien (including any associated costs, interest, penalties, or legal fees) and may set off the amount so paid against any sums due or to become due to the Contractor under the Contract. Any such amount paid by the Owner shall constitute a debt due and payable by the Contractor to the Owner on demand.

(f) The Contractor shall, at its own cost, obtain and deliver to the Owner, in a form satisfactory to the Owner, unconditional waivers and releases of Liens from the Contractor, all Subcontractors, suppliers, and any other parties who may be entitled to assert a Lien in connection with the Works, as a condition precedent to each interim payment or the final payment under the Contract, or as otherwise reasonably required by the Owner.

(g) The Contractor shall indemnify, defend, and hold harmless the Owner from and against all Losses, damages, costs, and expenses (including legal fees) arising out of or in connection with any Lien asserted or filed in connection with the Works, except to the extent such Lien arises due to the Owner's failure to make payments properly due and payable to the Contractor in accordance with the Contract.

(h) The Owner shall not be under any obligation to investigate the validity of any Lien before paying or discharging the same in accordance with this Sub-Clause.

7.8 Royalties

Unless otherwise stated in the Owner's Requirements, the Contractor shall pay all royalties, rents and other payments for:

(a) natural Materials obtained from outside the Site; and

(b) the disposal of material from demolitions and excavations and of other surplus material (whether natural or man-made), except to the extent that disposal areas within the Site are specified in the Contract.

7.9 Spare Parts, Balance of Plant and Special Tools

(a) As a condition precedent to Taking Over, the Contractor must deliver to the Owner all Initial Spare Parts and Special Tools which are identified in the Owner's Requirements as being required to be delivered prior to Taking Over. The cost of supplying all such Initial Spare Parts and Special Tools, as well as any Spare Parts and Special Tools required for Commissioning (or are required to be replaced once used during Commissioning) shall be deemed to be included in the Contract Price.

(b) On or before the date which twelve (12) months prior to the Contracted Date for Completion, the Contractor shall provide the Owner with a detailed price list of all Spare Parts (including any Strategic Spare Parts and Special Tools) with a price validity period of at least [two (2) years from the Facility Taking Over Date, and the Owner may at its option purchase such items through the Contractor or directly from the original equipment manufacturer.

(c) The Contractor warrants that all Spare Parts and Special Tools shall be available for purchase throughout the entire anticipated operational life of the Facility, and that it will provide technical support to the Owner to procure such items. If any Spare Parts or Special Tools becomes obsolete or if the manufacture of such any Spare Parts or Special Tools is or will be discontinued, the Contractor shall notify the Owner sufficiently far in advance but no later than two years in advance to allow the Owner adequate time and opportunity to purchase sufficient any Spare Parts or Special Tools from alternative sources. The Contractor shall procure

and/or support the Owner to purchase sufficient any Spare Parts or Special Tools at reasonable prices for the whole anticipated operational life of the Facility.

8 Commencement, Delays and Suspension

8.1 Commencement of Works

The Contractor shall commence the design and execution of the Works as soon as is reasonably practicable after the Effective Date, and shall then proceed with the Works with due expedition and without delay.

8.2 Contracted Date for Completion

The Contractor shall achieve:

(a) each Interim Milestone no later than the applicable Interim Milestone Date; and

(b) Facility Taking Over no later than [45] months after the Effective Date (the "**Scheduled Taking Over Date**"),

(each of Interim Milestone Date and the Scheduled Taking Over Date shall be referred to as the "**Contracted Date for Completion**"). ***[Note to Bidders – as flagged above, key Interim Milestones will be the completion of the LNG Terminal, followed by the power plant, on a unit by unit basis. The current intention is however for Taking Over to only occur when the entire facility (LNG terminal and power plant) is completed.]***

8.3 Programme

(a) The preliminary project implementation schedule is set out in Schedule 10 [Preliminary Project Implementation Schedule].

(b) The Contractor shall submit a revised programme for the execution of the Works to the Owner for review in accordance with Sub-Clause 5.2 [Contractor's Documents] within twenty eight (28) calendar days of the Effective Date. All detailed programmes prepared by the Contractor and submitted to the Owner shall be prepared using programming software stated in the Owner's Requirements (if not stated, the programming software acceptable to the Owner).

(c) The Contractor shall also submit a revised programme which accurately reflects the actual progress of the Works, whenever any programme ceases to reflect actual progress or is otherwise inconsistent with the Contractor's obligations.

(d) The initial programme and each revised programme shall be submitted to the Owner in five paper copies and one electronic copy, and shall include:

(i) the Effective Date and the Contracted Date for Completion of the Works;

(ii) the date right of access to (each part of) the Site is to be given to the Contractor in accordance with Sub-Clause 2.1 [Site Clearance Works and Right of Access to the Site];

(iii) the order in which the Contractor intends to carry out the Works, including the anticipated timing of each stage of design, preparation and submission of Contractor's Documents, procurement, manufacture, inspection, delivery to Site, construction, erection, installation, testing, Commissioning and trial operation;

(iv) the review periods under Sub-Clause 5.2 [Contractor's Documents], and periods for review for any other submissions specified in the Owner's Requirements or required under these Conditions;

(v) the sequence and timing of inspections and tests specified in, or required by, the Contract;

(vi) for a revised programme: the sequence and timing of the remedial work (if any) to which the Owner has given a notice of No-objection under Sub-Clause 7.5 [Rejection] and/or the remedial work (if any) instructed under Sub-Clause 7.6 [Remedial Work];

(vii) all activities (to the level of detail specified in the Owner's Requirements), logically linked and showing the earliest and latest start and finish dates for each activity, the float (if any), and the critical path(s);

(viii) the dates of all locally recognised days of rest and holiday periods (if any);

(ix) all key delivery dates of Equipment and Materials;

(x) for a revised programme and for each activity: the actual progress to date, any delay to such progress and the effects of such delay on other activities (if any); and

(xi) a supporting report which includes:

(A) a description of all the major stages of the execution of the Works;

(B) a general description of the methods which the Contractor intends to adopt in the execution of the Works;

(C) details showing the Contractor's reasonable estimate of the number of each class of Contractor's Personnel, and of each type of Construction Equipment, required on the Site, for each major stage of the execution of the Works;

(D) if a revised programme, identification of any significant change(s) to the previous programme submitted by the Contractor; and

(E) the Contractor's proposals to overcome the effects of any delay(s) on progress of the Works,

and all other information required by Schedule 15 [Contract Management Principles].

(e) The Owner shall review the initial programme, and each revised programme, submitted by the Contractor and may give a notice to the Contractor stating the extent to which it does not comply with the Contract or ceases to reflect actual progress or is otherwise inconsistent with the Contractor's obligations. If the Owner gives no such notice within twenty one (21) calendar days after receiving a revised programme, the Owner shall be deemed to have given a notice of No-objection and the revised programme shall be the Programme.

(f) The giving of, or failure to give, any such notice of No-objection under this Sub-Clause 8.3 does not constitute any Change instruction, will not relieve the Contractor of any of its obligations under the Contract (including to achieve Taking Over by the Contracted Date for Completion), and to the extent permitted by law, the Contractor shall have No Claim arising from or in any way connected with the Owner's giving of, or failure to give, any such notice of No-objection. The Contractor shall proceed in accordance with the Programme, subject to the Contractor's other obligations under the Contract. The Owner's Personnel shall be entitled to rely on the Programme when planning their activities.

(g) Nothing in any programme, the Programme or any supporting report shall be taken as, or relieve the Contractor from any obligation to give a notice under the Contract.

(h) If, at any time, the Owner gives a notice to the Contractor that the Programme fails (to the extent stated) to comply with the Contract or ceases to reflect actual progress or is otherwise inconsistent with the Contractor's obligations, the Contractor shall within fourteen (14) calendar days after receiving this notice submit a revised programme to the Owner in accordance with this Sub-Clause 8.3.

8.3A Advance Warning

The Contractor shall advise the Owner in advance of any known or probable future events or circumstances which may:

(a) adversely affect the work of the Contractor's Personnel;

(b) adversely affect the performance of the Works when completed;

(c) increase the Contract Price; and/or

(d) delay the execution of the Works.

The Owner may request the Contractor to submit a proposal under Sub-Clause 8.3B [Acceleration Proposal] to avoid or minimise; the effects of such event(s) or circumstance(s).

8.3B Acceleration Proposal

(a) In the event that the Contractor considers it is entitled to an extension of time in accordance with Sub-Clause 8.4 [Extension of Contracted Date for Completion], the Contractor shall, within fourteen (14) calendar days after submitting its claim for the relevant extension of time, submit a written proposal to the Owner regarding the feasibility of accelerating the Works and stating:

(i) details of the resources and methods to be adopted by the Contractor to accelerate the Works;

(ii) the Contractor's proposal for a lump sum adjustment to the Contract Price required for the Contractor to accelerate the Works in accordance with its proposal, with supporting particulars; and

(iii) the extent to which the extension of time the Contractor is otherwise claiming can be cancelled or reduced if the Works are accelerated in accordance with the Contractor's proposal, supported by a proposed programme for performance of the accelerated Works and nominating the resulting Contracted Date for Completion.

(b) Following receipt of an acceleration proposal by the Contractor, the Owner may by written Notice to the Contractor:

(i) accept such proposal, in which case the Contractor shall accelerate the Works after receipt of the Owner's notice in accordance with its proposal and the Contract Price and Contracted Date for Completion will be adjusted accordingly;

(ii) reject such proposal in which case neither Party shall have any further obligation or liability in connection with such proposal; or

(iii) provide comments and/or request clarifications on such proposal, in which case the Contractor shall amend the proposal in accordance with such comments and/or to make such clarifications and resubmit the revised proposal, and in which case the process in this Sub-Clause 8.3B will reapply.

8.4 Extension of Contracted Date for Completion

(a) The Contractor shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] and all other conditions in the Contract to an extension of the Contracted Date for Completion if and to the extent that completion for the purposes of Sub-Clause 10.1 [Taking Over of the Works and Sections] is or will be delayed by any of the following causes:

(i) a Change approved by the Owner under the Contract (except that there shall be no requirement to comply with Sub-Clause 20.1 [Contractor's Claims]);

(ii) a cause of delay giving an entitlement to extension of time under:

(A) Sub-Clause 4.8 [Archaeological and Geological Findings];

(B) Sub-Clause 8.8 [Suspension of Work] (where applicable);

(C) Sub-Clause 8.9 [Consequences of Suspension];

(D) Sub-Clause 9.1(c) [Contractor's Obligations];

(E) Sub-Clause 10.3 [Interference with Tests on Completion];

(F) Sub-Clause 13.8 [Adjustments for Changes in Law];

(G) Sub-Clause 17.2(e) [Contractor's Care of the Works]; or

(H) Sub-Clause 19.4 [Consequences of Force Majeure Event]; or

(iii) to the extent not addressed in sub-paragraph (i) above, any breach by the Owner of an express obligation set out in the Contract or any other delay, impediment or act of prevention solely caused by the Owner, the Owner's Personnel, or, subject to Sub-Clause 4.6 [Co-operation], the Other Contractors on the Site,

(each, a "**Qualifying Delay Event**").

(b) If the Contractor considers itself to be entitled to an extension of the Contracted Date for Completion due to a Qualifying Delay Event, the Contractor shall give notice to the Owner in accordance with Sub-Clause 20.1 [Contractor's Claims]. When determining each extension of time under Sub-Clause 20.1 [Contractor's Claims], the Owner shall review previous determinations and may increase, but shall not decrease, the total extension of time.

(c) The Contracted Date for Completion specified in Sub-Clause 8.2 [Contracted Date for Completion] shall be extended by such period as shall be fair and reasonable in all the circumstances and shall fairly reflect the delay or impediment sustained by the Contractor in the performance of any of its obligations under the Contract by reason of a Qualifying Delay Event, but only to the extent that the delay or impediment actually causes a delay to the critical path programme or the Works as a whole.

(d) In all cases where the Contractor has given a notice of a claim for an extension of time under Sub-Clause 20.1 [Contractor's Claims], the Contractor shall consult with the Owner's Representative in order to determine the steps (if any) which can be taken to overcome or minimize the actual or anticipated delay. The Contractor shall thereafter comply with all reasonable instructions which the Owner's Representative may give in order to minimize such delay.

(e) If there are two or more concurrent causes of delay and only one of those concurrent causes is a Qualifying Delay Event then the Contractor is not entitled to an extension of time for the period of that concurrency.

(f) Notwithstanding any other provision of this Sub-Clause 8.4, the Owner may at any time make a fair and reasonable extension to the Contracted Date for Completion or any other date provided for in the Contract.

(g) Any extension of time granted to the Contractor shall, except as provided otherwise in the Contract, be deemed to be in full and final compensation and satisfaction for and the Contractor's sole and exclusive remedy in respect of any Loss or other consequence sustained or sustainable by the Contractor in respect of the matter or thing in connection with which such extension shall have been granted and the Contractor hereby waives any other rights or remedies in respect of the same.

8.5 [Not Used]

8.6 Rate of Progress

If, at any time:

(a) actual progress is too slow to complete within the Contracted Date for Completion; and/or

(b) progress has fallen (or will fall) behind the current Programme under Sub-Clause 8.3 [Programme],

other than as a result of a cause listed in Sub-Clause 8.4 [Extension of Contracted Date for Completion], then the Owner may instruct the Contractor to submit, under Sub-Clause 8.3 [Programme], a revised programme and supporting report describing the revised methods which the Contractor proposes to adopt in order to expedite progress and complete within the Contracted Date for Completion.

Unless the Owner notifies otherwise, the Contractor shall adopt these revised methods, which may require increases in the working hours and/or in the numbers of Contractor's Personnel and/or Goods, at the risk and cost of the Contractor. If these revised methods cause the Owner to incur additional costs, the Contractor shall subject to Sub-Clause 2.4 [Owner's Claims] pay these costs to the Owner, in addition to Delay Liquidated Damages (if any) under Sub-Clause 8.7 [Delay Damages] below.

8.7 Delay Damages

[Note to Bidders – Delay LDs will apply to any delay in achieving predetermined Interim Milestones by the applicable Interim Milestone Date, as well as delay in achieving Taking Over (for the entire facility as a whole) by the Contracted Date for Completion. The quantum of these LDs will need to be further discussed following the finalization of the PPA, LNG SPAs, and other key Project Documents, but will need to be sized to compensate the Owner for loss of revenue under the PPA, additional financing costs, delay LDs under the PPA, take-or-pay obligations under the LNG SPAs and other liabilities under the Project Documents so that the Owner is kept whole.]

(a) If Facility Taking Over is not achieved by the Scheduled Taking Over Date, or any Interim Milestone is not achieved by the relevant Interim Milestone Date, for each day between the Scheduled Taking Over Date, or as applicable, the Interim

Milestone Date and the Facility Taking Over Date, or, as applicable, the day that the Interim Milestone is achieved, the Contractor shall, subject to Sub-Clause 2.4 [Owner's Claims], pay the Owner delay liquidated damages at the daily rate set out in Schedule 4 [Liquidated Damages] ("**Delay Liquidated Damages**").

(b) The maximum of such Delay Liquidated Damages payable by the Contractor to the Owner shall not exceed twenty percent (20%) of the Contract Price, and the maximum of Delay Liquidated Damages and Performance Liquidated Damages payable by the Contractor shall together not exceed thirty percent (30%) of the Contract Price

(c) The Owner may deduct Delay Liquidated Damages from the payment payable to or to be paid to the Contractor or withdraw the sum of Delay Liquidated Damages from the Performance Bond or require the Contractor to pay the Delay Liquidated Damages separately to the Owner.

(d) Delay Liquidated Damages payable pursuant to this Sub-Clause 8.7 shall be paid as liquidated damages and not as a penalty. The Parties agree that such Delay Liquidated Damages are a genuine and reasonable pre-estimate of the damages likely to be sustained by the Owner as a result of the Contractor's failure to achieve Facility Taking Over by the Scheduled Taking Over Date, or, as applicable, any Interim Milestone by the relevant Interim Milestone Date. If the obligation to pay Delay Liquidated Damages pursuant to this Sub-Clause 8.7 is found for any reason to be void, invalid or otherwise inoperative so as to disentitle the Owner from claiming Delay Liquidated Damages, the Owner is entitled to claim against the Contractor for damages at law resulting from the Contractor's breach of its obligations set out in Sub-Clause 8.2 [Contracted Date for Completion], [a penalty equal to eight percent (8%) of the value of the obligation breached] ***[Note to Bidders – this will only apply if the Contractor is a Vietnamese entity and the Contract is governed by Vietnam law]***, and other remedies available at law.

(e) These Delay Liquidated Damages are without prejudice to any other rights or remedies available to the Owner under the Contract or at law, and shall not relieve the Contractor from its obligation to complete the Works, or from any other duties, obligations or responsibilities which he may have under the Contract.

8.8 Suspension of Work

(a) The Owner may at any time instruct the Contractor to suspend progress of part or all of the Works. During such suspension, the Contractor shall protect, store and secure such part or the Works against any deterioration, loss or damage.

(b) The Owner may also notify the cause for the suspension. If and to the extent that such suspension is due to the Contractor's failure to comply with its obligations under the Contract (including Sub-Clauses 4.5 [Health and Safety Management] and 4.18 [Environmental and Social Protection]), the following Sub-Clauses 8.9 [Consequences of Suspension], 8.10 [Payment for Equipment and Materials in Event of Suspension] and 8.11 [Prolonged Suspension] shall not apply.

8.9 Consequences of Suspension

If the Contractor suffers delay and/or incurs Cost from complying with the Owner's instructions under Sub-Clause 8.8 [Suspension of Work] and/or from resuming the work, the Contractor shall give notice to the Owner and shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] to:

(a) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(b) payment of any such Cost, which shall be added to the Contract Price.

After receiving this notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

The Contractor shall have No Claim against the Owner, including for any delay or Loss incurred in making good:

(a) the consequences of the Contractor's faulty or defective design, workmanship, Equipment or Materials; or

(b) any deterioration, loss or damage caused by the Contractor's failure to protect, store or secure in accordance with Sub-Clause 8.8 [Suspension of Work].

8.10 Payment for Equipment and Materials in Event of Suspension

The Contractor shall be entitled to payment of the value (as at the date of suspension) of Equipment and/or Materials which have not been delivered to Site, if:

(a) the work on Equipment or delivery of Equipment and/or Materials has been suspended for more than twenty eight (28) calendar days;

(b) the Equipment and/or Materials were scheduled, in accordance with the Programme, to have been completed and ready for delivery to the Site during the suspension period;

(c) the Contractor provides the Owner with reasonable evidence that the Equipment and/or Materials comply with the Contract; and

(d) the Contractor has marked the Equipment and/or Materials as the Owner's property in accordance with the Owner's instructions.

8.11 Prolonged Suspension

(a) If the suspension under Sub-Clause 8.8 [Suspension of Work] has continued for more than three hundred and sixty five (365) calendar days, the Contractor may request the Owner's permission to proceed.

(b) If the Owner does not give permission within twenty eight (28) calendar days after being requested to do so, the Parties shall agree to a further suspension, as well as the extension of time and/or Cost (if the Contractor incurs Cost), and/or

payment for suspended Equipment and/or Materials, arising from the total period of suspension.

8.12 Resumption of Work

(a) The Contractor shall resume work as soon as practicable after receiving a notice from the Owner to proceed with the suspended work.

(b) At the time stated in this notice (if not stated, immediately after the Contractor receives this notice), the Contractor and the Owner shall jointly examine the Works and the Equipment and Materials affected by the suspension. The Owner shall record any deterioration, loss, damage or defect in the Works, Equipment or Materials which has occurred during the suspension and shall provide this record to the Contractor. The Contractor shall promptly make good all such deterioration, loss, damage or defect so that the Works, when completed, shall comply with the Contract.

9 Tests on Completion

[Note to Bidders – pre-commissioning, commissioning and testing mechanism as set out here is subject to revision following finalization of the PPA.]

9.1 Contractor's Obligations

(a) The Contractor shall, as a condition precedent to achieving Mechanical Completion, carry-out all Pre-Commissioning in accordance with Schedule 9A (Inspection and Testing for LNG Terminal) or, as applicable, Schedule 9B (Inspection and Testing for CCPP), and all other requirements in the Project Documents (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations), Applicable Laws and the Contract.

(b) The Contractor shall carry out the Tests on Completion (including in respect of all Commissioning and Performance Tests) in accordance with:

(i) this Sub-Clause and Sub-Clause 7.4 [Testing];

(ii) the Test Procedures and all other requirements set out in Schedule 9 [Inspection, Testing and Taking Over]; and

(iii) and all other requirements in the Project Documents (to the extent that Clause 12 [Project Documents] requires the Contractor to comply with those obligations), Applicable Laws and the Contract,

after Mechanical Completion has been achieved in respect of the relevant part of the Works and after providing the documents in accordance with Sub-Clause 5.6 [As-Built Drawings] and Sub-Clause 5.7 [Operation and Maintenance Manuals].

(c) The Contractor shall submit to the Owner, not less than [one hundred and twenty (120)] calendar days ***[Note to QNLNG – please confirm]*** before the date the Contractor intends to commence Pre-Commissioning and the Tests on Completion, a detailed test programme showing the intended timing and resources required for Pre-Commissioning and these tests.

(d) The Owner may review the proposed test programme and may give a notice to the Contractor stating the extent to which it does not comply with the Contract. Within fourteen (14) calendar days after receiving this notice, the Contractor shall revise the test programme to rectify such non-compliance. If the Owner gives no such notice within [twenty one (21)] calendar days after receiving the test programme (or revised test programme), ***[Note to QNLNG – please confirm]*** the Owner shall be deemed to have given a notice of No-objection. The Contractor shall not commence Pre-Commissioning or, as applicable, the Tests on Completion until a notice of No-objection is given (or is deemed to have been given) by the Owner.

(e) In addition to any date(s) shown in the test programme, the Contractor shall give a notice to the Owner, of not less than twenty one (21) calendar days, of the date after which the Contractor will be ready to carry out Pre-Commissioning or, as applicable, each of the Tests on Completion. The Contractor shall commence Pre-Commissioning or, as applicable, the Tests on Completion within [twenty one (21)] calendar days after this date, ***[Note to QNLNG – please confirm]*** or on such day or days as the Owner shall instruct, and shall proceed in accordance with the Contractor's test programme to which the Owner has given (or is deemed to have given) a notice of No-objection.

(f) Any product produced by, and any revenue or other benefit resulting from, trial operation under this Sub-Clause 9.1 shall be the property of the Owner.

(g) As soon as the Works have, in the Contractor's opinion, passed each stage of Pre-Commissioning or, as applicable, the Tests on Completion, the Contractor shall submit a certified report of the results of these tests to the Owner.

9.2 Delayed Pre-Commissioning and Tests on Completion

(a) If the Contractor has given a notice under Sub-Clause 9.1 [Contractor's Obligations] that the Works (as the case may be) are ready for Pre-Commissioning or, as applicable, Tests on Completion, and Pre-Commissioning or these tests are unduly delayed by the Owner, Sub-Clause 10.3 [Interference with Tests on Completion] shall apply.

(b) If Pre-Commissioning or, as applicable, the Tests on Completion are unduly delayed by the Contractor, the Owner may by giving a notice to the Contractor require the Contractor to carry out the tests within twenty one (21) calendar days after receiving the notice. The Contractor shall carry out the tests on such day or days within this period of twenty one (21) calendar days as the Contractor may fix, for which the Contractor shall give a prior notice to the Owner of not less than seven (7) calendar days.

(c) If the Contractor fails to carry out Pre-Commissioning or, as applicable, the Tests on Completion within this twenty one (21) day period:

(i) after a second notice is given by the Owner to the Contractor, the Owner's Personnel may proceed with Pre-Commissioning or, as applicable, the tests;

(ii) the Contractor may attend and witness Pre-Commissioning or, as applicable, these tests;

(iii) within twenty eight (28) calendar days of Pre-Commissioning or, as applicable, these tests being completed, the Owner shall send a copy of the test results to the Contractor; and

(iv) if the Owner incurs additional costs as a result of such Pre-Commissioning or, as applicable, testing, the Owner shall be entitled to payment by the Contractor of the costs reasonably incurred as a debt due and payable by the Contractor to the Owner on demand.

(d) Whether or not the Contractor attends, Pre-Commissioning or, as applicable, these Tests on Completion shall be deemed to have been carried out in the presence of the Contractor and the results of these tests shall be accepted as accurate.

9.3 Retesting

(a) If the Works, or a Section, fail to pass the Tests on Completion, Sub-Clause 7.5 [Rejection] shall apply, and the Contractor shall repeat the failed Tests on Completion on any related work, provided that:

(i) where the Works (or the relevant part of the Works) have achieved the applicable Minimum Performance Guarantee but have failed to achieve the corresponding Performance Guarantee, the Contractor shall not be entitled to repeat the applicable Test on Completion more than [●] additional times; and

(ii) where the Works (or the relevant part of the Works) have failed to achieve the Minimum Performance Guarantees and/or the Absolute Guarantees, or, any other Test on Completion, the Contractor shall repeat the Tests on Completion until such time the Contractor's aggregate liability for Delay Liquidated Damages equals or exceeds the maximum amount set out in Sub-Clause 8.7 [Delay Damages], after which no further re-tests shall be permitted. .

(b) All appropriate adjustments and modifications shall be made by the Contractor at its own expense and risk before, during or after the repetition of any Tests on Completion.

9.4 Failure to Pass Tests on Completion

If after exceeding the maximum re-testing period permitted under Sub-Clause 9.3 [Retesting], and subject to Sub-Clauses 9.5 [Minimum Performance Guarantees Not Achieved] to 9.7 [Absolute Guarantees], the Works, or a Section, fail to pass the Tests on Completion, the Owner shall be entitled to:

(a) reject the Works or Section (as the case may be), in which event the Owner shall have the same remedies as are provided in sub-paragraph (c) of Sub-Clause 11.4 [Failure to Remedy Defects]; or

(b) issue a Taking Over Certificate.

In the event of sub-paragraph (b), the Contractor shall proceed in accordance with all other obligations under the Contract, and the Contract Price shall be reduced by such amount as shall be appropriate to cover the reduced value to the Owner as a result of this failure. Unless the relevant reduction for this failure is stated (or its method of calculation is defined) in the Contract, the Owner may require the reduction to be (i) agreed by both Parties (in full satisfaction of this failure only) and paid before this Taking Over Certificate is issued, or (ii) determined and paid under Sub-Clause 2.4 [Owner's Claims] and Sub-Clause 3.5 [Determinations].

9.5 Minimum Performance Guarantees Not Achieved

If, during the Tests on Completion, the Minimum Performance Guarantees are not achieved, then:

(a) If the Works, or a Section, fail to pass the Tests on Completion, Sub-Clause 7.5 [Rejection] shall apply, and the Owner or the Contractor may require the failed Tests, and Tests on Completion on any related work, to be repeated under the same terms and conditions, provided that the Contractor shall not be entitled to repeat any Tests on Completion beyond the maximum re-testing period permitted under Sub-Clause 9.3 [Retesting].

(b) the Contractor shall, at its own cost and expense:

(i) make such changes, modifications and/or additions to the Works or any part as may be necessary so as to achieve the Minimum Performance Guarantees; and

(ii) repeat such Tests on Completion in accordance with Sub-Clause 9.3 [Retesting] until the Minimum Performance Guarantees have been achieved (but not exceeding the maximum re-testing period permitted under Sub-Clause 9.3 [Retesting]); and

(c) if after repeating the maximum number of re-tests permitted under Sub-Clause 9.3 [Retesting], the Minimum Performance Guarantees are still not achieved, the Owner may exercise its rights under Sub-Clause 9.4(a) or (b) [Failure to Pass Tests on Completion].

9.6 Performance Guarantees Not Achieved

[Note to Bidders – Performance LDs will apply to any failure to achieve the performance guarantees (provided that the aggregate number of retests permitted has been exhausted). The quantum of these LDs will need to be further discussed following the finalization of the PPA, but will need to be sized to compensate the Owner for loss of revenue under the PPA, as well as additional fuel consumption costs (where applicable).]

If, during the Tests on Completion, the Minimum Performance Guarantees and Absolute Guarantees are achieved and all other Tests on Completion have been passed, but the Performance Guarantees are not achieved, then:

(a) the Contractor shall, at its own cost and expense:

(i) make such changes, modifications and/or additions to the Works or any part as may be necessary so as to achieve the Performance Guarantees; and

(ii) repeat such Tests on Completion in accordance with Sub-Clause 9.3 [Retesting] until the Performance Guarantees have been achieved (but not exceeding the maximum number of re-tests permitted under Sub-Clause 9.3 [Retesting]);

(b) if after repeating the maximum number of re-tests permitted under Sub-Clause 9.3 [Retesting], the Minimum Performance Guarantees and Absolute Guarantees are achieved and all other Tests on Completion have been passed, but the Performance Guarantees are still not achieved:

(i) the Contractor shall be liable to the Owner for performance liquidated damages as set out in Schedule 4 [Liquidated Damages] ("**Performance Liquidated Damages**"), provided that the Contractor's maximum aggregate liability for (A) such Performance Liquidated Damages shall not exceed [fifteen percent (15%)] of the Contract Price, and (B) Delay Liquidated Damages and Performance Liquidated Damages together shall not exceed thirty percent (30%) of the Contract Price

(ii) the Owner may, at its discretion, deduct such Performance Liquidated Damages from any payment payable to Contractor, withdraw the sum of such Performance Liquidated Damages from the Performance Bond or require the Contractor to pay the Performance Liquidated Damages separately to it;

(iii) such Performance Liquidated Damages are a genuine and reasonable pre-estimate of the damages likely to be sustained by the Owner as a result of the Contractor's breach of its obligations to achieve the Performance Guarantees;

(iv) if the obligation to pay Performance Liquidated Damages is found for any reason to be void, invalid or otherwise inoperative so as to disentitle the Owner from claiming Performance Liquidated Damages , the Owner shall be entitled to claim against the Contractor for damages at law resulting from the Contractor's breach of its obligations to achieve the Performance Guarantees, [a penalty equal to eight percent (8%) of the value of the obligation breached] ***[Note to Bidders – this will only apply if the Contractor is a Vietnamese entity and the Contract is governed by Vietnam law]***, and other remedies available at law; and

(v) the payment of Performance Liquidated Damages is without prejudice to any other rights or remedies available to the Owner under the Contract or at law, and shall not relieve the Contractor from any other duties, obligations or responsibilities which it may have under the Contract.

9.7 Absolute Guarantees

(a) The Absolute Guarantees are each an absolute guarantee, the meeting of which is a condition precedent to the issuance of a Taking Over Certificate.

(b) If, during the Performance Tests, the Absolute Guarantees are not achieved, then:

(i) the Contractor shall, at its own cost and expense:

(A) make such changes, modifications and/or additions to the Works or any part as may be necessary so as to achieve the Absolute Guarantees; and

(B) repeat such Performance Tests in accordance with Sub-Clause 9.3 [Retesting] until the Absolute Guarantees have been achieved (but not exceeding the maximum re-testing period permitted under Sub-Clause 9.3 [Retesting]); and

(ii) if, after reaching the maximum re-testing period permitted under Sub-Clause 9.3 [Retesting], the Absolute Guarantees are still not achieved, the Owner may exercise its rights under Sub-Clause 9.4(a) or (b) [Failure to Pass Tests on Completion].

10 Owner's Taking Over

10.1 Taking Over of the Works and Sections

The Contractor may apply by notice to the Owner for a Facility Taking Over Certificate not earlier than fourteen (14) calendar days before the whole of the Works and the Facility will, in the Contractor's opinion, achieve Facility Taking Over. If, pursuant to Sub-Clause 10.2 [Taking Over of Parts of the Works], the Works are divided into Sections, the Contractor may similarly apply for a Taking Over Certificate for each Section at such time when such Section will, in the Contractor's opinion, achieve Taking Over.

The Owner shall, within twenty eight (28) calendar days after receiving the Contractor's application for a Taking Over Certificate:

(a) issue the Taking Over Certificate to the Contractor, stating the date on which the whole of the Works and the Facility achieved Facility Taking Over (or, as applicable, the Section achieved Taking Over) in accordance with the Contract, except for any minor outstanding work and Defects which will not substantially affect the use of the whole of the Works and the Facility (or, as applicable, the Section) for their intended purpose (either until or whilst this work is completed and these Defects are remedied); or

(b) reject the application, giving reasons and specifying the work required to be done by the Contractor to enable the Taking Over Certificate to be issued. The Contractor shall then complete this work before issuing a further notice under this Sub-Clause 10.1.

If the Owner fails either to issue the Taking Over Certificate or to reject the Contractor's application within the period of twenty eight (28) calendar days, the Contractor may refer the issue for dispute resolution in accordance with Clause 20 [Claims, Disputes and Arbitrations].

10.2 Taking Over of Parts of the Works

[Note to Bidders – key Interim Milestones will be the completion of the LNG Terminal, followed by the power plant, on a unit by unit basis. The current intention is however for Taking Over to only occur when the entire facility (LNG terminal and power plant) is completed.

This section has been added to the give the Owner flexibility to take-over certain parts of the facility early, before other parts are completed, but whether this flexibility is in fact needed will need to be further discussed.]

(a) Notwithstanding any other provision of the Contract, the Owner may at any time, at its sole discretion, elect by written notice to the Contractor to Taking Over any part or parts of the Works as a "Section" or "Sections" for the purposes of the Contract (each, a "**Section**").

(b) Upon the Owner's election under sub-paragraph (a), all references in the Contract to the "Works" or to "Sections" (as the context requires) in relation to Taking Over, Defects Liability Period, Performance Guarantees, Tests on Completion, and any other relevant provisions, shall be construed as referring to the relevant Section(s) so taken over or to be taken over.

(c) The Owner's election to Taking Over any Section(s) shall not prejudice its right to Taking Over any other part(s) of the Works as additional Section(s) at any time thereafter, by further written notice to the Contractor.

(d) The Contractor shall cooperate fully with the Owner to facilitate the taking over of any Section(s) in accordance with this Sub-Clause 10.2, including the preparation and submission of all necessary documentation, as-built records, O&M Manuals, and the completion of all required Tests on Completion for the relevant Section(s).

(e) For the avoidance of doubt, the taking over of any Section(s) by the Owner shall not relieve the Contractor of its obligations in respect of any part of the Works not yet taken over, nor of its obligations in respect of any Defects, Latent Defects, or Serial Defects in the Section(s) taken over, nor of any other continuing obligations under the Contract.

(f) The Defects Liability Period and any other relevant periods or obligations under the Contract in respect of any Section(s) taken over by the Owner shall commence from the date stated in the Taking Over Certificate for such Section(s).

10.3 Interference with Tests on Completion

(a) If the Contractor is prevented, for more than thirty (30) calendar days, from carrying out the Tests on Completion due to an act or omission of the Owner in default of its obligations under the Contract, or an act or omission of the Power

Purchaser in default of its obligations under the PPA, the Contractor shall carry out the Tests on Completion as soon as practicable.

(b) If the Contractor suffers delay and/or incurs Cost as a result of this delay in carrying out the Tests on Completion, the Contractor shall give notice to the Owner and shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] and the requirements of this Sub-Clause 10.3 to:

(i) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(ii) payment of any such Cost, which shall be added to the Contract Price.

After receiving this notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

(c) Notwithstanding any other provision of this Sub-Clause 10.3 or the Contract, to the extent that the delay is due to an act or omission of the Power Purchaser in default of its obligations under the PPA, the Contractor shall only be entitled to an extension of time, additional payment, or other relief under this Sub-Clause 10.3 to the extent, and only to the extent, that the Owner is granted corresponding relief (whether as to time, money, or otherwise) under the PPA in respect of the same event or circumstance.

(d) The Owner shall use reasonable endeavours to diligently pursue such relief under the PPA if the Contractor requests relief under this Sub-Clause 10.3 and the Owner is entitled to make a corresponding claim.

10.4 Early Generation and Operation

(a) If Unit 1 is completed and attains COD under the PPA prior to Unit 2, the LNG Terminal and other parts of the Facility being completed and attaining Facility Taking Over, the Contractor shall, upon the Owner's instruction, operate and maintain the LNG Terminal and Unit 1 in accordance with the requirements set out in this Contract, the PPA, the LNG SPA and all other Project Documents (to the extent applicable). The Contractor's obligations in respect of such operation and maintenance shall be performed at no additional cost to the Owner, and the Contract Price shall be deemed to include all costs associated with such operation and maintenance.

(b) Notwithstanding any early completion, COD, or operation of Unit 1 or any other part of the Facility, risk in such parts of the Facility shall not pass to the Owner, and the Defects Liability Period (including any Latent Defects Liability Periods or Serial Defects Liability Periods) in respect of such parts of the Facility shall not commence, until the whole of the Facility has achieved Facility Taking Over and the Facility Taking Over Certificate has been issued. The Contractor shall remain fully responsible for the care, custody, and risk of any such parts of the Facility until the Facility Taking Over Certificate is issued.

(c) Any and all revenues, proceeds, or other benefits derived from the operation or generation of electricity by any Unit or part of the Facility prior to the Facility

Taking Over Date shall be for the sole account of the Owner. The Contractor shall have no entitlement to any such revenues, proceeds, or benefits, and shall take all steps necessary to ensure that such revenues are paid directly to the Owner or as the Owner may direct.

(d) For the avoidance of doubt, the Owner shall not be deemed to have taken over, nor shall any Taking Over Certificate be deemed to have been issued, in respect of any Unit or part of the Facility that is completed and operated prior to the completion of the entire Facility.

11 Defects Liability

11.1 Completion of Outstanding Work and Remedying Defects

(a) In order that the Works and Contractor's Documents, and each Section, shall be in the condition required by the Contract (fair wear and tear excepted) by the expiry date of the relevant Defects Liability Period or as soon as practicable thereafter, the Contractor shall promptly (and immediately commence to):

(i) commence rectification or completion of the Punch-List and complete such rectification or completion as soon as practicable but no later than by the times specified in the Punch-List, or if not stated in the Punch-List, within such reasonable time as is instructed by the Owner; and

(ii) execute all work required to remedy Defects or damage, as may be notified by the Owner on or before the expiry date of the Defects Liability Period for the Works or Section (as the case may be).

(b) When the Contractor completes rectification of each item on the Punch-List, the Contractor must notify the Owner and the Owner's Representative will inspect the relevant part of the Works. Following inspection of the relevant part of the Works, the Owner shall notify the Contractor either that such items have been satisfactorily completed or advise the Contractor of any outstanding work that must be performed to complete such items on the Punch-List.

(c) If a Defect appears or damage occurs, the Owner shall notify the Contractor accordingly.

(d) In carrying out the works referred to in sub-paragraph (a) of this Sub-Clause 11.1, the Contractor must notify the Owner of rectification works it intends to carry out, which may include removing Defect from the Site, demolishing work, reconstructing, replacing or correcting the Equipment, Material or Facility.

(e) Unless otherwise agreed by and between the Parties, the Owner may direct the times (acting reasonably) within which the Contractor must commence and complete rectification of a Defect.

(f) The Contractor acknowledges that during the Defects Liability Period, the Owner, its Affiliates and other persons will be in occupation of any part of the Permanent Work, and the Owner may direct the Contractor to carry out rectification work at times which will minimise inconvenience to them, including outside their normal business hours or during a planned outage.

11.2 Cost and Method of Remedying Defects

(a) All work referred to in sub-paragraph (a) of Sub-Clause 11.1 [Completion of Outstanding Work and Remedying Defects] shall be executed at the risk and cost of the Contractor.

(b) The Contractor must ensure that the remedying of any Defect is carried out in a manner which prevents the Defect from re-occurring.

(c) In carrying out remedying work required by Clause 11 [Defects Liability] or accessing any part of the Facility or the Site, the Contractor must procure that the Contractor's Personnel:

(i) not interfere with the commercial operation of the Facility (except with the prior written approval of the Owner);

(ii) minimise the impact on the operation, maintenance and use of the Facility or nearby property and infrastructure; and

(iii) comply with any requirements of the Owner in respect of Site access, health and safety and operational matters.

11.3 Extension of Defects Liability Period

(a) The Owner shall be entitled to an extension of the Defects Liability Period for the Works, or any part of the Facility (as the case may be, after taking over) if and to the extent that such Works, or any part of Facility (as the case may be, after taking over) cannot be used for the purposes for which they are intended by reason of a Defect, and such extension shall be for the period during which the Works, or any item of Facility (as the case may be) could not be used for the purposes for which they are intended provided that such extension period shall not exceed [twenty four (24)] months from the end of the original Defects Liability Period.

(b) The Defects Liability Period in respect of any part of the Works or part of the Facility (as the case may be) that is repaired or replaced under Sub-Clause 11.1 [Completion of Outstanding Work and Remedying Defects] shall be [twenty four (24)] months from the date of repair or replacement from the date of repair or replacement of such part of the of the Works or item of the Facility.

11.4 Failure to Remedy Defects

If the Contractor fails to remedy any Defect or damage within a reasonable time, a date may be fixed by (or on behalf of) the Owner, on or by which the Defect or damage is to be remedied. The Contractor shall be given reasonable notice of this date, which shall be no less than five (5) calendar days.

If the Contractor fails to remedy the Defect or damage by this notified date and this remedial work was to be executed at the cost of the Contractor under Sub-Clause 11.2 [Cost and Method of Remedying Defects], the Owner may (at its option):

(a) carry out the work itself or by others, in a reasonable manner and at the Contractor's cost, but the Contractor shall have no responsibility for this work; and the Contractor shall subject to Sub-Clause 2.4 [Owner's Claims] pay to the Owner the costs reasonably incurred by the Owner in remedying the Defect or damage;

(b) agree or determine a reasonable reduction in the Contract Price in accordance with Sub-Clause 3.5 [Determinations]; or

(c) if the Defect or damage deprives the Owner of substantially the whole benefit of the Works or any major part of the Works, terminate the Contract as a whole, or in respect of such major part which cannot be put to the intended use. Without prejudice to any other rights, under the Contract or otherwise, the Owner shall then be entitled to recover all sums paid for the Works or for such part (as the case may be), plus financing costs and the cost of dismantling the same, clearing the Site and returning Equipment and Materials to the Contractor.

11.5 Removal of Defective Work

If the Defect or damage cannot be remedied expeditiously on the Site and the Owner gives consent, the Contractor may remove from the Site for the purposes of repair such items of Equipment as are Defective or damaged. This consent may require the Contractor to increase the amount of the Performance Bond by the full replacement cost of these items, or to provide other appropriate security.

11.6 Further Tests

(a) If the work of remedying of any Defect or damage may affect the performance of the Works, the Owner may require the repetition of any of the tests described in the Contract, including Tests on Completion and all the other tests required by the Owner. The requirement shall be made by notice within twenty eight (28) calendar days after the Defect or damage is remedied.

(b) These tests shall be carried out in accordance with the terms applicable to the previous tests, except that they shall be carried out at the risk and cost of the Party liable, under Sub-Clause 11.2 [Cost and Method of Remedying Defects], for the cost of the remedial work.

11.7 Right of Access

Until the expiry of the last of the Defects Liability Period, the Contractor shall have the right of access to such parts of the Works as it reasonably requests subject to:

(a) it having given reasonable prior notice to the Owner;

(b) the Owner having granted consent to such access (at the convenience and discretion of the Owner);

(c) any such access complying with the Owner's security and health and safety arrangements; and

(d) such access not causing any interference with the operation of the Works.

11.8 Contractor to Search

If required by the Owner, the Contractor shall, under the direction of the Owner, search for the cause of any Defect. All costs and expenses incurred in undertaking such search shall be borne by the Party responsible for causing the relevant Defect. The search result shall be subject to the final confirmation of the Owner.

11.9 Power Train Defects

If during the Defects Liability Period (or any Latent Defects Liability Period), any power train (GT, HRSG, ST, generator, transformer) experiences a [major incident], ***[Note to QNLNG – concept taken from Conditions of Contract previously set out in Part 2 of the ITB. Please consider expanding what constitutes a major incident.]*** the Contractor shall inspect the other power trains to ensure the same incident does not repeat on the other power trains, provide the Owner with a report on its findings and the proposed remedial plan (subject to the Owner's review and approval), and implement such remedial plan.

11.8A Latent Defects

(a) The Contractor remains liable for any Latent Defects during the Latent Defects Liability Period and must rectify such Latent Defect when directed to do so by the Owner under this Sub-Clause 11.8A.

(b) During the Latent Defects Liability Period, the Owner may without prejudice to any of its other rights whether under the Contract or otherwise, direct the Contractor to rectify any Latent Defect in the Works. The direction:

(i) must identify the Latent Defect;

(ii) must state a reasonable date by which the Contractor must complete the rectification work; and

(iii) may state a reasonable date by which the rectification work must commence.

(c) Sub-Clauses 11.1 [Completion of Outstanding Work and Remedying Defects] to 11.7 [Right of Access] apply to the Latent Defects Liability Period as if the references to rectification work of Defects during the Defects Liability Period are to rectification of Latent Defects during the Latent Defects Liability Period.

11.8B Serial Defects

(a) The Contractor remains liable for any Serial Defects during the Defects Liability Period and Latent Defects Liability Period and must rectify such Serial Defects when directed to do so by the Owner under this Sub-Clause 11.8B.

(b) If, at any time during the Defects Liability Period or Latent Defects Liability Period the Owner or Contractor becomes aware of circumstances which may indicate the existence of a Serial Defect, it shall promptly notify the other Party in writing, providing reasonable details.

(c) Upon identification or notification of a Serial Defect, or a potential Serial Defect, the Contractor shall, at its own cost and as directed by the Owner, promptly carry-out a root-cause-analysis and search for and inspect all similar or related items, parts, processes, systems, or components of the Works to determine the existence or extent of the Serial Defect. The Contractor shall report the results of such root-cause-analysis, search and inspection to the Owner.

(d) Where a Serial Defect is identified or notified in accordance with this Sub-Clause 11.8B, the provisions of Sub-Clauses 11.1 [Completion of Outstanding Work and Remedying Defects] to 11.7 [Right of Access] shall apply to the Serial Defect and the rectification of all affected and potentially affected items, parts, processes, systems, or components, as if references to Defects and the Defects Liability Period were references to Serial Defects and the period in which the Serial Defect is notified or discovered.

(e) If and to the extent that any part of the Works cannot be used for its intended purpose by reason of a Serial Defect, the Owner shall be entitled to an extension of the Defects Liability Period for the affected part(s) of the Works for the period during which such part(s) could not be used for their intended purpose, provided that such extension period shall not exceed [twenty-four (24) months] ***[Note to QNLNG – please confirm]*** from the end of the original Defects Liability Period.

(f) For any item, part, process, system, or component of the Works in which a Serial Defect is remedied or replaced, the Defects Liability Period and, if applicable, the Latent Defects Liability Period for such item, part, process, system, or component shall recommence for a further period of [twenty four (24)] ***[Note to QNLNG – please confirm]*** months from the date of completion of the remedial works to the satisfaction of the Owner.

11.10 Final Taking Over Certificate

(a) Performance of the Contractor's obligations (other than in respect of the rectification of Latent Defects or Serial Defects arising during the Latent Defects Liability Period) shall not be considered to have been completed until the Owner has issued the Final Taking Over Certificate to the Contractor, stating the date on which the Contractor completed its obligations under the Contract (other than in respect of the rectification of Latent Defects or Serial Defects arising during the Latent Defects Liability Period).

(b) The Owner shall issue the Final Taking Over Certificate within twenty eight (28) calendar days after the latest of the expiry dates of the Defects Liability Periods (which, for the avoidance of doubt, shall not include the Latent Defects Liability Period), or as soon thereafter when:

(i) the Contractor has supplied all the Contractor's Documents to the satisfaction of the Owner, and, if applicable, the Owner has given (or is deemed to have given) a notice of No-objection to the As-Built Drawings submitted under sub-paragraph (b)(ii) of Sub-Clause 5.6 [As-Built Drawings];

(ii) the Contractor has completed and tested all the Works (including remedying any Defects, Serial Defects, and/or damage notified during

the Defects Liability Period and any testing required in relation to such remediation works) in accordance with the Contract; and

(iii) where applicable, the Contractor has executed (and procured that the relevant Subcontractors have executed) deeds of warranties in accordance with Sub-Clause 4.1A [Warranties].

(c) The Final Taking Over Certificate shall, save in the case of fraud or dishonesty, be evidence as to the Owner's acceptance of the Works, provided that, for the avoidance of doubt, the Final Taking Over Certificate shall not relieve the Contractor from its obligations to rectify any Latent Defects or Serial Defects arising during the Latent Defects Liability Period. In the case of fraud or dishonesty, it shall be deemed that the Final Taking Over Certificate has not been issued.

11.11 Unfulfilled Obligations

After the Final Taking Over Certificate has been issued, each Party shall remain liable for the fulfilment of any obligation which remains unperformed at that time (including, without limitation, the Contractor's obligation to rectify any Latent Defects or Serial Defects arising during the Latent Defects Liability Period). For the purposes of determining the nature and extent of unperformed obligations, the Contract shall be deemed to remain in force.

11.12 Clearance of Site

(a) Upon the end of the Latent Defects Period, the Contractor shall remove any remaining Construction Equipment, surplus material, wreckage, rubbish and Temporary Works from the Site.

(b) If all these items have not been removed within twenty eight (28) calendar days after the end of the Latent Defects Period, the Owner may sell or otherwise dispose of any remaining items. The Owner shall be entitled to be paid the costs incurred in connection with, or attributable to, such sale or disposal and restoring the Site.

(c) Any balance of the moneys from the sale shall be paid to the Contractor. If these moneys are less than the Owner's costs, the Contractor shall pay the outstanding balance to the Owner.

12 [Project Documents

[Note to QNLNG – the current provision has been drafted to follow the approach in the Conditions of Contract previously set out in Section 2 of the ITB, applying to all Project Documents. This is however unusually broad and unlikely to be acceptable to Contractors, who will expect that Sponsors carry out the task of identifying all specific obligations in the Project Documents which are relevant to the Contractor and incorporating those requirements into the Contract. For current purposes, you may want to consider limiting the scope of this provision to the Governmental Project Documents (i.e. the LLA and PPA) and to a limited extent, the LNG SPA.]

(a) The Contractor confirms that:

(i) it has received a copy of the Project Documents;

(ii) it has reviewed the terms thereof thoroughly and is familiar with their terms; and

(iii) the terms of the Contract are consistent with the terms of the Project Documents.

(b) Notwithstanding any other description of the Works or any obligation of the Contractor set out in the Contract, the Contractor acknowledges and agrees that:

(i) where the Owner has an obligation under a Project Document which is related to or connected with the Works or an obligation of the Contractor under the Contract, the Contractor will (unless otherwise directed in writing by the Owner) carry out the Owner's obligation under such Project Document;

(ii) in any other instance, the Contractor will provide all reasonable assistance to and coordinate with the Owner to ensure the Owner complies with all of its obligations under the Project Documents; and

(iii) without limiting the general nature of the Contractor's obligation under sub-paragraphs (b)(i) and (b)(ii) of this Clause 12, the Contractor must ensure it complies with the Owner's obligations under the Project Documents in respect of the design, engineering, procurement, manufacturing, transport, installation, erection, construction, interconnection, start up, testing, Commissioning, execution and completion of the Works (or, in respect of the LNG SPA, the LNG Terminal), including, without limitation, under the following provisions of the Project Documents, to the extent these obligations relate to the Works or the Contractor's obligations under the Contract:

(A) [INSERT CLAUSE REFERENCES]

(c) If there is any inconsistency or ambiguity in how the Contractor is to comply with an obligation under the Contract and comply with this Clause 12, the Contractor must give written notice to the Owner. The Parties shall proceed on the basis of the Owner's direction as to the interpretation to be followed and the Contractor shall comply with such direction.

(d) The Contractor covenants that it shall:

(i) ensure that no act or omission by the Contractor, the Contractor's Personnel or its Subcontractors shall cause or contribute to any breach by the Owner of any of the Owner's obligations under or pursuant to any of the Project Documents; and

(ii) without restricting the right of the Owner to claim damages or any other relief on any basis available to it, indemnify, defend and hold harmless the Owner from and against all Losses suffered or incurred by or brought

against the Owner (including any loss of revenue under the PPA and any liabilities owed by the Owner to the LNG Supplier under the LNG SPA) arising out of or in any way connected with:

(A) any breach of this Clause 12;

(B) any breach by the Contractor of its obligations under the Contract, including failure to achieve any Interim Milestone by the applicable Interim Milestone Date or Facility Taking Over by the Scheduled Taking Over Date; or

(C) or any outage of any part of the Facility due to a Defect arising during any Defects Liability Period or Latent Defects Liability Period.

[Note to QNLNG – the above compensation regime for loss of revenue under the PPA and liabilities under the PPA and LNG SPA has been taken from the Conditions of Contract in the earlier version of the ITB. Please note however that this is off-market.

The expectation from Contractors is likely to be that the delay and performance LDs would be sized to compensate you for lost revenue/delay costs payable to other parties (including to the power purchaser and the LNG supplier), which would be your sole and exclusive remedy against the contractor for failure to complete construction on time/pass performance tests (other than where the delay LD cap is reached/minimum performance guarantees are not attained, in which case you can terminate).]

(e) Without prejudice to the generality of this Clause 12, in any case where under any of the Project Documents, any drawings, programmes, notices or other documents are required to be submitted to the Power Purchaser, the LNG Supplier or any other person in connection with the Works (or, in the case of the LNG Supplier, the LNG Terminal only), the Contractor shall, unless otherwise provided in the Contract or otherwise instructed in writing by the Owner, submit the same in the manner and within sufficient time to allow the Owner to submit the same in the manner and within the time (if any) prescribed therefor in the Project Documents and so as not to cause or contribute to any breach by the Owner of any of the Owner's obligations under the Project Documents or to prejudice any right or entitlement which the Owner may have under the Project Documents. For the avoidance of doubt, the Contractor shall submit all drawings, programmes, notices, or other documents at the earliest possible time to preclude or mitigate any possible delay arising from the review of documents by the Owner.

(f) Wherever a provision of any Project Document requires the Owner to indemnify or compensate any counterparty thereunder, then, to the extent that such liability is attributable to the Contractor's performance, default, or risks assumed by it under this Contract, the Contractor shall indemnify or compensate the Owner in the same manner and amount as the indemnity or compensation due from the Owner to such counterparty to the Project Document insofar as the same relates to the Works or other obligations of the Contractor under the Contract.

(g) If any Governmental Project Documents ***[Note to QNLNG – we have restricted this termination right to the PPA and LLA only as it is unlikely Contractors will accept termination where the other project documents are terminated]*** terminates for a reason other than as a result of an act, default or omission of the Contractor of its obligations under the Contract, the Owner may terminate the Contract immediately by written notice to the Contractor. On such termination, the Owner shall pay the Contractor an amount calculated in accordance with Sub-Clause 19.6 [Optional Termination, Payment and Release], provided that Sub-Clause 15.3 [Valuation at Date of Termination] shall continue to apply in respect of termination by the Owner due to any event listed in Sub-Clause 15.2(a)(xi) [Termination by Owner].] ***[Note to Bidders – subject to revision following finalization of the PPA and LLA]***

13 Changes and Adjustments

13.1 Right to Vary

(a) The Contractor must not vary the Works unless it has received a Change Direction from the Owner.

(b) Changes may be initiated by the Owner at any time prior to issuing the Taking Over Certificate for the Works by a Change Direction or by a request for the Contractor to submit a proposal.

(c) The Contractor shall execute and be bound by each Change, unless the Contractor promptly, but no later than fourteen (14) calendar days after receiving the Change Direction, gives notice to the Owner stating (with supporting particulars) that:

(i) the Contractor cannot readily obtain the Goods required for the Change;

(ii) it will reduce the safety or suitability of the Works; or

(iii) it will have an adverse impact on the achievement of the Performance Guarantees.

Upon receiving this notice, the Owner shall cancel, confirm or vary the Change Direction.

(d) No Change will arise solely by reason of the development of any detailed drawings, specifications or the issue of directions necessary for the proper performance of the Works or otherwise in respect of any work which is necessary for the satisfactory and efficient carrying out by the Contractor of the Works.

(e) To the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with any Change for which the Contractor has not received a Change Direction from the Owner.

(f) No Change shall in any way vitiate or invalidate the Contract.

13.2 Value Engineering

(a) The Contractor may, at any time, submit to the Owner a written proposal which (in the Contractor's opinion) will, if adopted:

(i) accelerate completion;

(ii) reduce the cost to the Owner of executing, maintaining or operating the Works;

(iii) improve the efficiency or value to the Owner of the completed Works; or

(iv) otherwise be of benefit to the Owner.

(b) The proposal shall be prepared at the cost of the Contractor and shall include the items listed in Sub-Clause 13.3 [Change Procedure].

13.3 Change Procedure

(a) If the Owner requests a proposal, prior to instructing a Change, the Contractor shall respond in writing as soon as practicable, but no later than fourteen (14) calendar days from the request, either by giving reasons why he cannot comply (if this is the case) or by submitting:

(i) a description of the proposed design and/or work to be performed and a programme for its execution;

(ii) the Contractor's proposal for any necessary modifications to the Programme according to Sub-Clause 8.3 [Programme] and to the Contracted Date for Completion; and

(iii) the Contractor's proposal for adjustment to the Contract Price, supported by measurements or other evidence of costs.

(b) The Owner shall, as soon as practicable after receiving such proposal (under Sub-Clause 13.2 [Value Engineering] or otherwise), respond with approval, disapproval or comments. The Contractor shall not delay any work whilst awaiting a response.

(c) Each instruction to execute a Change, with any requirements for the recording of Costs, shall be issued by the Owner to the Contractor, who shall acknowledge receipt.

(d) Upon instructing or approving a Change, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine adjustments to the Contract Price. These adjustments shall include reasonable profit (not exceeding [five percent (5%)], ***[Note to QNLNG – please confirm]*** and shall take account of the Contractor's submissions under Sub-Clause 13.2 [Value Engineering] if applicable.

(e) The Contractor shall promptly proceed with and carry out any Change instructed or approved by the Owner, even if the adjustment to the Contract Price and/or any extension of time has not yet been agreed or determined.

13.4 Contractor's Claim for a Change

(a) If the Contractor considers that it has been required to carry out a Change (whether as a result of a direction from or on behalf of the Owner or otherwise) but the Owner has not given it a Change Direction, the Contractor must, within seven (7) calendar days before commencing the relevant work, notify the Owner in writing of:

(i) the Contractor's opinion that the work involves a Change which should have been directed in a Change Direction;

(ii) the reasons for its opinion;

(iii) the effect which the Contractor anticipates that the work will have on the Programme, Contracted Date for Completion and the relevant Taking Over Date; and

(iv) an estimate of the cost (including delay or disruption costs, if any, and the cost or effect on any applicable warranty) of the work.

(b) In response to a written notice by the Contractor under sub-paragraph (a) of this Sub-Clause 13.4, the Owner may, within [twenty one (21) calendar days] ***[Note to QNLNG – please confirm]*** of the date of the written notice from the Contractor:

(i) confirm that the work involves a Change and issue a Change Direction;

(ii) withdraw the relevant direction; or

(iii) confirm the relevant direction and notify the Contractor that the direction is not a Change Direction.

(c) Despite any other provision of the Contract, if the Contractor does not give the notice referred to in sub-paragraph (a) of this Sub-Clause 13.4 within the time required, then, to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with the Change or extra work performed as a consequence.

13.5 Reduction of Contractor's Works

(a) The Parties agree and acknowledge that:

(i) the Works may be reduced or omitted by a Change;

(ii) the Owner may retain or arrange for others to carry out such reduced or omitted parts of the Works; and

(iii) nothing referred to in this Sub-Clause 13.5 constitutes grounds to allege that the Owner has wrongly repudiated the Contract.

(b) Unless otherwise agreed by the Parties, the Owner may not retain or arrange for others to carry out the Works reduced or omitted by a Change under this Sub-Clause 13.5 which its value is greater than [fifteen percent (15%)] of the Contract Price. ***[Note to QNLNG – please confirm]***

(c) Any reduction in the Contract Price resulting from the Works reduced or omitted by a Change for the purpose of retaining or arranging for others to carry out such reduce or omitted parts of the Works under this Sub-Clause 13.5 shall not include:

(i) deduction of the Contractor's profit relating to the reduced or omitted part of the Works; and/or

(ii) the Cost incurred by the Contractor in order to terminate purchase orders and contracts for Equipment and Materials relating to the reduced or omitted part of the Works.

(d) The Owner must act reasonably and in good faith when reducing or omitting the Works by a Change for the purpose of retaining or arranging for others to carry out such reduce or omitted parts of the Works under this Sub-Clause 13.5.

(e) For the avoidance of doubt, this Sub-Clause 13.5 shall not apply if the Works reduced or omitted by a Change is not carried out by others, including, but not limited to:

(i) the Works reduced or omitted by a Change by agreement; and

(ii) the Works reduced or omitted by a Change due to any reduction or omission instructed or directed by the Power Purchaser or the Financing Parties.

13.6 Payment in Applicable Currencies

All amounts payable under this Contract shall be in [USD/VND]. ***[Note to Bidders – if the Contractor is a Vietnamese entity, all references to USD will be changed to VND, and all payments will be made in VND only]***

13.7 Modifications which are not Changes

Except as expressly provided under the Contract, the following shall not be considered as Changes for the purposes of this Clause 13 [Changes and Adjustments], be taken into account when calculating the effect of Changes upon the Contract Price, Programme or Contracted Date for Completion, or themselves be considered as a basis entitling the Contractor to claim an extension of time and/or Cost or other entitlement or relief under the Contract:

(a) any escalation in the cost of Equipment, Construction Equipment, Materials, and any other things intended to form or forming part of the Works, labour (whether or not resulting from a Change in Law affecting the cost of labour);

(b) currency fluctuations in respect of costs included within the Contract Price;

(c) changes that are necessary in order for the Contractor to satisfy its obligations to make the Works capable of performing as specified in the Contract (including necessary design changes);

(d) changes required because of delays attributable to the Contractor, its Subcontractors, or any of their sub-suppliers or sub-subcontractors;

(e) additional services required because of breach of, or the Contractor's failure to comply with, the Contractor's warranties;

(f) changes relating to re-performance of any Works because of the Contractor's failure to comply with the Contract; or

(g) a request by the Owner that the Contractor perform services or provide Equipment, Construction Equipment, Materials, and any other things intended to form or forming part of the Works or other items not specifically included within the Owner's Requirements but necessary for the performance and completion of the Works in accordance with the Contract.

13.8 [Adjustments for Changes in Law

(a) The Contractor shall, in accordance with Prudent Utility Practice, be under a duty to search for and notify the Owner of any Change in Law, which affect the Contractor in the performance of obligations under the Contract. As soon as the Contractor becomes aware of such a Change in Law it shall consult with the Owner, using all reasonable efforts to minimise any additional Costs consistent with Prudent Utility Practice and its obligations under the Contract.

(b) If the Contractor suffers (or will suffer) delay and/or incurs (or will incur) additional Cost as a result of a Change in Law, which the Contractor could not reasonably have been aware of prior to the [Base Date], the Contractor shall give notice to the Owner and shall be entitled, as its sole and exclusive remedy, subject to Sub-Clause 20.1 [Contractor's Claims] and the requirements of this Sub-Clause 13.8, to:

(i) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(ii) subject to sub-paragraph (d) of this Sub-Clause 13.8, payment of any such Cost, which shall be added to the Contract Price.

(c) After receiving such notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine such matters.

(d) Notwithstanding anything to the contrary in the Contract, the Contractor agrees and acknowledges that the Contractor will not be entitled to any payment of Costs under sub-paragraph (b) of this Sub-Clause 13.8:

(i) unless the Contractor submits to the Owner a certificate setting out, in detail satisfactory to the Owner, the Costs of making any such Changes to the Works; and

(ii) for a Change in Law or series of Changes in Law that occur in a calendar year unless the net increase (so after taking into account any decreases) in the Contractor's Costs of carrying out the Works for all Changes in Law occurring during that calendar year is in excess of an amount equivalent to USD [●].

(e) If there is a decrease in the Costs of performing the Works due to a Change in Law, the Owner shall be entitled to decrease the Contract Price, determined by the Owner in accordance with Sub-Clause 3.5 [Determinations] as a result of a Change in Law under this Sub-Clause 13.8.

(f) For the avoidance of doubt, to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with the Change in Law, other than as may be provided under sub-paragraph (b) of this this Sub-Clause 13.8.

(g) Notwithstanding any other provision of this Sub-Clause 13.8 or the Contract, the Contractor shall only be entitled to an extension of time, additional payment, or other relief for a Change in Law to the extent, and only to the extent, that the Owner is granted corresponding relief (whether as to time, money, or otherwise) under the Governmental Project Documents (including, without limitation, the Power Purchase Agreement and the Land Lease Agreement) in respect of the same event or circumstance.

(h) The Owner shall use reasonable endeavours to diligently pursue such relief under the Governmental Project Documents if the Contractor requests relief for a Change in Law and the Owner is entitled to make a corresponding claim.]

[Note to Bidders – subject to revision following finalisation of the change in law regime under the PPA. Ultimately, the Contractor's entitlement to change in law relief will need to be fully aligned with, and no broader than the Owner's corresponding entitlement under the PPA.]

14 Contract Price and Payment

14.1 The Contract Price

(a) The aggregate Contract Price is set out in the Contract Agreement and further particularised in [Contract Price and Break-Down], which shall be inclusive of all Taxes other than as provided in accordance with Sub-Clause 4.24 [Taxes].

(b) Payment for the Works and performance of the Contract shall be made on the basis of the lump sum Contract Price, subject only to adjustments in accordance with the Contract.

(c) The Contract Price shall be the Contractor's complete compensation for the Works, performance of the Contract, and providing the Owner with a fully completed and successfully operational Facility, complete in every detail

according to the provisions of the Contract. The Contract Price includes, without limitation:

(i) all profit of the Contractor;

(ii) all equipment, labour, transportation, services and Intellectual Property Rights to be provided hereunder;

(iii) unless otherwise provided under Sub-Clause 4.24 [Taxes], any Taxes for which the Contractor is required to pay in relation to the Works; and

(iv) any damages, fines, penalties, assessments and other imposts levied by any Governmental Instrumentality attributable to the Contractor.

(d) The Contractor shall not be entitled to any adjustment of the Contract Price due to the price increase of the labor and materials, unforeseen material conditions, change in exchange rate or for other reasons during the execution of the Contract, unless otherwise specified in the Contract.

14.2 Advance Payment

(a) The Owner shall make an advance payment in an amount equivalent to [●] % of the Contract Price ***[Note to QNLNG – please advise.]*** (the "**Advance Payment**") within [forty five (45)] calendar days ***[Note to QNLNG – please confirm]*** after the later to occur of:

(i) the Owner has received an irrevocable, unconditional and on demand bond:

(A) in an amount and in such currency that is equal to the Advance Payment;

(B) issued by an international financial institution or other institution acceptable to the Owner with an Acceptable Credit Rating; and

(C) in the form set out in Schedule 16 [Form of Contractor's Security Bonds]; and

(the "**Advance Payment Bond**");

(ii) the Contractor has satisfied each of the Conditions Precedent set out in sub-paragraphs (a) to (f) of Article 6.3 [Conditions Precedent] of the Contract Agreement; and

(iii) the Notice to Proceed has been issued.

(b) The Contractor shall ensure that the Advance Payment Bond is valid and enforceable until the Advance Payment has been fully repaid, and shall be solely responsible for all costs and expenses incurred in obtaining, issuing, and maintaining the Advance Payment Bond.

(c) If the terms of any Advance Payment Bond specify an expiry date, and the Advance Payment has not been fully repaid by the date falling twenty eight (28) calendar days prior to the expiry date, the Contractor shall extend the validity of the Advance Payment Bond or provide a replacement Advance Payment Bond until such time the Advance Payment is fully repaid.

(d) If the Contractor fails to extend the validity of the Advance Payment Bond or provide a replacement Advance Payment Bond by the date falling twenty eight (28) calendar days prior to the expiry date, then the Owner may call on the Advance Payment Bond and hold the proceeds as cash security.

(e) If the Contractor subsequently extends the validity of the Advance Payment Bond or provides a replacement Advance Payment Bond that complies with all the requirements stipulated in this Sub-Clause 14.2, the Owner will give to the Contractor the proceeds of drawing down on the Advance Payment Bond less any reasonable costs necessarily incurred as a result of the Contractor's delay in providing a replacement Advance Payment Bond.

(f) The Advance Payment shall be repaid through proportional deductions in interim payments. Deductions shall be made at the amortization rate calculated by dividing the total amount of the Advance Payment by the Contract Price stated in the Contract Agreement, which shall be applied to the amount otherwise due (excluding the Advance Payment), until such time as the Advance Payment has been repaid.

(g) If the advance payment has not been repaid prior to the issue of the Taking Over Certificate for the Works or prior to termination under Clause 15 [Termination by Owner], Clause 16 [Suspension and Termination by Contractor] or Clause 19 [Force Majeure Event] (as the case may be), the whole of the balance then outstanding shall immediately become due and payable by the Contractor to the Owner.

14.3 Interim Payment

(a) No amount will be paid to the Contractor until:

(i) the Contractor has satisfied each of the Conditions Precedent set out in sub-paragraphs (a) to (f) of Article 6.3 [Conditions Precedent] of the Contract Agreement; and

(ii) in respect of any Statement, the Contractor has submitted a Statement that complies with the requirements of sub-paragraph (b) below and has provided any and all further detailed supporting particulars requested by the Owner pursuant to sub-paragraph (c) below in order for the Owner to verify the amount claimed.

(b) Upon the achievement of each Milestone, the Contractor shall submit to the Owner's Representative, and if requested by the Owner, to the Independent Engineer, an interim payment application in the form of a pro-forma invoice set out in the form in Schedule 19 [Form of interim Payment Application] (each, a "**Statement**") requesting payment for the portion of the Contract Price corresponding to such Milestone (as set out in Schedule 11 [Project Milestone

Payment Schedule]) and other amounts due to it under the Contract, together with a lien waiver in the form set out in Schedule 20 [Form of Lien Waiver] and supporting documents which shall include the relevant report on progress in accordance with Sub-Clause 4.21 [Progress Reports]. The Statement shall set out:

(i) the amount of the Contract Price that payment is claimed;

(ii) any amounts to be deducted for repayment of the Advance Payment in accordance with Sub-Clause 14.2 [Advance Payment];

(iii) any amounts to be deducted for payments made in respect of Early Works under Article 6.7(h)(ii) [Limited Notice to Proceed] of the Contract Agreement;

(iv) any other additions or deductions to the Contract Price which may have become due under the Contract, including for any Changes determined in accordance with Clause 13 [Changes and Adjustments]; and

(v) any other additions or deductions which may have become due under the Contract or otherwise, including those under Clause 20 [Claims, Disputes and Arbitration].

(c) The Owner's Representative shall review the Statement and the supporting documents enclosed and may require the Contractor to provide further supporting documents for payments claimed in each Statement.

(d) Within [thirty (30)] calendar days ***[Note to QNLNG – please confirm]*** after the submission of the Statement and all supporting documents by the Contractor, the Owner's Representative shall issue to the Contractor (with a copy being sent to the Owner and the Independent Engineer) a payment certificate (each, a **"Payment Certificate"**) certifying the amount of the Statement that the Owner's Representative determines to be due and payable to the Contractor in accordance with Sub-Clause 14.5 [Timing of Payments]. If the Payment Certificate does not certify the full amount claimed in the Statement as being due for payment, the Payment Certificate shall set out reasons as to why any such amounts have been determined to be not due and payable.

14.4 Payment Milestones

Upon achievement of each Milestone, the Contractor shall be entitled to claim payment for the amount corresponding to the achievement of such Milestone (as set out in Schedule 11 [Project Milestone Payment Schedule]) in accordance with Sub-Clause 14.3 [Interim Payment].

The Owner shall have the right to make reasonable adjustments to the Milestones by reason of any adjustments to the Contract Price and/or the Contracted Date for Completion made pursuant to the terms of the Contract.

14.5 Timing of Payments

Except as otherwise stated in Sub-Clause 2.4 [Owner's Claims], the Owner shall pay to the Contractor:

(a) the Advance Payment within the period set out in Sub-Clause 14.2 [Advance Payment];

(b) the amount which is due in respect of each Statement (other than the Final Statement) as determined by the Owner's Representative and set out in the corresponding Payment Certificate, within [fort five (45)] calendar days ***[Note to QNLNG – please confirm]*** of the issuance of the Payment Certificate;

(c) the final amount due, within [sixty (60)] calendar days after receiving the Final Statement ***[Note to QNLNG – please confirm]*** and written discharge in accordance with Sub-Clause 14.9 [Application for Final Payment] and Sub-Clause 14.10 [Discharge]; and

(d) any payment due following the termination of the Contract, within [seventy-four (74)] calendar days after the date of termination,

provided that, where the Owner disagrees with any amount claimed for payment in a Statement, the Owner shall only be required pay for the part certified for payment in the Payment Certificate. The portion of the Statement to which the Owner disagrees shall be referred for resolution in accordance with Clause 20 [Claims, Disputes and Arbitration]. If such disputed amount is later determined to be due to the Contractor, such amount shall be payable with interest determined in accordance with Sub-Clause 14.6 [Delayed Payment], accruing from the date that such payment would have been due to the Contractor if it was not disputed.

14.6 Delayed Payment

If either Party fails to make payment of any sum by the date on which payment of that sum is required by the Contract, in respect of the period between the date on which the payment was required by the Contract and the actual payment date, the Party in default shall be liable to pay to the other Party interest on the unpaid sum at the rate of [3]% per annum plus the Base Rate***[Note to QNLNG – Please confirm. 3% was taken from the Conditions of Contract previously set out in Part 2 of the ITB.]***, compounded monthly.

The Contractor's entitlement to recover interest on any amount unpaid under the Contract in accordance with this Sub-Clause 14.6 shall be without prejudice to, and shall not affect the Contractor's entitlement to suspend the Works in accordance with Sub-Clause 16.1 [Contractor's Entitlement to Suspend Work].

14.7 Set-Off

The Owner may at any time deduct from any moneys which are due from the Owner to the Contractor:

(a) any sums which are owed by the Contractor to the Owner pursuant to the Contract; and

(b) any Losses or other amounts which are incurred by the Owner due to the Contractor's breach of its obligations under the Contract.

Nothing in this Sub-Clause 14.7 affects the right of the Owner to recover from the Contractor any balance that remains owing after such deduction.

The Contractor shall not, under any circumstances, deduct from any moneys which are owing to the Owner any sums which are owed by the Owner to the Contractor.

14.8 Statement at Facility Taking Over

(a) Within thirty (30) calendar days after the Facility Taking Over Date, the Contractor shall submit to the Owner a Statement at Facility Taking Over with supporting documents, in accordance with Sub-Clause 14.3 [Interim Payments], showing:

(i) the value of all work done in accordance with the Contract up to the Facility Taking Over Date;

(ii) any further sums which the Contractor considers to be due; and

(iii) an estimate of any other amounts which the Contractor considers will become due to it under the Contract. Estimated amounts shall be shown separately in this Statement at Facility Taking Over and shall include estimated amounts for:

(A) Claims for which the Contractor has submitted a notice under Sub-Clause 20.1 [Contractor's Claims]; and

(B) any Dispute to which notice has been given under Sub-Clause 20.2 [Amicable Settlement] and is outstanding.

(b) Such Statement shall be accompanied by a discharge issued in accordance with Sub-Clause 14.10 [Discharge], the provision of which shall be a condition precedent to the Contractor's entitlement to payment.

(c) The Owner shall then give notice to the Contractor in accordance with Sub-Clause 14.3 [Interim Payment] and make payment in accordance with Sub-Clause 14.5 [Timing of Payments] for amounts due to the Contractor.

14.9 Application for Final Payment

(a) Within thirty (30) calendar days after the end of the Defects Liability Period (which, for the avoidance of doubt, shall not include the Latent Defects Liability Period), the Contractor shall submit to the Owner, six (6) copies of a draft final statement with supporting documents showing in detail in a form approved by the Owner:

(i) the value of all work done in accordance with the Contract; and

(ii) any further sums which the Contractor considers to be due to it under the Contract or otherwise.

(b) If the Owner disagrees with or cannot verify any part of the draft final statement, the Contractor shall submit such further information as the Owner may reasonably require and shall make such changes in the draft as may be agreed between them. The Contractor shall then prepare and submit to the Owner the

final statement as agreed. This agreed statement is referred to in these Conditions as the "**Final Statement**".

(c) However if, following discussions between the Parties and any changes to the draft final statement which are agreed, it becomes evident that a dispute exists, the Owner shall pay the agreed parts of the draft final statement in accordance with Sub-Clause 14.3 [Interim Payment] and Sub-Clause 14.5 [Timing of Payments]. Thereafter, if the dispute is finally resolved under Clause 20 [Claims, Disputes and Arbitration], the Contractor shall then prepare and submit to the Owner a Final Statement.

14.10 Discharge

(a) When submitting a Statement at Facility Taking Over pursuant to Sub-Clause 14.8 [Statement at Facility Taking Over], the Contractor shall submit a written discharge in the form set out in Part A of Schedule 26 [Contractor's Discharge] which confirms that the total of such Statement at Facility Taking Over represents full and final settlement of all moneys due to the Contractor under or in connection with the Contract in respect of matter arising up to the Facility Taking Over Date. This discharge may state that it becomes effective when the Contractor has received the out-standing balance of the Statement at Facility Taking Over, in which event the discharge shall be effective on such date. The provision of such discharge is a condition precedent to any payment in respect of the Statement at Facility Taking Over.

(b) When submitting the Final Statement, the Contractor shall submit a written discharge in the form set out in Part B of Schedule 26 [Contractor's Discharge] which confirms that the total of the Final Statement represents full and final settlement of all moneys due to the Contractor under or in connection with the Contract. This discharge may state that it becomes effective when the Contractor has received the Performance Bond and the out-standing balance of this total, in which event the discharge shall be effective on such date. The provision of such discharge is a condition precedent to any payment in respect of the Final Statement.

14.11 Final Payment

In accordance with sub-paragraph (c) of Sub-Clause 14.5 [Timing of Payments], the Owner shall pay to the Contractor the amount which is finally due, less all amounts previously paid by the Owner and any deductions in accordance with Sub-Clause 2.4 [Owner's Claims].

If the amount which is finally due to the Contractor from the Owner is less than the amount that the Contractor owes to the Owner, then the Contractor shall pay the excess amount which is a debt due and payable to the Owner within thirty (30) calendar days after the Owner's receipt of the Final Statement.

14.12 Cessation of Owner's Liability

The Owner shall not be liable to the Contractor for any matter or thing under or in connection with the Contract or execution of the Works, except to the extent that the Contractor shall have included an amount expressly for it:

(a) in the Final Statement; and

(b) (except for matters or things arising after the Facility Taking Over Date) in the Statement at Facility Taking Over described in Sub-Clause 14.8 [Statement at Facility Taking Over].

14.13 Currencies of Payment

The Contract Price and all other amounts due to the Contractor under the Contract shall be paid to the Contractor in USD. ***[Note to Bidders – if the Contractor is a Vietnamese entity, all references to USD will be changed to VND, and all payments will be made in VND only]***

15 Termination by Owner

15.1 Notice to Correct

If the Contractor fails to carry out any obligation under the Contract, the Owner may by notice require the Contractor to make good the failure and to remedy it within the time specified in such notice (which shall be not less than fourteen (14) calendar days).

15.2 Termination by Owner

(a) The Owner shall be entitled to terminate the Contract if:

(i) the Contractor fails to comply with Sub-Clause 4.2 [Performance Bond], Sub-Clause 4.2A [Parent Company Guarantee], Sub-Clause 14.2 [Advance Payment] or with a notice under Sub-Clause 15.1 [Notice to Correct];

(ii) the Contractor repudiates the Contract, including by any act or omission which demonstrates an intention not to be bound by or to perform its obligations under the Contract, whether or not such repudiation is accepted by the Owner;

(iii) the Contractor without reasonable excuse fails to proceed with the Works in accordance with Clause 8 [Commencement, Delays and Suspension], or otherwise with due expedition and without delay following the Effective Date (including, but not limited to, the failure to commence the Works within thirty (30) calendar days after the Effective Date);

(iv) the Contractor subcontracts any part of the Works or assigns the Contract without the required consent from the Owner;

(v) the Contractor (or, where applicable, any Consortium Member or Guarantor) becomes bankrupt or insolvent, goes into liquidation, has a receiving or administration order made against it, compounds with its creditors, or carries on business under a receiver, trustee or manager for the benefit of its creditors, or if any act is done or event occurs which (under Applicable Laws) has a similar effect to any of these acts or events;

(vi) the Contractor is in breach of Clause 22 [Anti-Bribery and Corruption];

(vii) the Contractor fails to comply with local and national rules and environment standards of environmental social impact specifications applicable to the Project, the Works, the Facility and the Site;

(viii) the Contractor fails to pass the Tests on Completion and the Works have been rejected by the Owner under Sub-Clause 9.4(a) [Failure to Pass Tests on Completion];

(ix) the Contractor has incurred liability reaching the maximum amount set out in either Sub-Clauses 8.7 [Delay Damages] or 17.6 [Limitation of Liability]; (including, for the avoidance of doubt, the maximum liability cap of thirty percent (30%) of the Contract Price in respect of both Delay Liquidated Damages and Performance Liquidated Damages);

(x) subject to Sub-Clause 11.4 [Failure to Remedy Defects], the Contractor fails to remedy any Defect, Latent Defect or Serial Defect or other damage to the Works as required by the Owner;

(xi) the PPA is terminated by the Power Purchaser or the Land Lease Agreement is terminated by the Lessor due to the Owner's default thereunder which is attributable to the Contractor's act, default or omission under the Contract;

(xii) at any time on or after the date falling one hundred and twenty (120) calendar days before the Contracted Date for Completion, if the Owner reasonably determines, based on the Contractor's actual progress, performance, and any other relevant circumstances, that the Contractor is unlikely to be able to complete the Works (or any Section) by the Contracted Date for Completion; or

(xiii) the Contractor fails to pay any sum due to the Owner under the Contract within 30 calendar days of receipt of a written notice from the Owner confirming that the relevant sum is overdue.

(b) In any of these events or circumstances, the Owner may, by notice to the Contractor, require the Contractor to provide, within fourteen (14) calendar days, a detailed written plan demonstrating to the Owner's reasonable satisfaction how the Contractor will remedy the relevant default. If the Contractor fails to provide such a plan within the specified period, or if the Owner, acting reasonably, is not satisfied that the plan demonstrates a credible and achievable path to remedy the default, the Owner may, upon giving a further fourteen (14) calendar days' notice to the Contractor, terminate the Contract and expel the Contractor from the Site.

(c) However, in the case of sub-paragraph (ii), (iii), (v), (vi), (viii), (ix) or (xi) above, the Owner may by notice terminate the Contract immediately.

(d) The Owner's election to terminate the Contract shall not prejudice any other rights of the Owner, under the Contract or otherwise.

(e) The Contractor shall then leave the Site and deliver any required Goods, all Contractor's Documents, and other design documents made by or for it, to the Owner. However, the Contractor shall use its best efforts to comply immediately

with any reasonable instructions included in the notice for the protection of life or property or for the safety of the Works.

(f) Upon receipt of a notice of termination, the Contractor shall, to the extent legally possible and if the Owner so requires, assign to the Owner all right, title and benefit of the Contractor in any subcontracts between the Contractor and its Subcontractors.

(g) After termination, the Owner may complete the Works and/or arrange for any other entities to do so. The Owner and these entities may then use any Goods, Contractor's Documents and other design documents made by or on behalf of the Contractor.

(h) The Owner shall then give notice that the Construction Equipment and Temporary Works will be released to the Contractor at or near the Site. The Contractor shall promptly arrange their removal, at the risk and cost of the Contractor. However, if by this time the Contractor has failed to make a payment due to the Owner, these items may be sold by the Owner in order to recover this payment. Any balance of the proceeds shall then be paid to the Contractor.

(i) The Contractor shall compensate the Owner for all Loss caused to the Owner due to the termination of the Contract.

15.3 Valuation at Date of Termination

As soon as practicable after a notice of termination under Sub-Clause 15.2 [Termination by Owner] has taken effect, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine the value of the Works.

Goods and Contractor's Documents, and any other sums due to the Contractor for work executed in accordance with the Contract.

15.4 Payment after Termination

After a notice of termination under Sub-Clause 15.2 [Termination by Owner] has taken effect, the Owner may:

(a) proceed in accordance with Sub-Clause 2.4 [Owner's Claims];

(b) with-hold further payments to the Contractor until the costs of design, execution, completion and remedying of any Defects, damages for delay in completion (if any), and all other costs incurred by the Owner, have been established; and/or

(c) recover from the Contractor any Losses incurred by the Owner including any extra costs of completing the Works, after allowing for any sum due to the Contractor under Sub-Clause 15.3 [Valuation at Date of Termination]. After recovering any such Losses (including extra costs), the Owner shall pay any balance to the Contractor.

15.5 Owner's Entitlement to Termination

(a) The Owner shall be entitled to terminate the Contract, at any time for the Owner's convenience, by giving notice of such termination to the Contractor. The termination shall take effect twenty eight (28) calendar days after the later of the dates on which the Contractor receives this notice or the Owner returns the Performance Bond. The Owner shall not terminate the Contract under this Sub-Clause 15.5 in order to execute the Works itself or to arrange for the Works to be executed by another contractor.

(b) After this termination, the Contractor shall proceed in accordance with Sub-Clause 16.3 [Cessation of Work and Removal of Construction Equipment] and shall be paid in accordance with Sub-Clause 19.6 [Optional Termination, Payment and Release].

(c) The amount payable under sub-paragraph (b) of Sub-Clause 19.6 [Optional Termination, Payment and Release] shall be the Contractor's sole and exclusive entitlement in connection with the termination of the Contract under this Sub-Clause 15.5, whether under the Contract or otherwise, and, to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with the termination of the Contract under this Sub-Clause 15.5 other than the amount payable under sub-paragraph (b) of Sub-Clause 19.6 [Optional Termination, Payment and Release]. The Contractor indemnifies and releases the Owner from all other claims or Losses whatsoever which the Contractor or the Contractor's Affiliates may have against the Owner arising out of the termination of the Contract under this Sub-Clause 15.5.

16 Suspension and Termination by Contractor

16.1 Contractor's Entitlement to Suspend Work

(a) If the Owner fails to comply with Sub-Clause 14.5 [Timing of Payments], and the aggregate of all payments outstanding to the Contractor exceeds USD[five million (5,000,000)], the Contractor may, after giving not less than thirty (30) calendar days' notice to the Owner, suspend work (or reduce the rate of work) unless and until the Contractor has received the reasonable evidence or payment, as the case may be and as described in the notice.

(b) The Contractor's action shall not prejudice its entitlements to financing charges under Sub-Clause 14.6 [Delayed Payment] and to termination under Sub-Clause 16.2 [Termination by Contractor].

(c) If the Contractor subsequently receives such evidence or payment (as described in the relevant Sub-Clause and in the above notice) before giving a notice of termination, the Contractor shall resume normal working as soon as is reasonably practicable.

(d) If the Contractor suffers delay and/or incurs Cost as a result of suspending work (or reducing the rate of work) in accordance with this Sub-Clause 16.1, the Contractor shall give notice to the Owner and shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] to:

(i) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(ii) payment of any such Cost, which shall be added to the Contract Price.

(e) After receiving this notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

(f) For the avoidance of doubt, to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with the suspension under with this Sub-Clause 16.1, other than as may be provided under sub-paragraph (d) of this Sub-Clause 16.1.

16.2 Termination by Contractor

(a) The Contractor shall be entitled to terminate the Contract if:

(i) the Contractor has suspended performance of the works as permitted pursuant to Sub-Clause 16.1 [Contractor's Entitlement to Suspend Work] and the Owner fails to make any undisputed payment within a further ninety (90) calendar days from the commencement of the Contractor's suspension under Sub-Clause 16.1 [Contractor's Entitlement to Suspend Work]; or

(ii) the Owner becomes bankrupt or insolvent, goes into liquidation, has a receiving or administration order made against it, compounds with its creditors, or carries on business under a receiver, trustee or manager for the benefit of its creditors, or if any act is done or event occurs which (under Applicable Laws) has a similar effect to any of these acts or events.

(b) In any of these events or circumstances, the Contractor may, upon giving fourteen (14) calendar days' notice to the Owner, terminate the Contract.

(c) Notwithstanding anything in the Contract, the Contractor shall comply with the requirements set out in the Direct Agreement in relation to the termination of the Contract.

16.3 Cessation of Work and Removal of Construction Equipment

After a notice of termination under Sub-Clause 15.5 [Owner's Entitlement to Termination], Sub-Clause 16.2 [Termination by Contractor] or Sub-Clause 19.6 [Optional Termination, Payment and Release] has taken effect, the Contractor shall promptly:

(a) cease all further work, except for such work as may have been instructed by the Owner for the protection of life or property or for the safety of the Works;

(b) hand over Contractor's Documents, Equipment, Materials and other work, for which the Contractor has received payment; and

(c) remove all other Goods from the Site, except as necessary for safety, and leave the Site.

16.4 Payment on Termination

After a notice of termination under Sub-Clause 16.2 [Termination by Contractor] has taken effect, the Owner shall promptly:

(a) return the Performance Bond to the Contractor; and

(b) pay the Contractor in accordance with Sub-Clause 19.6 [Optional Termination, Payment and Release].

The amount payable under Sub-Clause 19.6 [Optional Termination, Payment and Release] shall be the Contractor's sole and exclusive entitlement in connection with the termination of the Contract under Sub-Clause 16.2 [Termination by Contractor], whether under the Contract or otherwise, and to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with the termination of the Contract under Sub-Clause 16.2 [Termination by Contractor] other than the amount payable under Sub-Clause 19.6 [Optional Termination, Payment and Release]. The Contractor indemnifies and releases the Owner from all other claims or Losses whatsoever which the Contractor has against the Owner arising out of the termination of the Contract under Sub-Clause 16.2 [Termination by Contractor].

17 Risk and Responsibility

17.1 Indemnities

The Contractor shall indemnify and hold harmless the Owner, the Owner's Personnel, and their respective agents, against and from all Losses in respect of:

(a) bodily injury, sickness, disease or death, of any person whatsoever arising out of or in the course of or by reason of the design, execution and completion of the Works and the remedying of any Defects, Latent Defects or Serial Defects, unless attributable to any negligence, wilful act or breach of the Contract by the Owner, the Owner's Personnel, or any of their respective agents;

(b) damage to or loss of any property, real or personal (other than the Works), to the extent that such damage or loss:

(i) arises out of or in the course of or by reason of the design, execution and completion of the Works and the remedying of any Defects, Latent Defects or Serial Defects; and

(ii) is not attributable to any negligence, wilful act or breach of the Contract by the Owner, the Owner's Personnel, their respective agents, or anyone directly or indirectly employed by any of them;

(c) the vitiation of any insurance policy maintained pursuant to the Contract due to the Contractor's or any Subcontractor's breach of any warranty, declaration, condition or other provision in any such insurance policy, including the provision of false or misleading information, or as a result of any other act or omission of

the Contractor or any Subcontractor or the failure by the Contractor, its employees, Subcontractors, agents and any other party for whom it is responsible to comply with and meet all requirements of insurers in connection with the settlement of any claims under such insurance policies;

(d) the creation of any Lien by the Contractor, any Subcontractor or any Contractor's Personnel or any defect in title in respect of any Goods (other than any Construction Equipment) and Materials to be incorporated or incorporated in the Works;

(e) any breach of Applicable Laws by the Contractor or any of the Contractor's Personnel; and

(f) any release of Hazardous Substances which cause injury or death to persons, loss or damage to property or pollution or contamination of land or water (including the Site) to the extent in each case arising out of or in the course of or by reason of the Contractor's execution of the Works (other than Hazardous Substances pre-existing at the Site prior to commencement of any Works).

The Owner shall indemnify and hold harmless the Contractor, the Contractor's Personnel, and their respective agents, against and from all third party claims for Losses in respect of bodily injury, sickness, disease or death, or loss of or damage to any property other than the Works, to the extent attributable to any Gross Negligence, Wilful Misconduct or breach of the Contract by the Owner, the Owner's Personnel, or any of their respective agents.

17.2 Contractor's Care of the Works

(a) The Contractor shall take full responsibility for the care of the Works and Goods from the Effective Date until the Taking Over Certificate is issued for the Works, when responsibility for the care of the Works shall pass to the Owner. If a Taking Over Certificate is issued for any Section of the Works, responsibility for the care of the Section shall then pass to the Owner.

(b) After responsibility has accordingly passed to the Owner, the Contractor shall take responsibility for the care of any work which is outstanding on the date stated in a Taking Over Certificate, until this outstanding work has been completed.

(c) Subject to sub-paragraph (e) below, if any loss or damage happens to the Works, Goods or Contractor's Documents during the period when the Contractor is responsible for their care, the Contractor shall rectify the loss or damage at the Contractor's risk and cost, so that the Works, Goods and Contractor's Documents conform with the Contract.

(d) The Contractor shall be liable for any loss or damage caused by any actions performed by the Contractor after a Taking Over Certificate has been issued. The Contractor shall also be liable for any loss or damage which occurs after a Taking Over Certificate has been issued and which arose from a previous event for which the Contractor was liable.

(e) If and to the extent that loss or damage to the Works, the Facility, the Goods or Contractor's Documents is caused by a Government Event ***[Note to Bidders – as flagged above, this definition will be populated once the PPA has been finalised, on the condition that the PPA gives the Owner an entitlement to relief for political force majeure type events. Ultimately, the Contractor's entitlement to relief for such events will need to be fully aligned with, and no broader than the Owner's entitlement under the PPA (if any).]*** or any use or occupation of the Works by the Owner prior to the issuance of a Taking Over Certificate, the Contractor shall promptly give notice to the Owner and shall rectify such loss or damage to the extent required by the Owner. If the Contractor suffers delay and/or incurs Cost from rectifying such loss or damage, the Contractor shall give a further notice to the Owner and shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] and the requirements of this sub-paragraph (e), to:

(i) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(ii) payment of any such Cost, which shall be added to the Contract Price.

After receiving this further notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

Notwithstanding any other provision of this sub-paragraph (e) or the Contract, in respect of loss or damage caused by a Government Event, the Contractor shall only be entitled to an extension of time, additional payment, or other relief under this sub-paragraph (e) to the extent, and only to the extent, that the Owner is granted corresponding relief (whether as to time, money, or otherwise) under the Governmental Project Documents in respect of the same event or circumstance.

The Owner shall use reasonable endeavours to diligently pursue such relief under the Governmental Project Documents if the Contractor requests relief under this sub-paragraph (e) and the Owner is entitled to make a corresponding claim.

For the avoidance of doubt, and to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with loss or damage caused by a Government Event or any use or occupation of the Works by the Owner prior to the issuance of a Taking Over Certificate, other than as may be provided under this sub-paragraph (e).

17.3 [Not Used]

17.4 [Not Used]

17.5 Intellectual and Industrial Property Rights

(a) In this Sub-Clause 17.5, "**infringement**" means an infringement (or alleged infringement) of any patent, registered design, copyright, trade mark, trade name, trade secret or other intellectual or industrial property right relating to the Works; and "**claim**" means a claim (or proceedings pursuing a claim) alleging an infringement.

(b) Whenever a Party does not give notice to the other Party of any claim within twenty eight (28) calendar days of receiving the claim, the first Party shall be deemed to have waived any right to indemnity under this Sub-Clause 17.5.

(c) The Owner shall indemnify and hold the Contractor harmless against and from any claim alleging an infringement which is or was:

(i) an unavoidable result of the Contractor's compliance with the Owner's Requirements;

(ii) a result of any Works being used by the Owner:

(A) for a purpose other than that indicated by, or reasonably to be inferred from, the Contract; or

(B) in conjunction with anything not supplied by the Contractor, unless such use was disclosed to the Contractor prior to the Base Date or is stated in the Contract.

(d) The Contractor shall indemnify and hold the Owner harmless against and from any other claim which arises out of or in relation to:

(i) the Contractor's design, manufacture, construction or execution of the Works;

(ii) the use of Construction Equipment; or

(iii) the proper use of the Works.

(e) If a Party is entitled to be indemnified under this Sub-Clause 17.5, the indemnifying Party may (at its cost) conduct negotiations for the settlement of the claim, and any litigation or arbitration which may arise from it. The other Party shall, at the request and cost of the indemnifying Party, assist in contesting the claim. This other Party (and its Personnel) shall not make any admission which might be prejudicial to the indemnifying Party, unless the indemnifying Party failed to Taking Over the conduct of any negotiations, litigation or arbitration upon being requested to do so by such other Party.

17.6 Limitation of Liability

Neither Party shall be liable to the other for any loss of profit or revenue, loss of use of equipment or associated equipment, loss of production or down time costs, loss of opportunity, loss of goodwill, loss of any contract or for any indirect or consequential loss or damage suffered in connection with the Contract, other than:

(a) in respect of Delay Liquidated Damages or Performance Liquidated Damages payable under the Contract;

(b) liabilities incurred or suffered by the Owner under or pursuant to any Governmental Project Agreement or any LNG SPA (including for loss of revenue by the Owner or liability for payment of damages, losses and other expenses to the counterparties of such agreements), to the extent such losses, liabilities,

damages, costs, or expenses arose out of, result from, or are caused by any breach by the Contractor of its obligations under the Contract;

(c) to the extent such Losses arose from the Party's fraud, fraudulent misrepresentation, Gross Negligence or Wilful Misconduct;

(d) liabilities for Losses in respect of indemnities given under the Contract, including under Sub-Clause 17.1 [Indemnities];

(e) in respect of Losses to the extent (or, but for a vitiating act or omission of the Party) covered by payments received under insurance policies required to be taken out and maintained under the Clause 18 [Insurance];

(f) to the extent such Losses belong to the category of losses and costs that are expressed in the Contract to be recoverable following any termination of the Contractor's engagement pursuant to Sub-Clause 15.2 [Termination by Owner] or Sub-Clause 11.4 [Failure to Remedy Defects]; or

(g) in respect of any interest accrued and due in accordance with the Contract.

The total liability of the Contractor to the Owner under or in connection with the Contract shall be limited to one hundred percent (100%) of the Contract Price, provided that such limit shall not apply to or be reduced by:

(i) the Contractor's liabilities for Delay Liquidated Damages or Performance Liquidated Damages payable under the Contract;

(ii) the Contractor's liabilities arising from its fraud, fraudulent misrepresentation, Gross Negligence or Wilful Misconduct;

(iii) the Contractor's liabilities arising from any indemnities given by it under the Contract, including under Sub-Clause 17.1 [Indemnities];

(iv) the Contractor's liabilities to the extent (or, but for a vitiating act or omission of the Contractor) covered by payments received under insurance policies required to be taken out and maintained under the Clause 18 [Insurance];

(v) the Contractor's liabilities for any Losses that would otherwise be expressly recoverable following any termination of the Contractor's engagement pursuant to Sub-Clause 15.2 [Termination by Owner] or Sub-Clause 11.4 [Failure to Remedy Defects];

(vi) the Contractor's liabilities for any breach of Clause 22 [Anti-Bribery and Corruption];

(vii) the Contractor's liabilities for any breach of Applicable Laws by the Contractor or any person for whom the Contractor is responsible;

(viii) the Contractor's liabilities for any breach of Sub-Clause 1.10 [Owner's Use of Contractor's Documents], 1.10A [Intellectual Property] or 17.5 [Intellectual and Industrial property Rights];

(ix) the Contractor's liabilities for any breach of Sub-Clause 7.7 [Ownership of Equipment and Materials] in respect of the creation of any Lien by the Contractor, any Subcontractor or any Contractor's Personnel or any other defect in title in respect of any Goods (other than any Construction Equipment) and Materials to be incorporated or incorporated in the Works;

(x) the Contractor's liabilities for any breach of its environmental, health and safety obligations under the Contract, including under Sub-Clauses 4.5 [Health and Safety and Management] or 14.8 [Protection of the Environment];

(xi) any costs incurred by the Contractor or amounts which the Contractor is obliged to bear the cost of (including through reimbursement to the Owner) prior to termination of the Contract which the Contractor is obliged to expend or bear in excess of the Contract Price in order to carry out the Contractor's obligations under the Contract; or

(xii) [vitiation by the Contractor (or any person for whom the Contractor is responsible) of any ECA financing]. ***[Note to QNLNG – this has been taken from the Conditions of Contract previously set out in Part 2 of the ITB but is not commonly seen in other EPC contracts. Please advise if this should be included.]***

18 Insurance

[Note to Bidders – insurance requirements subject to further review and revision following finalisation of the insurance regime for the Project]

18.1 Insurance Policies

(a) Without limiting either Party's obligations or responsibilities under the Contract:

(i) the Contractor shall, at its cost, effect and maintain all insurances identified in Schedule 6 [Insurance Program Structure] as its responsibility; and

(ii) the Owner shall at its cost, effect and maintain all insurances identified in Schedule 6 [Insurance Program Structure] as its responsibility,

in each such case, for the period of time and on the terms set out in this Clause 18 [Insurance] and Schedule 6 [Insurance Program Structure] (together, the "**Insurance Requirements**").

(b) Nothing will prevent the Contractor, at its cost, from procuring insurance coverages in addition to the Insurance Requirements.

(c) Nothing in this Clause 18 [Insurance] limits the obligations, liabilities or responsibilities of the Contractor or the Owner, under the other terms of the Contract or otherwise. Any amounts not insured or not recovered from the insurers shall be borne by the Contractor and/or the Owner in accordance with their respective obligations, liabilities or responsibilities under the Contract.

(d) The Contractor shall not make any material alteration to the terms of any insurance policy which it is required to maintain without the prior approval of the Owner. If an insurer makes (or attempts to make) any alteration to any insurance policy which the Contractor is required to maintain, the Contractor shall promptly give notice to the Owner.

(e) In respect of all insurances identified in Schedule 6 [Insurance Program Structure] as the Contractor's responsibility, the Owner, the Owner's Personnel and all Financing Parties shall, to the extent legally possible, be an additional insured, and the insurers shall waive all rights of subrogation, in respect of a claim arising under such insurances, against the Owner, the Owner's Personnel and all Financing Parties (and their employees and advisers).

18.2 Acceptable Insurers

All insurances required to be taken out by the Contractor pursuant to Schedule 6 [Insurance Program Structure] must be obtained and maintained with such insurance companies approved by the Owner and the Financing Parties (in their sole and absolute discretion).

18.3 Insurance Certificates

(a) At least thirty (30) calendar days prior to the date on which the Insurance Requirements require an insurance policy to be effected, and thereafter, at least thirty (30) calendar days prior to the date set for each annual renewal or otherwise in accordance with the terms of the relevant insurance policies, the Contractor shall cause its insurers or agents to provide the Owner for the Owner's review and approval, the relevant:

(i) certificates of insurance; and

(ii) cover notes or signed statements of cover from the insurers evidencing the policies and terms specified in the Insurance Requirements have been obtained by such date.

(b) The Contractor shall also provide the Owner with copies of receipts or statements from its insurers evidencing payment of the annual premiums in respect of the insurance coverages and endorsements or that such premiums are not overdue.

(c) Failure by the Contractor to obtain the insurance coverage or certificates of insurance, cover notes or signed statements of cover required shall not relieve the Contractor of the Insurance Requirements or in any way relieve or limit the Contractor's obligations and liabilities under any other provision of the Contract.

18.4 Contractor's Failure to Maintain Insurances

If the Contractor fails to effect and keep in force any of the insurances required to be taken out and maintained by it pursuant to Clause 18 [Insurance] or Schedule 6 [Insurance Program Structure], then, and in any such case:

(a) the Owner may effect and keep in force such insurances and pay any premium as may be necessary and recover the same from the Contractor from time to time by

deducting the amount(s) so paid from any moneys due to the Contractor or otherwise recover the same as a debt from the Contractor; and

(b) any moneys which should have been recoverable under such insurance shall be paid by the Contractor.

18.5 Deductibles and Non-Recovery

(a) The Contractor shall be responsible for the payment of all deductibles under all insurances taken out pursuant to this Clause 18 [Insurance], except where the loss to which the deductible relates is solely caused by the Owner.

(b) Where there is a shared liability the loss shall be borne by each Party in proportion to each Party's liability, provided the non-recovery from insurers has not been caused by a breach of this Clause 18 [Insurance] by the Contractor or the Owner. In the event that non-recovery from insurers has been caused by such a breach, the defaulting Party shall bear the loss suffered.

18.6 Failure to Comply with Insurance Requirements

(a) The Contractor must not take any action or fail to take any action, or (insofar as it is reasonably within its power) permit anything to occur in relation to it or any person for whom it is responsible (including, for the avoidance of any doubt, any Subcontractor), that would entitle any insurer to refuse to pay any claim in whole or in part under any insurance policy required by this Clause 18 [Insurance]. This includes the Contractor requiring all Subcontractors to observe and comply at all times with all applicable insurance policies required by this Clause 18 [Insurance].

(b) The Contractor must immediately notify the Owner in writing of any failure to comply or non-conformance with this Clause 18 [Insurance] (including the Contractor or any person for whom it is responsible (including, for the avoidance of any doubt, any Subcontractor) not observing and/or complying with any insurance policy required by this Clause 18 [Insurance]).

(c) The Contractor shall also be responsible for the following:

(i) notifying the insurers (other than the insurers of the policies of insurance to be effected by the Owner, which are to be notified by the Owner) of any changes in the nature, extent or programme for the execution of the Works; and

(ii) the adequacy and validity of the insurances in accordance with the Contract at all times during the performance of the Contract.

(d) If the Contractor fails to comply with any condition of the insurances effected under the Contract, it shall indemnify and hold the Owner harmless against all Losses arising from such failure.

18.7 Application of Proceeds under Contractor's Responsibilities

Subject to the requirements of the Financing Agreements, the Contractor will apply any and all insurance proceeds for repairs, replacements or restoration of the damaged properties.

18.8 Continuance of Underlying Responsibilities

Nothing in this Clause 18 [Insurance] or Schedule 6 [Insurance Program Structure] limits the obligations, risks, liabilities or responsibilities of the Parties under the other terms of the Contract or otherwise. Any amounts not insured (including by reason of limitation, exclusion, deductible or excess) will be borne by the Contractor.

18.9 Taking Account of Insurance Proceeds

Notwithstanding anything to the contrary, any amounts otherwise payable by the Owner to the Contractor under the Contract will be reduced to the extent insurance proceeds are received or receivable by the Contractor in respect of the relevant event or circumstance. This includes, for instance, amounts otherwise claimed by the Contractor under the Contract. The Contractor must, where applicable and on a case-by-case basis, promptly advise the Owner where this Sub-Clause may apply.

19 Force Majeure Event

[Note to Bidders – subject to revision following finalisation of the force majeure regime under the PPA. Ultimately, the Contractor's entitlement to force majeure relief will need to be fully aligned with, and no broader than the Owner's corresponding entitlement under the PPA.]

19.1 [Definition of Force Majeure Event

In this Clause 19 [Force Majeure Event], "**Force Majeure Event**" means an exceptional event or circumstance:

(a) which is beyond a Party's control;

(b) which such Party could not reasonably have provided against before entering into the Contract;

(c) which, having arisen, such Party could not reasonably have avoided or overcome; and

(d) which is not substantially attributable to the other Party.

Force Majeure Event may include, but is not limited to, exceptional events or circumstances of the kind listed below, so long as conditions (a) to (d) above are satisfied:

(i) war, hostilities (whether war be declared or not), invasion, act of foreign enemies;

(ii) rebellion, terrorism, revolution, insurrection, military or usurped power, or civil war;

(iii) riot, commotion, disorder, strike or lockout by persons other than the Contractor's Personnel and other employees of the Contractor and Subcontractors;

(iv) munitions of war, explosive materials, ionising radiation or contamination by radio-activity, except as may be attributable to the Contractor's use of such munitions, explosives, radiation or radio-activity;

(v) natural catastrophes such as earthquake, hurricane, typhoon or volcanic activity; and

(vi) [Government Events].

Notwithstanding any other provision of the Contract to the contrary, the Parties acknowledge that the following events, conditions and circumstances or combinations of such events, conditions and circumstances (together with the effects thereof) shall not constitute or be capable of causing a Force Majeure Event:

(A) COVID-19;

(B) late delivery, breakdown or failure of any plant, machinery, equipment, materials, spare parts or consumables for the Works unless such event is itself the direct result of a Force Majeure Event;

(C) failure, inability or difficulty in making any payment or lack of funding sufficient to meet any payment obligation accrued by either Party pursuant to the Contract;

(D) any events, conditions or circumstances or any combination thereof, together with the effects thereof, caused or taken by or resulting from any lawful act by or any lawful omission of a Governmental Instrumentality, when such acts or omissions are either routine in nature or part of the normal governmental process and are not specifically directed at or otherwise specifically applicable to either of the Parties;

(E) any Defects or ordinary wear and tear in any materials, equipment, machinery and spare parts supplied by the Contractor for the Works;

(F) strikes, go-slows or industrial disputes by or affecting employees of the Contractor or any Subcontractor, except where such events are national or industry wide in scope;

(G) weather conditions, including monsoon rains, or floods that are no more severe than any weather condition or flood reported in or predictable from weather data for the period of ten (10) years prior to the Contract Date;

(H) unsuitable Site Conditions (other than earthquakes or other geologic calamities); and

(I) any other similar reasonably foreseeable adverse conditions.

19.2 Notice of Force Majeure Event

If a Party is or will be prevented from performing any of its obligations under the Contract by a Force Majeure Event, then it shall give notice to the other Party of the event or circumstances constituting the Force Majeure Event and shall specify the obligations, the performance of which is or will be prevented. The notice shall be given within [ten (10)] calendar days after the Party became aware, or should have become aware, of the relevant event or circumstance constituting the Force Majeure Event. ***[Note to Bidders – time period for giving notice subject to revision following finalisation of the notice period under the PPA.]***

The Party shall, having given notice, be excused performance of such obligations for so long as such Force Majeure Event prevents it from performing them.

Notwithstanding any other provision of this Clause 19 [Force Majeure Event], Force Majeure Events shall not apply to obligations of either Party to make payments to the other Party under the Contract.

19.3 Duty to Minimise Delay

(a) Each Party shall at all times use all reasonable endeavours to minimise any delay in the performance of the Contract as a result of a Force Majeure Event.

(b) The Party adversely affected by a Force Majeure Event shall use all reasonable efforts to mitigate the duration and severity of the effects of the Force Majeure Event and to remedy its inability and resume performance of its affected obligations under the Contract as soon as and to the maximum extent practicable. During the period in which a Party is affected by a Force Majeure Event, the Parties shall consult with each other to develop and implement a plan of reasonable remedial and alternative measures to eliminate and/or minimise the adverse effects of the relevant Force Majeure Event; provided, however, that neither Party shall be obligated to resolve or terminate any disagreement with third parties in connection with labour disputes, except under conditions acceptable to it.

(c) The Contractor acknowledges and agrees that the consultation required pursuant to this Sub-Clause 19.3 may involve multi-party consultations with representatives of the Power Purchaser, the Lessor, the Financing Parties and/or other stakeholders in the Project or the Facility and that the requirements of those third parties must be considered as part of:

(i) developing and implementing a plan of remedial action; and/or

(ii) achieving a mutually acceptable course of action to mitigate the duration and severity of any Force Majeure Event.

(d) A Party shall give notice to the other Party when it ceases to be affected by the Force Majeure Event.

19.4 Consequences of Force Majeure Event

(a) If the Contractor is prevented from performing any of its obligations under the Contract by a Force Majeure Event of which notice has been given under Sub-Clause 19.2 [Notice of Force Majeure Event], and suffers delay and/or incurs Cost by reason of such Force Majeure Event, the Contractor shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] and all other requirements of this Sub-Clause 19.4 to:

(i) an extension of time for any such delay, if completion is or will be delayed, under Sub-Clause 8.4 [Extension of Contracted Date for Completion]; and

(ii) if such Force Majeure Event is a Government Event, payment of any such Cost. ***[Note to Bidders – as flagged above, the events to which the Contractor is entitled to cost relief will be contingent on the Owner being entitled to equivalent relief under the PPA, and therefore this specific list will need to be revised following finalisation of the PPA.]***

(b) After receiving this notice, the Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine these matters.

(c) Notwithstanding any other provision of this Sub-Clause 19.4 or the Contract, the Contractor shall only be entitled to any extension of time, additional payment, or other relief for a Force Majeure Event to the extent, and only to the extent, that the Owner is granted corresponding relief (whether as to time, money, or otherwise) under the Governmental Project Documents (including, without limitation, the Power Purchase Agreement and the Land Lease Agreement) in respect of the same event or circumstance.

(d) The Owner shall use reasonable endeavours to diligently pursue such relief under the Governmental Project Documents if the Contractor requests relief for a Force Majeure Event and the Owner is entitled to make a corresponding claim.

(e) For the avoidance of doubt, and to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with a Force Majeure Event, other than as may be provided under sub-paragraph (a) of this Sub-Clause 19.4.

19.5 Force Majeure Event Affecting Subcontractor

If any Subcontractor is entitled under any contract or agreement relating to the Works to relief from force majeure on terms additional to or broader than those specified in this Clause 19 [Force Majeure Event], such additional or broader Force Majeure Events or circumstances shall not excuse the Contractor's non-performance or entitle it to relief under this Clause 19 [Force Majeure Event].

19.6 Optional Termination, Payment and Release

[Note to Bidders – termination rights for prolonged FM (including mandatory waiting period and entitlement to payment) subject to revision following finalisation of the corresponding provisions under the PPA.]

(a) If the performance of the obligations of either Party under the Contract is prevented for a continuous period of [three hundred and sixty five (365)] calendar days due to a Force Majeure Event of which notice has been given under Sub-Clause 19.2 [Notice of Force Majeure Event], the Owner may on seven (7) calendar days' written notice to the Contractor terminate the Contract, following which the Contractor shall proceed in accordance with Sub-Clause 16.3 [Cessation of Work and Removal of Construction Equipment].

(b) Upon such termination, the Owner shall pay to the Contractor:

(i) the amounts payable for any work carried out for which a price is stated in the Contract;

(ii) the Cost of Equipment and Materials ordered for the Works which have been delivered to the Contractor, or of which the Contractor is liable to accept delivery: this Equipment and Materials shall become the property of (and be at the risk of) the Owner when paid for by the Owner, and the Contractor shall place the same at the Owner's disposal;

(iii) the Costs incurred by the Contractor in order to terminate purchase orders and contracts for Equipment and Materials;

(iv) the Cost of demobilising from the Site; and

(v) the direct Cost of repatriation of the Contractor's staff and labour employed and Construction Equipment for the construction Works wholly in connection with the Works at the date of termination,

up to a maximum of USD [●] in aggregate. ***[Note to QNLNG – please provide indicative amount]***

(c) Upon termination pursuant to sub-paragraph (a) of this Sub-Clause 19.6:

(i) the Owner shall pay to the Contractor all amounts (if any) outstanding and payable by the Owner to the Contractor upon termination of the Contract with respect to the Work completed by the Contractor and not yet paid for by the Owner; and

(ii) without prejudice to any rights and obligations that have already accrued, neither Party shall have any further liability to the other.

The amount payable under this sub-paragraph (c) of this Sub-Clause 19.6 is the Contractor's sole and exclusive entitlement in connection with the termination of the Contract under sub-paragraph (a) of this Sub-Clause 19.6, whether under the Contract or otherwise, and, and to the extent permitted by law, the Contractor shall have No Claim arising out of or in any way connected with the termination

of the Contract under this Sub-Clause 19.6 other than the amount payable under sub-paragraph (c) of this Sub-Clause 19.6. The Contractor indemnifies and releases the Owner from all other claims or Losses whatsoever which the Contractor or the Contractor's Personnel may have against the Owner arising out of the termination of the Contract under sub-paragraph (a) of this Sub-Clause 19.6.

19.7 Release from Performance under the Law

Notwithstanding any other provision of this Clause 19 [Force Majeure Event], if any event or circumstance outside the control of the Parties (including Force Majeure Events) arises which makes it unlawful for either or both Parties to fulfil its or their contractual obligations, then upon notice by either Party to the other Party of such event or circumstance:

(a) the Parties shall be discharged from further performance, without prejudice to the rights of either Party in respect of any previous breach of the Contract; and

(b) the sum payable by the Owner to the Contractor shall be the same as would have been payable under Sub-Clause 19.6 [Optional Termination, Payment and Release] if the Contract had been terminated under Sub Clause 19.6 [Optional Termination, Payment and Release].

20 Claims, Disputes and Arbitration

20.1 Contractor's Claims

(a) If the Contractor considers itself to be entitled to any extension of the Contracted Date for Completion and/or any additional payment, under any Clause of these Conditions or otherwise in connection with the Contract, the Contractor shall give notice to the Owner, describing the event or circumstance giving rise to the claim. The notice shall be given as soon as practicable, and not later than twenty eight (28) calendar days after the Contractor became aware, or should have become aware, of the event or circumstance.

(b) If the Contractor fails to give notice of a claim within such period of twenty eight (28) calendar days, the Contracted Date for Completion shall not be extended, the Contractor shall have No Claim against the Owner, and the Owner shall be discharged from all liability in connection with the claim. Otherwise, the following provisions of this Sub-Clause 20.1 shall apply.

(c) The Contractor shall also submit any other notices which are required by the Contract, and supporting particulars for the claim, all as relevant to such event or circumstance.

(d) The Contractor shall keep such contemporary records as may be necessary to substantiate any claim, either on the Site or at another location acceptable to the Owner. Without admitting liability, the Owner may, after receiving any notice under this Sub-Clause 20.1, monitor the record-keeping and/or instruct the Contractor to keep further contemporary records. The Contractor shall permit the Owner to inspect all these records, and shall (if instructed) submit copies to the Owner.

(e) Within forty two (42) calendar days after the Contractor became aware (or should have become aware) of the event or circumstance giving rise to the claim, or within such other period as may be proposed by the Contractor and approved by the Owner, the Contractor shall send to the Owner a fully detailed claim which includes full supporting particulars of the basis of the claim and of the extension of time and/or additional payment claimed. If the event or circumstance giving rise to the claim has a continuing effect:

(i) this fully detailed claim shall be considered as interim;

(ii) the Contractor shall send further interim claims at monthly intervals, giving the accumulated delay and/or amount claimed, and such further particulars as the Owner may reasonably require; and

(iii) the Contractor shall send a final claim within twenty eight (28) calendar days after the end of the effects resulting from the event or circumstance, or within such other period as may be proposed by the Contractor and approved by the Owner.

(f) Within forty two (42) calendar days after receiving a claim or any further particulars supporting a previous claim, or within such other period as may be proposed by the Owner and approved by the Contractor, the Owner shall respond with approval, or with disapproval and detailed comments. It may also request any necessary further particulars, but shall nevertheless give its response on the principles of the claim within such time.

(g) Each interim payment shall include such amounts for any claim as have been reasonably substantiated as due under the relevant provision of the Contract. Unless and until the particulars supplied are sufficient to substantiate the whole of the claim, the Contractor shall only be entitled to payment for such part of the claim as it has been able to substantiate.

(h) The Owner shall proceed in accordance with Sub-Clause 3.5 [Determinations] to agree or determine (i) the extension (if any) of the Contracted Date for Completion (before or after its expiry) in accordance with Sub-Clause 8.4 [Extension of Contracted Date for Completion], and/or (ii) the additional payment (if any) to which the Contractor is entitled under the Contract.

(i) Whenever the Contract entitles the Contractor to any extension of the Contracted Date for Completion and/or any additional payment:

(i) the Contractor shall use its best efforts to mitigate any Losses, Costs, and/or delay arising from the event or circumstance giving rise to such entitlement, including but not limited to the prompt implementation of any measures reasonably required to prevent or minimise Losses, Costs, and/or delay;

(ii) the Contractor shall provide the Owner with details of the steps taken to mitigate, and shall continue to keep the Owner informed of any further measures taken in this regard; and

(iii) it is a condition precedent to the Contractor's entitlement to any extension of the Contracted Date for Completion and/or any additional payment under the Contract that the Contractor has complied in full with its obligations under this sub-paragraph (i), and the Contractor shall not be entitled to any extension of the Contracted Date for Completion and/or any additional payment under the Contract to the extent that it has failed to use its best efforts to mitigate any Losses, Costs, and/or delay as so required.

(j) The requirements of this Sub-Clause 20.1 are in addition to those of any other Sub-Clause which may apply to a claim. If the Contractor fails to comply with this or another Sub-Clause in relation to any claim, any extension of time and/or additional payment shall take account of the extent (if any) to which the failure has prevented or prejudiced proper investigation of the claim, unless the claim is excluded under the sub-paragraph (b) above.

20.2 Amicable Settlement

(a) If a dispute or difference of any kind whatsoever occurs between the Parties arising out of or in any way in connection with this Contract or the execution of the Works, including any dispute as to any decision, opinion, instruction, determination, certification or valuation of the Owner, whether during the execution of the Works or after completion and whether before or after the termination, abandonment or breach of this Contract (a "**Dispute**"), the Dispute shall be referred in writing to the representatives of the Parties who have sufficient authority to resolve the relevant Dispute for amicable settlement.

(b) Unless the Parties agree otherwise, the Expert Determination procedure referred to in Sub-Clause 20.3 [Expert] and the arbitration procedures referred to in Sub-Clause 20.4 [Arbitration] may only be commenced by either Party on or after 30 calendar days after the date of the notice of referral for amicable settlement.

(c) Performance of the Contract shall continue during any dispute resolution process referred to in this Clause 20 [Claims, Disputes and Arbitration] unless the Owner shall order a suspension in accordance with the Contract.

20.3 Expert

(a) Subject to the provisions of Sub-Clause 20.2 [Amicable Settlement], either Party may decide to refer a technical, valuation or pricing Dispute to an Expert (as defined below) for its decision, by written notice to the other Party.

(b) The Parties shall, within 28 calendar days of the date of such notice, jointly agree upon and appoint a suitably qualified person ("**Expert**") who, shall be (and the terms of its appointment shall so provide) independent of the Parties and shall act impartially in accordance with this Contract. The terms of the remuneration of the Expert, including the remuneration of any specialist from whom the Expert may require to seek advice, shall be agreed between the Expert and the Parties.

(c) The Owner and the Contractor shall each pay one-half of the remuneration of the Expert in accordance with such terms. If the Parties fail to agree on the appointment of the Expert, then either Party shall be entitled to request the

International Centre for Expertise of the International Chamber of Commerce to appoint the Expert, after due consultation with the Parties and such appointment shall be final and conclusive.

(d) After the appointment of the Expert, either Party may refer the Dispute in writing to the Expert.

(e) Such reference shall state that it is made under this Sub-Clause 20.3. The Parties shall promptly make available to the Expert all such information, access to the Site and appropriate facilities as the Expert may require for the purposes of reaching a decision. No later than 42 calendar days after the day on which the Expert received such reference, or such longer period as may be agreed by the Parties, the Expert, acting as an expert and not as an arbitrator, shall give notice of its decision to the Parties. Such notice shall include its reasons and shall state that it is given under this Sub-Clause 20.3.

(f) The decision of the Expert shall forthwith be given effect to by the Owner and by the Contractor, who shall proceed with execution of the Works with all due diligence whether or not the Owner or the Contractor requires arbitration as provided in Sub- Clause 20.4 [Arbitration].

(g) Unless this Contract has already been repudiated or terminated, the Contractor shall, in every case, continue to proceed with the Works with all diligence.

(h) If either Party is dissatisfied with the Expert's decision, then such Party, on or before the 28th day after the day on which it received notice of such decision, may notify the other Party of its rejection of the decision. Such notice of rejection shall state that it is given under this Sub-Clause 20.3, set out the details of the Dispute and the reasons for dissatisfaction and, subject to paragraph (j) of this Sub-Clause 20.3 [Expert] and Sub- Clause 20.4 [Arbitration], no arbitration in respect of such Dispute may be commenced unless such notice is given.

(i) If the Expert has given notice of its decision in respect of a Dispute to the Owner and the Contractor and no notice of rejection has been given by either Party on or before the 28th day after the day on which the last of the Parties received the Expert's decision, then the Expert's decision shall become final and binding upon the Owner and the Contractor.

(j) If either Party fails to comply with the final and binding decision of the Expert, the other Party may, without prejudice to any other rights it may have under this Contract, refer the non-compliance to arbitration under Sub-Clause 20.4 [Arbitration] and Sub-Clause 20.2 [Amicable Settlement] shall not apply to any such reference.

20.4 Arbitration

[Note to Bidders – if the Contractor is a Vietnamese entity, this provision will be revised such that arbitration is held in Vietnam, applying VIAC Rules]

(a) Any Dispute:

(i) which has not been referred to the Expert by either Party; or

(ii) in relation to which:

(A) the Expert has failed to give notice of its decision within the period referred to in paragraph 20.3(e) of Sub-Clause 20.3 [Expert]; or

(B) the decision of the Expert has not become final and binding pursuant to paragraph 20.3(h) of Sub-Clause 20.3 [Expert]; or

(iii) which consists of a failure by a Party to comply with the final and binding decision of the Expert as described in paragraph 20.3(j) of Sub-Clause 20.3 [Expert], may be referred, by either Party, to arbitration for determination and final settlement.

(b) The rules and management of any arbitration shall be in accordance with the following:

(i) all arbitrations under the Contract shall be governed by the Rules of Arbitration of the Singapore International Arbitration Centre in effect on the Contract Date ("**SIAC Rules**"). The procedure for the conduct of all arbitrations shall be in accordance with the SIAC Rules, and those rules shall be deemed to be incorporated into this Sub-Clause 20.4 by reference; and

(ii) arbitration may be commenced prior to or after completion of the Works. The obligations of the Parties shall not be altered by reason of the arbitration being conducted during the progress of the Works.

(c) The arbitrators shall be appointed in accordance with the following,

(i) the arbitration shall be conducted by three (3) arbitrators (each an "**Arbitrator**" and when conducting proceedings together, an "**Arbitral Panel**") or, if the Parties so agree, by one (1) Arbitrator, in each case appointed in accordance with the SIAC Rules;

(ii) each Arbitrator shall be suitably qualified having regard to the nature of the Dispute;

(iii) if the Parties are unable to reach agreement on the identity of any Arbitrator within fourteen (14) calendar days of the dispute being referred to arbitration, then such Arbitrator shall be appointed by the appointing authority in accordance with the SIAC Rules; and

(iv) a person will not be qualified to be appointed as an Arbitrator if it is or has at any time been an employee or agent of either of the Parties, or is or has been a consultant or counsel to any of them or is a member of a firm that has been so engaged.

(d) The seat and place of arbitration shall be in Singapore.

(e) Each arbitration shall be conducted in accordance with the following:

(i) the Arbitral Panel or, as the case may be, the Arbitrator, in either such case appointed under this Sub-Clause 20.4:

(A) shall conduct the proceedings:

(I) in private session without members of the press or the general public having any rights of access to those proceedings or right to appear before, give written or oral evidence to, or make written or oral submissions to, the Arbitrator as part of those proceedings; and

(II) subject in all respects to the confidentiality restrictions appearing in Sub-Clause 1.9 [Confidentiality]; and

(B) may not consult with any person with respect to the arbitration independently of the Parties.

(ii) The arbitration shall be conducted in the English language and the award of any Arbitrator or Arbitral Panel, together with the reasons for the determination, shall be in writing in the English language.

(iii) All evidence, submissions or documents presented at the arbitration in a language other than in the English language shall be accompanied by an English language interpretation if oral or, if written, a certified English language translation.

(iv) If an Arbitral Panel is appointed, the dispute shall be decided by a simple majority of them.

(v) Any monetary award in any arbitration shall be denominated and payable in USD.

(vi) The fact of the dispute and its reference to arbitration under this Sub-Clause 20.4 and the place and time of that arbitration shall be subject to the confidentiality restrictions appearing in Sub-Clause 1.9 [Confidentiality].

(f) All determinations of the Arbitral Panel or, as the case may be, the Arbitrator:

(i) shall be final and binding on the Parties and will be promptly implemented and given effect to by them;

(ii) will not be subject to judicial appeal or review (and all rights to which the Parties hereby waive), other than in respect of fraud in the arbitration proceedings; and

(iii) shall be subject to the confidentiality restrictions in Sub-Clause 1.9 [Confidentiality] and, except as provided in Sub-Clause 1.9 [Confidentiality] or by agreement between the Parties, may not be publicised or otherwise disclosed.

(g) If the finding of the appeal or review under Sub-Clause 20.5(a)(ii) [Joinder of Disputes] is that there was fraud in the arbitration proceedings, any determination made by the Arbitral Panel or, as the case may be, the Arbitrator will be of no effect and the Parties may again refer the matter to arbitration under this Sub-Clause 20.4.

(h) The arbitration fees shall be borne by the losing Party unless otherwise specified in the arbitration award.

(i) Unless the Contract has already been repudiated or terminated, the Contractor shall, in every case, continue to proceed with the Works with all diligence during any arbitration under the Contract

20.5 Joinder of Disputes

(a) Subject to Sub-Clause 20.4 [Arbitration], if any Dispute arising out of or in connection with the Contract (in any case, the "**First Dispute**") which:

(i) raises issues which are substantially the same as, or connected with, or touch upon, or concern issues raised in any other dispute or difference arising under, out of or in connection with [●] (a "**Related Project Dispute**"); or

(ii) arises out of, or touches upon, or concerns substantially the same facts as are the subject of a Related Project Dispute,

then, notwithstanding that Arbitrators may have been agreed or appointed under the Contract in relation either to the First Dispute or the Related Project Dispute, the Owner may, by written notice to the Contractor and any arbitrators who have already been agreed or appointed, require that the First Dispute be referred to and finally settled by the arbitral tribunal appointed or to be appointed in respect of any such Related Project Dispute.

(b) In the event of the revocation of the authority of arbitrators who have already been agreed or appointed under the Contract by reason of the notice given under sub-paragraph (a) above, the cost of the cancelled arbitration (including the arbitrators' fees) shall be paid equally by the Owner and the Contractor.

(c) It is not intended that the mechanism in this Sub-Clause 20.5 shall operate so as to deprive any Party of anything which would be a valid claim or defence. Accordingly, all claims and defences which were originally made in the cancelled arbitration shall be deemed for all purposes to have been brought when made and not be affected in any way by the revocation of the authority of the arbitrators or the cancellation of the arbitration pursuant to sub-paragraph (a) so that the position of either Party shall not thereby be prejudiced with respect to any rule of law, statute, regulation or contractual provision which imposes a time limit on the commencement of proceedings or the right to any remedy.

21 Financing

(a) The Contractor acknowledges that funds for the construction of the Facility will be made available to the Owner through funding arrangements embodied in the

Financing Agreements with the Financing Parties.

(b) The Contractor will reasonably assist the Owner, or parties designated by the Owner, in the preparation of any studies or analyses required to obtain, make effective, and maintain the effectiveness of such funding arrangements, will supply such certifications and information as the Owner may reasonably require to entitle the Owner to utilise such funding arrangements, and will reasonably cooperate in the establishment and usage of procedures dictated by the Financing Agreements for the obtaining, maintenance, administration, and disbursement of funds pursuant to such funding arrangements.

(c) No participation by the Contractor in any such activities will modify or be deemed to modify any of the rights or obligations of the Contractor under the Contract or the duty of the Owner to make payments to the Contractor in accordance with the Contract.

(d) The Contractor further acknowledges that the Independent Engineer may have customary rights, including:

(i) the right to approve/be involved in the certification of work completed for the purpose of the Contractor submitting an invoice or Statement for payment;

(ii) the right to be involved in attending any testing of the Works;

(iii) the right to visit the Site with reasonable prior written notice and require the attendance of senior members of the Contractor's and/or Owner's staff for meetings with the Independent Engineer to answer questions; and

(iv) the right to receive copies of all information and documents relating to the Works, upon giving reasonable prior notice.

(e) The Contractor acknowledges that all costs associated with the foregoing activities of the Contractor and all of the obligations of the Contractor under this Clause 21 [Financing] have been included in the Contract Price and the Contractor has no entitlement to any claim under the Contract in connection with the foregoing activities.

(f) The Contractor shall, if and when requested by the Owner, enter into an agreement with the Financing Parties or the Financing Parties' agent (the "**Direct Agreement**") in a form as may be reasonably required by the Financing Parties (consistent with those typically required by lenders (including [●]) providing senior debt financing to limited or non- recourse project financing) by which the Contractor:

(i) acknowledges and consents to assignment or transfer as referred to in Sub-Clause 1.7 [Assignment];

(ii) agrees to allow the Financing Parties time, in addition to that allowed under the Contract, to remedy defaults and other matters which may entitle the Contractor to terminate the Contract;

(iii) agrees to give "step-in", "step-out" and substitution rights to the Financing Parties;

(iv) agrees to make payment of any sum due or to become due to the Owner under the Contract to such person or account as the Financing Parties may direct;

(v) gives such other undertakings and assurances as may be required of it as a condition of the Financing Parties being willing to provide credit, finance or other financial accommodation or facilities in connection with the Project and the Facility;

(vi) agrees to, in the event of a default under the Financing Agreements and a foreclosure sale of the Owner's interest in the Project and the Facility, to accept the purchaser of the Owner's interest as the successor to the Owner under the Contract if such purchaser: (A) has reasonable access to the amount necessary to fund completion of the Works; and (B) assumes the performance of the Owner's obligations under the Contract (except those that by their nature cannot be performed by any person other than the Owner), cures all outstanding payment defaults of the Owner under the Contract, and makes provision reasonably satisfactory to the Contractor for the cure (consistent with Sub-Clause 16.2 [Termination by Contractor]) of all other outstanding defaults of the Owner hereunder; and

(vii) in the event of an acceleration of the loans under the Financing Agreements, to enter into, at the request of the Financing Parties, a replacement agreement substantially similar to the Contract but that in no event increases Contractor's liabilities with the Financing Parties or their designee if such designee satisfies the requirement of sub-paragraph (vi)(A) above and if such designee of the Financing Parties complies with sub-paragraph (vi)(B) above.

(g) The Contractor shall, as a condition precedent to the Effective Date, provide legal opinions with respect to the jurisdiction of incorporation of the Contractor (or, where applicable, each Consortium Member) and the Guarantor, from a reputable law firm issued in favour of the Owner and the Financing Parties (and in form and substance satisfactory to each addressee) with respect to:

(i) in the case of the Contractor (or, where applicable, each Consortium Member), the enforceability of the Contract and the Direct Agreement (including the choice of governing law and dispute resolution) and the capacity and authorisation of the Contractor (or, where applicable, each Consortium Member) to enter into the Contract and the Direct Agreement; and

(ii) in the case of the Guarantor, the enforceability of the Parent Company Guarantee (including the choice of governing law and dispute resolution) and the capacity and authorisation of the Guarantor to enter into the Parent Company Guarantee.

(h) The Contractor acknowledges that the Contract will be an integral part of the Financing Agreements, and that the Financing Parties may require certain modifications and amendments to the Contract in connection with such Financing Agreements. The Contractor agrees that it shall in good faith give due consideration to any such requests for modifications and amendments and shall be reasonable in accommodating such requests for modifications or amendments.

(i) The Contractor shall comply with the requirements of any Financing Parties (including any health, safety, social and environmental requirements) and with the Equator Principles. The Contractor shall also comply with and fully implement the requirements of the applicable World Bank and International Finance Corporation guidelines set out in the Equator Principles and in any event shall comply with standards no less stringent than those set out in the Equator Principles and any export agency requirements in respect of social and environmental policies.

(j) The Contractor also shall cooperate fully with the Owner in connection with the Owner's efforts to obtain loans and guarantees from ECAs selected by the Owner, including without limitation completing and filling in a timely manner all documentation required by such export-credit agencies. The Contractor shall comply with the requirements and reasonable requests of such ECAs and any other financing entity with respect to documentation and information related to loan disbursements under any financing.

22 Anti-Bribery and Corruption

(a) For the purposes of this Clause 22:

(i) "**Anti-corruption Laws**" means the Foreign Corrupt Practices Act of 1977 of the United States, the Bribery Act 2010 of the United Kingdom, the Unfair Competition Prevention Act of Japan, anti-corruption and anti-bribery laws in Socialist Republic of Vietnam (including the Law on Anti-Corruption No. 36/2018/QH14 passed by the National Assembly of Vietnam dated 20 November 2018 as amended from time to time and the Penal Code No. 100/2015/QH13 passed by the National Assembly of Vietnam dated 27 November 2015 as amended from time to time), and legal orders and regulations for implementation of the above laws (when applicable), together with any other applicable anti-corruption and anti-bribery laws of any other jurisdiction related to the Works, the Facility or the Project;

(ii) "**Associated Parties**" means directors, officers, employees, Subcontractors, representatives or agents of the Contractor; and

(iii) "**Public Official**" means any person in relation to whom Anti-corruption Laws stipulate that there would be a penalty for acceptance of a bribe.

(b) The Contractor represents and warrants that it and its Associated Parties and its shareholders have not, with respect to the Works, the Facility, the Project or the Contract, engaged in any discussion and/or negotiation with any Public Official or Governmental Instrumentality without any director, officer and/or employee of the Owner being physically present at such discussion and/or negotiation.

(c) Save as otherwise disclosed in writing or by e-mail from the Contractor to the Owner, the Contractor represents and warrants that it and all of its Associated Parties and shareholders have complied with all Anti-corruption Laws.

(d) The Contractor undertakes that it and its Associated Parties and its shareholders shall not, with respect to the Works, the Facility, the Project or the Contract, engage in any discussion and/or negotiation with any Public Official or Governmental Instrumentality, unless any director, officer and/or employee of the Owner being physically present at such discussion and/or negotiation. Either Party shall prepare the minutes of negotiation with the Public Official or Governmental Instrumentality and the other Party shall confirm the same without delay. In case such discussion and/or negotiation is held by video/teleconference system or other means of remote communication, such system shall allow all meeting participants to communicate with the other participants all the time. In such a case, the Parties may, upon their agreement, record the whole communications during the meeting instead of preparing the minutes of the meeting and the whole communications during the meeting shall be recorded by the Owner or the Contractor. Owner or the Contractor shall share the recording with the other Party.

(e) The Contractor shall, and shall cause its Associated Parties and shareholders to, with respect to the Works, the Facility, the Project or the Contract, comply with all Anti-corruption Laws.

(f) The Contractor agrees that the Owner shall have the right to take such action as it may deem necessary to ensure compliance with the Anti-corruption Laws. In this regard, the Contractor also acknowledges that the implementation of the Contract shall be subject to procedures or terms aimed at ensuring compliance with the Anti-corruption Laws.

(g) Notwithstanding the generality of the foregoing, the Contractor further warrants and represents to the Owner that:

(i) none of its Associated Parties have taken in respect of the Contract or shall take any action in violation of any Anti-corruption Laws;

(ii) it is not aware of any offer or payment by any of its Associated Parties of any gift or other amount to the Owner or any employee, agent, director or officer of either, whether for purposes of inducing them to enter into the Contract or otherwise, and shall promptly report any such effort or any such payment or gift promptly to the Owner should it ever discover that one was made or offered; and

(iii) it will ensure that, in connection with the Contract and the activities contemplated herein, none of its Associated Parties will take action, or omit to take any action, that would violate any Anti-corruption Laws.

(h) The Contractor shall indemnify and hold harmless the Owner against any claim or proceeding resulting from the Contractor's breach of this Clause 22. This indemnity shall survive the termination or expiration of the Contract.

(i) Any breach by the Contractor of its obligations under this Clause 22 shall constitute a material breach that is not capable of remedy, and to which the Owner can immediately terminate the Contract in accordance with Sub-Clause 15.2 [Termination by Owner].

23 Sanctions

(a) For the purposes of this Clause:

(i) "**Restricted Party**" means a person:

(A) that is listed on any Sanctions List or targeted by Sanctions (whether designated by name or by reason of being included in a class of person);

(B) that is domiciled, registered as located or having its main place of business in, or is incorporated under the laws of, a country or territory which is the target of comprehensive, country- or territory-wide Sanctions;

(C) that is directly or indirectly owned or controlled by or acting on behalf, at the direction or for the benefit of, a person referred to in sub-paragraph (A) and/or (to the extent relevant under Sanctions) sub-paragraph (B) above; or

(D) with which any of the Financing Parties prohibits dealing with or otherwise engaging in a transaction based on Sanctions;

(ii) "**Sanctioned Party**" has the meaning given in sub-paragraph (c) below;

(iii) "**Sanctions**" means the economic or financial sanctions laws, regulations, trade embargoes, prohibitions, restrictive measures, decisions, executive orders or notices from regulators, which are implemented, adapted, imposed, administered, enacted and/or enforced by any Sanctions Authority;

(iv) "**Sanctions Authority**" means Japan, Vietnam, the United Nations, the European Union, the member states of the European Union, the United States of America, the United Kingdom, the Republic of Singapore, the People's Republic of China, and any authority acting on behalf of any of them in connection with Sanctions, including without limitation the US Office of Foreign Asset Control, the US Department of State, the US Department of Treasury and Her Majesty's Treasury; and

(v) "**Sanctions List**" means:

(A) the lists of Sanctions designations and/or targets maintained by any Sanctions Authority; and/or

(B) any other Sanctions designation or target listed and/or adopted by a Sanctions Authority, including without limitation, specially designated nationals and blocked persons, the sectoral sanctions identifications list and the list of foreign sanctions evaders maintained by the US Office of Foreign Asset Control, and the consolidated list of financial sanctions targets and the investment ban list maintained by Her Majesty's Treasury,

in all cases, from time to time and shall include any persons or class of persons targeted by such lists.

(b) Each Party warrants for itself and its Affiliates and subcontractors, that, as of the Contract Date and on the Effective Date:

(i) it is not in breach of Sanctions applicable to it; and

(ii) it is not a Restricted Party.

(c) If at any time during the performance of the Contract either Party becomes aware that it or the other Party (the "**Sanctioned Party**") is or would be in breach of the warranty in sub-paragraph (b) above if such warranties were to be re-given, then:

(i) such Party shall give notice to the Sanctioned Party or the other Party, as the case may be ("**Sanctions Notice**");

(ii) from the date of the Sanctions Notice, performance of the obligations of each Party under the Contract shall be suspended without liability of either Party to the extent strictly necessary to prevent a breach of Sanctions (and shall, for the avoidance of doubt, include any payment obligations which are prevented due to Sanctions);

(iii) the Sanctioned Party shall use all reasonable endeavours to apply for and obtain any applicable governmental approvals which will enable performance of its obligations under the Contract to continue;

(iv) notwithstanding the circumstances giving rise to the operation of this Clause 23 and upon the obtaining of such governmental approval performance of the obligations of the Parties under the Contract shall resume; and

(v) if no governmental approval as referred to in sub-paragraph (iii) above is obtained within one hundred and eighty (180) calendar days of the start of the suspension of the obligations of the Parties pursuant to sub-paragraph (ii) above, or if it shall at any earlier time be apparent to the Party which is not the Sanctioned Party that there is no reasonable prospect of any such governmental approval being obtained (acting reasonably), then either Party may, by notice to the other Party, terminate the Contract, whereupon the Contract shall terminate.]

Schedule 1
Owner's Requirements

[Note to Bidders – subject to revision following finalization of the PPA, all applicable technical and performance requirements under the PPA will be covered as Employer's Requirements.]

Schedule 2
Contractor's Technical Proposal

[Note to QNLNG – we would not usually recommend that the Contractor's Technical Proposal be included in the Contract, mainly to avoid potential conflict with more onerous requirements in the other schedules originally prepared by the owner. The better approach would be to directly insert relevant information in the Contractor's proposal into the applicable schedule / part of the Contract.]

Schedule 3
Performance Guarantees

Schedule 3A
Performance Guarantees for LNG Terminal

Schedule 3B
Performance Guarantees for CCPP

Schedule 4
Liquidated Damages

Schedule 5
Permits, Licences and Approvals

Schedule 6
Insurance Program Structure

Schedule 7
Utilities

Schedule 8
Site Access

Schedule 9
Inspection and Testing

Schedule 9A
Inspection and Testing for LNG Terminal

Schedule 9B
Inspection and Testing for CCPP

Schedule 10
Preliminary Project Implementation Schedule

Schedule 11
Project Milestone Payment Schedule

Schedule 12
Approved Subcontractors and suppliers

Schedule 12A
Approved Subcontractors and suppliers for LNG Terminal

Schedule 12B
Approved Subcontractors and suppliers for CCPP

Schedule 13
Contract Price and Division of Works

Schedule 14
Technical Requirements of Major Project Agreements

Schedule 15
Contract Management Principles

Schedule 16
Form of Contractor's Security Bonds

Schedule 16A
Form of Performance Bond

[Letterhead of issuing bank]

[Insert Address]

Letter of Guarantee No: _____

Date: _____

Dear Sirs,

1. We refer to the Engineering, Procurement and Construction Contract dated [●] for the design, procurement, construction, erection, installation, testing, commissioning, delivery and defect rectification of a 1,500 MW power plant and LNG receiving terminal to be located in Cam Pha City, Quang Ninh Province, Vietnam (the "**Contract**") entered into between [[●]], a company duly organised and existing under the laws of [●], having its registered office located at [●](the "**Contractor**"), and Quang Ninh LNG Power JSC, a corporation organized and validly existing under the laws of Vietnam, with its registered office at 1st floor, Petroleum Institute Building, 167 Trung Kinh, Yen Hoa ward, Cau Giay district, Hanoi, Vietnam (the "**Beneficiary**").

2. All capitalised words not otherwise defined herein shall have the meaning ascribed to them in the Contract.

3. At the request of the Contractor, we the undersigned bank (the "**Bank**"), [*name*] a bank organised under the laws of [*country of incorporation*], with registered office at [*registered office*] hereby irrevocably and unconditionally undertake to pay you, the Beneficiary, any sum or sums not exceeding in total the amount of United States Dollars [●] ([USD] [●]) (the "**Guaranteed Amount**"), representing [●]% of the Contract Price of United States Dollars [●] ([USD] [●]) wholly or partially, forthwith upon receipt by us of your first demand in writing, and pursuant to one or more demands (provided that such demands and any prior demands do not in the aggregate exceed the Guaranteed Amount), substantially in the form of the demand set out in Schedule 1 [Form of Demand under Surety Bond] hereto (the "**Demand**"), stating your grounds for draw-down under the Contract, but without any further proof or conditions and notwithstanding any objection by the Contractor or by any other party of whatever capacity and without being entitled to enquire whether or not such payment is lawfully due and payable by the Contractor. Upon the occurrence of the Performance Bond Step-Down Date, the Guaranteed Amount shall be reduced to United States Dollars [●] ([USD] [●]), representing [●] % of the Contract Price of United States Dollars [●] ([USD] [●]).

4. This guarantee is a continuing obligation, and shall come into force on the date of its issuance and remain in full force and effect until the earlier of:

   (a) the payment by the Bank to the Beneficiary of a sum or sums in aggregate which equal the Guaranteed Amount; and

   (b) the occurrence of the Performance Bond End Date; or

   (c) [insert hard date],

when it shall expire and cease to be valid whether or not this guarantee is returned to the Bank.

5. All payments under this guarantee shall be in USD, and shall be made free and clear of, and without any set-off, counterclaim or deduction on account of any liability whatsoever, including, without limitation, any present or future taxes, duties, charges, fees, deductions or withholdings of any nature whatsoever and by whomsoever imposed.

6. We have been informed that the Beneficiary may require the Contractor to extend this guarantee or provide a replacement guarantee on the same terms if the Performance Bond End Date has not occurred or will not occur by the date falling 30 calendar days prior to this guarantee's scheduled expiry. We undertake to immediately pay you such guaranteed amount upon receipt by us of your Demand and your written statement that the Performance Bond End Date has not occurred and that this guarantee has not been extended or a replacement guarantee on the same terms has not been provided.

7. Any Demand made by the Beneficiary under this guarantee shall be given in writing, signed by a duly authorised officer of the Beneficiary and sent by express courier, facsimile or by hand addressed to our registered office (marked to the attention of [*insert institutional position*]), or such other address as the Bank may notify the Beneficiary on five calendar days' written notice to the Beneficiary.

8. The Beneficiary may, without first seeking the Bank's consent assign, charge, encumber or otherwise transfer its rights or benefit under this guarantee in favour of the Financing Parties, provided that the Beneficiary shall provide written notice of any such assignment, charge or transfer, including details of the transferee. The Beneficiary may otherwise assign this guarantee and the benefits thereof to any person with the consent of the Bank, such consent not to be unreasonably withheld or delayed.

9. The Bank shall not in any way be released or discharged from any liability under this guarantee by any invalidity, illegality or unenforceability of the Contract nor by any alteration, amendment or variation in the terms of the Contract nor by any allowance of time by the Beneficiary under the Contract nor by any forbearance or forgiveness or indulgence in respect of any matter or thing concerning the Contract on the part of the Beneficiary nor by the insolvency, bankruptcy, winding up or reorganisation of the Beneficiary (or any analogous event or the exercise of any power of disclaimer arising in such circumstances) nor by any dispute or disagreement whatsoever between the Beneficiary and the Contractor under or in relation to the Contract.

10. If at any time any one or more of the provisions of this guarantee is or becomes illegal, invalid or otherwise unenforceable, in any respect neither the legality, validity or enforceability of the remaining provisions of this guarantee, nor the legality, validity or enforceability of such provision, under the law shall in any way be affected or impaired as a result.

11. Subject to clause 8 of this guarantee, a person who is not a party to this guarantee has no rights under the *Contracts (Rights of Third Parties) Act 1999* to enforce any term of this guarantee.

12. This guarantee shall be governed by the laws of England and Wales and shall be subject to the Uniform Rules for Demand Guarantees (URDG) 2010, revision, ICC Publication No. 758, except as stated herein.

13. The Beneficiary and the Bank irrevocably submit to the jurisdiction of the courts of England and Wales with respect to any dispute or difference arising out of or in connection with this guarantee. Nothing in this clause 13 shall affect the ability of the Beneficiary to enforce any judgment against the Bank in any other jurisdiction.

This **Deed Poll** is delivered on [●].

SIGNED as a **DEED POLL** by

acting by a [director and its secretary]

[two directors]

Director or Director/Secretary

Schedule 1
Form of Demand under Surety Bond

[*Name of Bank*] (the "**Bank**")

[*address*]

Dear Sirs

We refer to the guarantee dated [●] issued by the Bank [with reference number [●]] (the "**Surety Bond**"). Capitalised terms used herein shall have the meanings given to them in the Surety Bond.

[Set out grounds for draw-down under the Contract]

Demand is hereby made for payment of the amount of United States Dollars [●] ([USD] [●]) to the Beneficiary in immediately available funds to the following account:

[*Specify account information*]

Yours faithfully,

……..
[Authorised signatory]

Schedule 16B
Form of Advance Payment Bond

[*Bank Letterhead*]

[*Place and Date*]

Dear Sirs,

1. We refer to the Engineering, Procurement and Construction Contract dated [●] for the design, procurement, construction, erection, installation, testing, commissioning, delivery and defect rectification of a 1,500 MW power plant and LNG receiving terminal to be located in Cam Pha City, Quang Ninh Province, Vietnam (the "**Contract**") entered into between [[●]], a company duly organised and existing under the laws of [●], having its registered office located at [●] (the "**Principal**"), and Quang Ninh LNG Power JSC, a corporation organized and validly existing under the laws of Vietnam, with its registered office at 1st floor, Petroleum Institute Building, 167 Trung Kinh, Yen Hoa ward, Cau Giay district, Hanoi, Vietnam (the "**Beneficiary**").

2. All capitalised words not otherwise defined herein shall have the meanings ascribed to them in the Contract.

3. It is a requirement under the Contract that, as a condition to payment of the advance payment for an amount of United States Dollars [●] (the "**Advance Payment**") by the Beneficiary to the Principal under the Contract, the Principal shall procure an Advance Payment Bond in favour of the Beneficiary.

4. At the request of the Principal, we the undersigned bank (the "**Bank**"), [*name*], a bank organised under the laws of [*country of incorporation*], with its registered office at [*registered office*], hereby irrevocably and unconditionally undertakes to pay you, the Beneficiary, any sum or sums not exceeding in total the amount of United States Dollars [●] (the "**guaranteed amount**") representing the value of the Advance Payment, wholly or partially, forthwith upon receipt by us of your first demand in writing and pursuant to one or more demands (provided that such demands and any prior demands do not in the aggregate exceed the guaranteed amount), substantially in the form of the demand set out in Schedule 1 hereto (the "**Demand**"), specifying the particular ground for drawdown, without any further proof or conditions and notwithstanding any objection by the Principal or by any other party of whatever capacity and without being entitled to enquire whether or not such payment is lawfully due and payable by the Principal.

5. This bond is a continuing obligation and shall come into force upon receipt by the Principal of the Advance Payment issued in accordance with the Contract and remain in full force and effect until the earlier of:

   (a) the payment by the Bank to the Beneficiary of a sum or sums in aggregate that equal the guaranteed amount;

   (b) the date on which the Advance Payment has been fully repaid to be Beneficiary; and

   (c) [*insert hard date*],

when it shall expire and cease to be valid whether or not this bond is returned to the Bank.

6. All payments under this bond shall be in United States Dollars and shall be made free and clear of, and without any set-off, counterclaim or deduction on account of, any liability whatsoever, including, without limitation, any present or future taxes, duties, charges, fees, deductions or withholdings of any nature whatsoever and by whomsoever imposed.

7. Any Demand made by the Beneficiary under this bond shall be given in writing, signed by a duly authorised officer of the Beneficiary and sent by express courier, by facsimile or by hand addressed to our registered office (marked to the attention of [*insert institutional position*]) or to such other address as the Bank may notify the Beneficiary on five calendar days' written notice to the Beneficiary.

8. The Beneficiary may assign this bond and the benefits thereof without the consent of the Bank if by way of security in favour of its lenders or with the consent of the Bank, such consent not to be unreasonably withheld or delayed, if to any person to whom the Contract is assigned. No right of action shall accrue to any third party under this bond other than the Beneficiary and the Beneficiary's successors, assigns, receivers or administrators.

9. If, at any time, any one or more of the provisions of this bond is or becomes illegal, invalid or otherwise unenforceable in any respect, neither the legality, validity or enforceability of the remaining provisions of this bond, nor the legality, validity or enforceability of such provision, under the law shall in any way be affected or impaired as a result.

10. Subject to clause 8 of this bond, a person who is not a party to this bond has no rights under the Contracts (Rights of Third Parties) Act 1999 (UK) to enforce any term of this bond.

11. This bond shall be governed by English law and shall be subject to the Uniform Rules for Demand Guarantees (URDG) 2010, revision, ICC Publication No. 758, except as stated herein. The Beneficiary and the Bank irrevocably submit to the jurisdiction of the English courts with respect to any dispute or difference arising out of or in connection with this bond. Nothing in this clause 11 shall affect the ability of the Beneficiary to enforce any judgment against the Bank in any other jurisdiction.

This **Deed Poll** is delivered on [●].

SIGNED as a **DEED POLL** by

acting by a [director and its secretary]

[two directors]

Director or Director/Secretary

Schedule 1
Form of Demand under Advance Payment Bond

[*Name of Bank*] (the "**Bank**")

[*address*]

Dear Sirs,

We refer to the bond dated [●] issued by the Bank [with reference number [●]] (the "**Advance Payment Bond**"). Capitalised terms used herein shall have the meanings given to them in the Advance Payment Bond.

1. Demand is hereby made for payment of the amount of United States Dollars [●] (USD [●]) to the Beneficiary in immediately available funds to the following account:

   [*Specify account information*]

2. [*Specify the grounds for drawdown*], and the amount specified in paragraph 1 is the amount the Beneficiary claims to be entitled to as a result thereof.

Yours faithfully,

……..
[Authorised signatory]

Schedule 17
Contractor's Pre-Effective Date Waiver

This Waiver and Release (the "**Waiver and Release**") is made and given as a deed on [●] by:

(1) **[Insert full legal name of Contractor]**, a company incorporated under the laws of [●] and whose registered office is at [●] (the "**Contractor**");

in favour of

(2) **Quang Ninh LNG Power JSC**, a corporation organized and validly existing under the laws of Vietnam, with its registered office at 1st floor, Petroleum Institute Building, 167 Trung Kinh, Yen Hoa ward, Cau Giay district, Hanoi, Vietnam (the "**Owner**").

RECITALS

A. The Contractor and the Owner have entered into an Engineering, Procurement and Construction Contract dated [●] (the "**Contract**") for the design, procurement, construction, erection, installation, testing, commissioning, delivery and defect rectification of a 1,500 MW power plant and LNG receiving terminal to be located in Cam Pha City, Quang Ninh Province, Vietnam.

B. It is a condition precedent to the issuance of the Notice to Proceed under the Contract that the Contractor executes and delivers this Waiver and Release in favour of the Owner.

OPERATIVE PROVISIONS

1. Definitions

Unless otherwise defined in this Waiver and Release, capitalised terms shall have the meanings given to them in the Contract.

2. Waiver and Release

(a) Subject to paragraph (c) below, the Contractor, for itself and its successors, assigns, and any other person claiming through or under it, hereby irrevocably and unconditionally releases, waives, and forever discharges the Owner, its Affiliates, officers, directors, employees, agents, and representatives from any and all claims, demands, actions, causes of action, proceedings, liabilities, losses, damages, costs, expenses, and obligations of any kind whatsoever, whether known or unknown, suspected or unsuspected, which the Contractor now has, or at any time may have, under, arising out of, or in connection with the Contract, the Works, the Facility, or the Project, in respect of any matter, event, act, omission, or circumstance occurring or arising up to the Effective Date.

(b) Without limiting the generality of the foregoing, this Waiver and Release apply to any and all claims for payment, compensation, damages, costs, expenses, extension of time, loss, or any other relief of any kind in respect of any event, circumstance, or matter occurring or incurred prior to the Effective Date.

(c) nothing in this Waiver and Release shall be construed as a waiver or release of the Contractor's right to payment for Early Works performed prior to the Effective Date to the extent such right is expressly provided for under Article 6.7(d) [Limited Notice to Proceed] of the Contract Agreement.

3. No Admission

This Waiver and Release is given without any admission of liability by the Owner.

4. No Further Claims

The Contractor undertakes not to commence, pursue, or maintain any claim, action, demand, suit, or proceeding against the Owner in respect of any matter released under this Waiver.

5. Governing Law and Jurisdiction

(a) This Waiver and Release shall be governed by and construed in accordance with the laws of England and Wales.

(b) Any dispute, controversy, or claim arising out of or in connection with this Waiver and Release, including any question regarding its existence, validity, or termination, or any non-contractual obligations arising out of or in connection with it, shall be resolved in accordance with Sub-Clause 20.3 [Arbitration] of the Contract, which shall be incorporated into this Waiver and Release *mutatis mutandis*.

6. Miscellaneous

(a) This Waiver and Release is given as a deed and is intended to take effect as a deed.

(b) This Waiver and Release may be executed in any number of counterparts, each of which when executed and delivered shall constitute an original, but all the counterparts together shall constitute one and the same instrument.

EXECUTED as a deed by

)

[●])

acting by [●], a director, in the)

presence of:)

Witness's Signature:

Name:

Address:

Schedule 18
Form of Notice to Proceed

Schedule 19
Form of Interim Payment Application

Schedule 20
Form of Lien Waiver

Schedule 21
Temporary Areas

Schedule 22
Shared Facility Areas

[Note to Bidder: Schedule 22 to be developed if Shared Facility Areas would be required]

Schedule 23
Permanent Areas

Schedule 24
Not Used

Schedule 25
Proposed Document Register of LNGT

Schedule 26
Contractor's Discharge

Part A

FORM OF DISCHARGE – STATEMENT AT FACILITY TAKING OVER

This Discharge (the "**Discharge**") is made and given as a deed on [●] by:

(1) **[Insert full legal name of Contractor]**, a company incorporated under the laws of [●] and whose registered office is at [●] (the "**Contractor**");

in favour of

(2) **Quang Ninh LNG Power JSC**, a corporation organized and validly existing under the laws of Vietnam, with its registered office at 1st floor, Petroleum Institute Building, 167 Trung Kinh, Yen Hoa ward, Cau Giay district, Hanoi, Vietnam (the "**Owner**").

RECITALS

A. The Contractor and the Owner have entered into an Engineering, Procurement and Construction Contract dated [●] (the "**Contract**") for the design, procurement, construction, erection, installation, testing, commissioning, delivery and defect rectification of a 1,500 MW power plant and LNG receiving terminal to be located in Cam Pha City, Quang Ninh Province, Vietnam.

B. The Contractor is required, as a condition precedent to payment in respect of the Statement at Facility Taking Over, to provide this Discharge in accordance with Sub-Clause 14.10(a) [Discharge] of the Contract.

OPERATIVE PROVISIONS

1. Definitions

Unless otherwise defined in this Discharge, capitalised terms shall have the meanings given to them in the Contract.

2. Comprehensive Release and Discharge

(a) Subject to paragraph 2(b) below, the Contractor, for itself and its successors, assigns, and any other person claiming through or under it, hereby irrevocably and unconditionally releases, waives, and forever discharges the Owner, its Affiliates, officers, directors, employees, agents, and representatives from any and all claims, demands, actions, causes of action, proceedings, liabilities, losses, damages, costs, expenses, and obligations of any kind whatsoever, whether known or unknown, suspected or unsuspected, which the Contractor now has, or at any time may have, under, arising out of, or in connection with the Contract, the Works, the Facility, or the Project, in respect of any matter, event, act, omission, or circumstance occurring or arising up to the Facility Taking Over Date (as defined in the Contract), except for:

(i) any estimated amounts expressly included in the Statement at Facility Taking Over in accordance with Sub-Clause 14.8(a)(iii) [Statement at Facility Taking Over] of the Contract;

(ii) any amounts which may become due to the Contractor under the Contract after the Facility Taking Over Date.

(b) For the avoidance of doubt, this Discharge does not release or discharge the Owner from any obligation to make payment of the outstanding balance of the Statement at Facility Taking Over or any estimated amounts expressly included therein, nor from any amounts which may become due to the Contractor under the Contract after the Facility Taking Over Date.

3. Effectiveness

This Discharge shall become effective upon the Contractor's receipt of the outstanding balance of the Statement at Facility Taking Over.

4. Governing Law and Dispute Resolution

(a) This Discharge shall be governed by and construed in accordance with the laws of England and Wales.

(b) Any dispute, controversy, or claim arising out of or in connection with this Discharge, including any question regarding its existence, validity, or termination, or any non-contractual obligations arising out of or in connection with it, shall be resolved in accordance with Sub-Clause 20.3 [Arbitration] of the Contract, which shall be incorporated into this Discharge mutatis mutandis.

EXECUTED as a deed by

)

[●])

acting by [●], a director, in the)

presence of:)

Witness's Signature:

Name:

Address:

Part B
FORM OF DISCHARGE – FINAL STATEMENT

This Discharge (the "**Discharge**") is made and given as a deed on [●] by:

(1) **[Insert full legal name of Contractor]**, a company incorporated under the laws of [●] and whose registered office is at [●] (the "**Contractor**");

in favour of

(2) **Quang Ninh LNG Power JSC**, a corporation organized and validly existing under the laws of Vietnam, with its registered office at 1st floor, Petroleum Institute Building, 167 Trung Kinh, Yen Hoa ward, Cau Giay district, Hanoi, Vietnam (the "**Owner**").

RECITALS

A. The Contractor and the Owner have entered into an Engineering, Procurement and Construction Contract dated [●] (the "**Contract**") for the design, procurement, construction, erection, installation, testing, commissioning, delivery and defect rectification of a 1,500 MW power plant and LNG receiving terminal to be located in Cam Pha City, Quang Ninh Province, Vietnam.

B. The Contractor is required, as a condition precedent to payment in respect of the Final Statement, to provide this Discharge in accordance with Sub-Clause 14.10(b) [Discharge] of the Contract.

OPERATIVE PROVISIONS

1. Definitions

Unless otherwise defined in this Discharge, capitalised terms shall have the meanings given to them in the Contract.

2. Comprehensive Release and Discharge

(a) Subject to paragraph 2(b) below, the Contractor, for itself and its successors, assigns, and any other person claiming through or under it, hereby irrevocably and unconditionally releases, waives, and forever discharges the Owner, its Affiliates, officers, directors, employees, agents, and representatives from any and all claims, demands, actions, causes of action, proceedings, liabilities, losses, damages, costs, expenses, and obligations of any kind whatsoever, whether known or unknown, suspected or unsuspected, which the Contractor now has, or at any time may have, under, arising out of, or in connection with the Contract, the Works, the Facility, or the Project, including without limitation any claims in contract, tort, equity, statute, or otherwise, and whether arising before, on, or after the Facility Taking Over Date, save only for the Owner's obligation to pay the outstanding balance of the Final Statement and to return the Performance Bond.

(b) This Discharge does not release or discharge the Owner from any obligation to make payment of the outstanding balance of the Final Statement or to return the Performance Bond.

3. Effectiveness

This Discharge shall become effective upon the Contractor's receipt of the Performance Bond and the outstanding balance of the Final Statement.

4. Governing Law and Dispute Resolution

(a) This Discharge shall be governed by and construed in accordance with the laws of England and Wales.

(b) Any dispute, controversy, or claim arising out of or in connection with this Discharge, including any question regarding its existence, validity, or termination, or any non-contractual obligations arising out of or in connection with it, shall be resolved in accordance with Sub-Clause 20.4 [Arbitration] of the Contract, which are incorporated into this Discharge mutatis mutandis.

EXECUTED as a deed by

)

[●])

acting by [●], a director, in the)

presence of:)

Witness's Signature:

Name:

Address:

Schedule 27
Extended Warranties

[Note to Bidder: Schedule 27 to be developed if Extended Warrantieswould be required]

Schedule 28
Deed of Warranty

This deed of warranty (this "Deed") is made on _____

BETWEEN	("Owner")
AND	[insert name of warrantor] ("Warrantor" which expression shall include its successors and assigns)

BACKGROUND

A. The Owner and [insert name of contractor] (the "Contractor") have entered into the Contract described in Item 2 of the Schedule (the "Contract") pursuant to which the Contractor has agreed to perform the work described in Item 3 of the Schedule (the "Works").

B. The Warrantor has Contracted with the Contractor to supply the goods or materials described in Item 4 of the Schedule (the "Goods").

C. The Warrantor has agreed to give the warranties and indemnity in this Deed to the Owner in consideration of the Contractor agreeing to employ the Warrantor and the Owner agreeing to accept the Warrantor as a supplier of the Goods.

OPERATIVE PROVISIONS

1. The Warrantor:

   (a) warrants to the Owner that the Goods shall be in accordance with the quality and/or standard stipulated by the Contract and to the extent that the quality and/or standard is not so stipulated, shall be of merchantable quality and be fit for the purpose or purposes for which it is required; and

   (b) gives the warranty more particularly set out in Item 5 of the Schedule with respect to the Goods.

   The above warranties shall be in addition to and shall not derogate from any warranty implied by law in respect of the Goods.

2. The Warrantor will, at its expense, replace and/or make good to the reasonable satisfaction of the Owner, so much of the Goods as within the period described in Item 6 of the Schedule shall be found to be of a lower quality or standard than that referred to in clause 1 or shall show deterioration of such extent that in the opinion of the Owner the Goods ought to be made good or replaced in order to achieve fitness for the purpose or purposes for which it is required and whether this is on account of utility, performance, appearance or otherwise.

3. The Warrantor will meet the cost of any work necessary to any part of the Works to enable the requirements of clause 2 of this Deed to be carried out and/or necessary to make good the Works afterwards.

4. The decision of the Owner as to:

   (a) the Goods failing to comply with quality or standard as above mentioned or otherwise failing to comply with the foregoing warranties; and/or

   (b) as to the extent of replacement and/or making good which shall be necessary to properly remedy the defects; and/or

   (c) as to the extent of any work required under clause 3 of this Deed,

   shall be notified in writing to the Warrantor and shall be final and binding upon the parties.

5. The Warrantor will within a reasonable time after written notification to the Warrantor of a decision of the Owner as to work required replace and/or make good the Goods or parts thereof and/or meet the costs of any work required by clause 3 of this Deed, whether or not any dispute or difference exists between the parties, and the Warrantor agrees to indemnify and keep indemnified the Owner against any direct, indirect or consequential loss or damage of any nature whatsoever sustained by them or either of them, directly or indirectly arising out of any breach of the warranties, covenants or other conditions given by the Warrantor.

6. If within the time prescribed in clause 5 (and the Owner's decision as to what is a reasonable time shall be final and binding upon the parties) the Warrantor fails to fully and properly carry out the said work, the Owner may carry out such work, or cause the same to be carried out, and the Warrantor agrees to indemnify and keep indemnified the Owner against all the costs and expenses of and incidental to the carrying out of the work and also against any direct, indirect or consequential loss or damages sustained by the Owner as a result of the Warrantor's failure.

7. The provisions of this Deed shall come into operation in favour of the Owner as soon as it has been executed by the Warrantor, notwithstanding that it may not have been or may not thereafter be executed by the Owner.

8. Nothing contained in this Deed is intended to nor shall render the Owner in any way liable to the Warrantor in relation to any matters arising out of the Contract or otherwise.

9. The parties agree that this instrument is and shall operate as a deed.

10. This Deed and any dispute or claim (including any non-contractual obligation, disputes or claims) arising out of or in connection with it, its subject matter or its formation shall be governed by and construed in accordance with English law.

11. The Owner and the Warrantor irrevocably submit to the jurisdiction of the English courts with respect to any dispute or difference arising out of or in connection with this Deed.

SCHEDULE

Item 1:	Name and Address of Warrantor
	[insert]
Item 2:	Description of Contract (Recital A)
	[insert]
Item 3:	Description of the Works (Recital A)
	[insert]
Item 4:	The Goods (Recital B)
	[insert]
Item 5:	Details of warranty provided by the Warrantor (clause 1(b))
	[insert]
Item 6:	Period of Years (clause 2)
	[ ] years from [ ]

EXECUTED by the parties as a Deed.

SIGNED SEALED AND DELIVERED for and on behalf of [ ] by [INSERT FULL NAME AND SIGNATORY] in the presence of:	)))))

➢ Signature of authorised person	➢ Signature of authorised person
➢ Name of authorised person	➢ Name of authorised person
➢ Office held	➢ Office held

[Note: the execution clause will need to be amended depending on the nature of the party.]

Schedule 29
Site Clearance Requirements

[Note to QNLNG – AFRY will need to prepare a new schedule 29 setting out all requirements which the site must meet at the time it is handed over to the Contractor. These requirements should match those in the site clearance contract which the site clearance contractor must attain as a condition to handover thereunder.]

Schedule 30
Parent Company Guarantee

[On letterhead of Guarantor]

Date: [●]

We, [*insert name of guarantor*] (the **Guarantor**, **we** or **us**) refer to the engineering, procurement and construction contract relating to the [●] project in [●] entered into between [●] (the **Company** or **you**) and [●] (the **Contractor**, and together with the Company and the Guarantor, the **Parties**) dated [●] (the **Contract**).

5. Under the terms of the Contract, the Contractor has agreed to procure a guarantee from us. At the request of the Contractor, we have agreed to guarantee performance of the Contract by the Contractor as set out in this parent company guarantee (the **Guarantee**). Unless otherwise defined in this Guarantee, capitalised terms shall have the meaning given to them in the Contract and the rules of interpretation set out in Sub-Clause 1.2 [Interpretation] of the Contract shall apply equally to this Guarantee.

6. In consideration of you entering into the Contract with the Contractor, we irrevocably and unconditionally guarantee to you the due punctual and complete performance by the Contractor of each and all of its obligations and liabilities that have become due and performable and which may become due and performable under and in accordance with the Contract (including the payment of sums due from the Contractor) save that, subject to paragraph 10 below, nothing in this Guarantee is to be construed as imposing greater obligations or liabilities on us than are imposed on the Contractor in the Contract. We will indemnify you against all liabilities, losses, damages, claims, costs, charges and expenses suffered or incurred by you by reason of any act failure default or omission on the part of the Contractor in performing and observing its obligations under and in accordance with the Contract.

7. Our obligations under this Guarantee are to remain in full force and effect and are not to be affected or discharged in any way by and we waive notice of:

   (a) any suspension or variation of the Works, variation to or amendment of the Contract (including any extension of time for performance) or any concession or waiver by you in respect of the Contractor's obligations under the Contract, or any adjustments to the amount payable under the Contract;

   (b) any provision of the Contract or any obligation of the Contractor being or becoming illegal, invalid, void, voidable or unenforceable;

   (c) the termination of the Contract or of the employment of the Contractor under the Contract for any reason;

   (d) any forbearance or waiver of any right of action or remedy you may have against the Contractor or negligence by you in enforcing any right of action or remedy;

(e) any bond, undertaking, security or other guarantee held or obtained by you for any of the obligations of the Contractor under the Contract, or any release or waiver.

(f) any breach of the Contract by you; and

(g) any other act, event or omission that might operate to discharge, impair or otherwise affect any of our obligations under the Guarantee or any of the rights, powers and remedies conferred on you by the Guarantee.

8. This Guarantee extends to any variation of or amendment to the Contract, and to any supplemental agreement agreed between you and the Contractor, and, for the avoidance of doubt, we authorise you and the Contractor to make any amendment, variation or supplemental agreement.

9. We will indemnify you on demand against any loss or liability you suffer if any obligation guaranteed by us is or becomes unenforceable, invalid or illegal as if the obligation guaranteed had not become unenforceable, invalid or illegal provided that our liability shall be no greater than the Contractor's liability would have been if the obligation guaranteed had not become unenforceable, invalid or illegal.

10. This Guarantee is a continuing guarantee and accordingly covers all of the obligations and liabilities of the Contractor under the Contract, and remains in full force and effect until all the said obligations and liabilities of the Contractor are carried out, completed and discharged in accordance with the Contract. This Guarantee is in addition to any other security which you may at any time hold and may be enforced without first having recourse to any security or taking any steps or proceedings against the Contractor. If any payment to you by the Contractor is avoided, set aside or reduced as a result of insolvency or a similar event our obligations under this Guarantee will be reinstated and construed as if the payment had not been made by the Contractor.

11. We agree not to make any claim or threaten to make any claim on any ground whatsoever whether by proceedings or otherwise against the Contractor for the recovery of any sum paid by us in accordance with this Guarantee. Any claim is to be subordinate to any claims (contingent or otherwise) which you may have against the Contractor arising out of or in connection with the Contract until the time when these claims are satisfied by the Contractor or us as the case may be. To that intent we agree not to claim or have the benefit of any security which you hold or may hold for any monies or liabilities due or incurred by the Contractor in respect of any payment by us hereunder. We undertake to hold that sum in trust for you for so long as any sum is payable (contingently or otherwise) under this Guarantee.

12. This Guarantee may be assigned, including by way of security, by you to (i) any lender or a financing party and (ii) any person, firm or company to whom the benefit of the Contract is assigned, novated or transferred, and upon receipt of notice of assignment we undertake to make any payment claimed under this Guarantee to the person, firm, company specified in the notice which is to constitute a full and valid discharge to us in relation to that payment.

13. We will be bound by any findings of fact, interim or final award made by any arbitrators in any arbitration between you and the Contractor.

14. We will reimburse all legal and other costs and expenses including VAT which you may incur in enforcing this Guarantee.

15. Any notice required by this Guarantee is deemed to be duly given when delivered (in the case of personal delivery) or [ninety-six (96)] hours after being dispatched by prepaid registered post or post with recorded delivery (in the case of delivery by post) at the following addresses (or such other address as may be notified by a party to this Guarantee to the other):

    Company: *[insert notice details]*

    Guarantor: *[insert notice details]*

16. This Guarantee is governed by and construed according to the laws of England.

17. Any dispute arising out of or in connection with this Guarantee (including a dispute relating to the existence, validity or termination of this Guarantee or any non-contractual obligation arising out of or in connection with this Guarantee), or the consequences of any nullity of this Guarantee (a **Dispute**) shall be referred to and finally settled under the rules of the Singapore International Arbitration Centre then in force (the **SIAC Rules**), which rules are deemed to be incorporated by reference into this clause 17. The Dispute shall be settled be three arbitrators appointed in accordance with the SIAC Rules. The seat, or legal place of the arbitration, shall be Singapore. The arbitration shall be conducted in Singapore and in the English language. If an award requires a payment of an amount by one Party to another Party, this amount shall be immediately due and payable without any statement or notice. Any award will be final and binding on the Parties. Nothing in this clause 17 prevents a Party from seeking urgent interlocutory relief from a court of competent jurisdiction where, in that Party's reasonable opinion, that action is necessary to protect that Party's rights.

18. This Guarantee may be executed in any number of counterparts, all of which when taken together shall constitute the one and the same instrument.

19. This Guarantee is executed by us as a deed.

IN WITNESS of which we, [*insert name of the Guarantor*], have duly executed and delivered this Guarantee as a deed on the date first stated above.

GUARANTOR

EXECUTED as a deed by)

[●])

acting by [●], a director, in the)

presence of:)

Witness's Signature:

Name:

Address:

COMPANY

EXECUTED as a deed by)

[●] acting by [●], a director, in the)

presence of:)

)

Witness's Signature:

Name:

Address: